

PART 32 JAN 30 2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

THE PEOPLE OF THE STATE OF NEW YORK

Ind. 75657/2024

v.

LUIGI MANGIONE,

Defendant.

-----X

**POST-HEARING MEMORANDUM OF LAW
IN SUPPORT OF MOTIONS TO SUPPRESS**

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I. PRELIMINARY STATEMENT

On April 30, 2025, counsel for Mr. Mangione filed an omnibus motion seeking, *inter alia*, (1) suppression of the evidence seized at the time of his arrest because law enforcement conducted a warrantless search of Mr. Mangione's backpack in violation of his Fourth Amendment rights; and (2) suppression of Mr. Mangione's statements to law enforcement as officers failed to provide him with *Miranda* warnings in violation of his Fifth Amendment rights. In December 2025, this Court conducted a nine-day hearing to address counsel's suppression motions. As argued below, the hearing testimony demonstrated that Altoona law enforcement violated Mr. Mangione's constitutional rights numerous times by searching his backpack at the McDonald's without a warrant, by searching his backpack again at the precinct without a warrant, by reading his writings without a warrant, by failing to provide Mr. Mangione with *Miranda* warning before interrogating him and by continuing to interrogate him even after he invoked his right to remain silent and again after he was represented by counsel. For these reasons, this Court should suppress the contents of the backpack and his writings, as well as Mr. Mangione's statements to law enforcement.

A. Motion to Suppress Mr. Mangione's Backpack

1. Search Incident to a Lawful Arrest

At the hearing, Altoona law enforcement officers repeatedly attempted to justify their warrantless search of Mr. Mangione's backpack at the McDonald's as a valid search incident to a lawful arrest. Instead, all these officers demonstrated was an utter disregard for a defendant's constitutional rights and a shocking ignorance of basic search and seizure caselaw.¹ As discussed

¹As addressed below, New York's suppression law applies here as New York is the forum state because the alleged crime occurred in New York and Mr. Mangione is being prosecuted in New York. Notably, as discussed below, Altoona law enforcement's conduct relating to the search and seizure of Mr. Mangione's property also violated Supreme Court and Pennsylvania law.

in more detail below, the Altoona officers testified at the hearing that it was their standard procedure to search a defendant's bags after an arrest as a search incident to a lawful arrest and have **never** sought a search warrant. (Hr. 290–91, 630, 755, 973.) Altoona officers testified that they would search these bags (as they searched Mr. Mangione's backpack) without a warrant as a search incident to a lawful arrest even if the bags were not in the control of, or in the immediate grabbable area of, the defendant at the time of his arrest. Such a search is prohibited under New York, Pennsylvania and federal law.

Here, the hearing evidence established without any doubt that Mr. Mangione's backpack was not in his immediate control at the time of his arrest. This fact is confirmed by the body-worn camera footage of numerous officers, as well as their hearing testimony. As is demonstrated from the body-worn camera footage, law enforcement moved Mr. Mangione's backpack outside of his immediate control approximately seventeen minutes before he was placed in custody. Moreover, at the time of Mr. Mangione's custodial detention, he was rear cuffed and separated from his backpack by at least five officers, with another seven officers in the immediate area in the back of the McDonald's. Given the body-worn camera footage and the law enforcement testimony at the suppression hearing establishing that the backpack was not in Mr. Mangione's immediate control at the time of his arrest, there is no basis for the prosecution to argue that the backpack search at the McDonald's was a valid search incident to a lawful arrest.

2. Search for a Bomb

At the hearing, the prosecution and Altoona law enforcement further claimed that the search of the backpack at the McDonald's was valid because law enforcement was searching the backpack to make sure there was no bomb. As detailed below, however, the totality of the circumstances demonstrates that law enforcement's claim about a bomb was a blatantly false and

a pretextual justification for conducting an evidentiary search. Most notably, the body-worn camera footage establishes that this was a search for evidence, not a search for a bomb or dangerous instrument, as law enforcement used its bomb claim as a basis to search items in the backpack that—as officers admitted at the hearing—were too small to contain a bomb.

Moreover, that this “bomb search” was pretextual is further demonstrated by the fact that, once Patrolwoman Christy Wasser found the loaded gun magazine in the backpack, Patrolman Stephen Fox stated to Wasser, “now that we found that, let’s just take it back” to the precinct. (Ex. 6E.1 at 10:01:49; Hr. 813, 900, 901.) If this truly were a search for a bomb, officers would have continued searching the backpack before taking it to the precinct, especially considering that neither Patrolwoman Wasser nor Patrolman Fox had finished searching the section of the backpack they were looking in and neither had searched a third compartment in the backpack for a bomb. Instead, because this was an evidence search, Altoona officers stopped searching at the McDonald’s once they found incriminating evidence and took the backpack to the precinct.

3. Inventory Search

The prosecution further claims that the contents of the backpack should be admitted because the backpack was properly searched at the precinct as an inventory search. Notably, at the McDonald’s, two supervising officers voiced their concerns with the plan to continue searching Mr. Mangione’s backpack at the precinct without a warrant. Unfortunately, both higher and lower ranking officers ignored these concerns and instead chose to violate Mr. Mangione’s Fourth Amendment rights by continuing to search the backpack at the precinct without a warrant, justifying it interchangeably as both a continuation of their search incident to arrest and as an inventory search.

As addressed below, there were at least three distinct searches of the backpack at the precinct: (1) Patrolwoman Wasser opening the backpack on a metal chair in the intake area to recover a firearm; (2) Patrolwoman Wasser's search of the backpack in a hallway in the precinct; and (3) more complete searches of the backpack conducted by Patrolman George Featherstone, Sergeant Eric Heuston and others at various locations inside the precinct. As discussed below, the hearing evidence established that Patrolwoman Wasser's searches were not inventory searches because, *inter alia*, no inventory was actually done and her purpose in searching Mr. Mangione's backpack was to find evidence to assist the NYPD in its homicide investigation and not to create an inventory. As to the more complete search of Mr. Mangione's backpack subsequently conducted by other officers, this inventory search was improper because it exceeded the authorization provided by the Altoona Patrol Guide for two reasons. First, the Altoona Patrol Guide only allowed officers to conduct an inventory of the detainee's person, not items that were not on the detainee's person. Second, the Patrol Guide did not authorize officers to read the contents of Mr. Mangione's writing (in his journal or otherwise) without a warrant.

For all these reasons, and the reasons listed below, the contents of Mr. Mangione's backpack and all his writings should be suppressed.

B. Motion to Suppress Mr. Mangione's Statements

Mr. Mangione also moved to suppress his statements to law enforcement at the McDonald's because he was not given his *Miranda* warning before being subject to custodial interrogation. As discussed below, after approaching Mr. Mangione and asking his name, Patrolman Joseph Detwiler started asking questions seeking to incriminate Mr. Mangione in the New York City shooting of Brian Thompson. These questions—including asking multiple times if Mr. Mangione had been to New York recently—were designed to elicit an incriminating

response because, at that point, Patrolman Detwiler “100%” believed that Mr. Mangione was the New York City shooter. (Hr. 197–98, 224.) Patrolman Detwiler also asked these questions as he and Patrolman Tyler Frye strategically positioned themselves in a manner that prevented Mr. Mangione from getting up from his seat and leaving the McDonald’s. Law enforcement continued to question Mr. Mangione as additional officers responded to the McDonald’s, further enforcing Mr. Mangione’s belief that he was in custody and not free to leave the McDonald’s. Because Mr. Mangione was subject to custodial interrogation, any statements he made before receiving *Miranda* warnings must be suppressed.

Furthermore, once *Miranda* warnings were given, law enforcement continued to interrogate Mr. Mangione even after he invoked his Fifth Amendment right to remain silent. As argued below, any statement made after Mr. Mangione invoked his right to remain silent must also be suppressed.

The prosecution also elicited testimony that Mr. Mangione made statements to Corrections Officers Thomas Rivers and Matthew Henry when he was housed in SCI Huntingdon. As argued below, the alleged statements to C.O. Rivers should be suppressed because these statements were obtained from Mr. Mangione after Rivers knew that Mangione had an attorney. Additionally, this Court should find that the District Attorney’s Office failed to meet its burden surrounding Mr. Mangione’s alleged statements to C.O. Henry as Henry’s testimony—that Mr. Mangione, without any prompting, spontaneously starting making admissions about the backpack and firearm to Henry who he had never met or spoken to before—was incredible as a matter of law.

II. THE DECEMBER 2025 SUPPRESSION HEARINGS

To resolve defendant’s suppression claims, this Court conducted a *Mapp/Huntley* hearing in December 2025. At this hearing, the District Attorney’s Office called seventeen witnesses,

including nine Altoona Police Department officers, two NYPD officers, two corrections officers, a 911 operator, a video custodian from the McDonald's, a Blair County prosecutor and an analyst from the District Attorney's Office. The recitation of facts below is based on the hearing testimony, the body-worn camera footage and other exhibits admitted at the hearing.

A. Law Enforcements' Interactions with Mr. Mangione at the McDonald's

On December 4, 2024, at 6:45 a.m., UnitedHealthcare CEO Brian Thompson was shot outside the company's annual investor conference at the New York Hilton Midtown. Mr. Thompson, who had been subject to previous threats, died at a local hospital approximately thirty minutes later.

Following the shooting, the NYPD released video of the shooting and pictures of the masked suspect to the public. Within hours of the shooting, law enforcement also disseminated to the media and the public that two of the discharged shell casings had the words "DENY" and "DEPOSE" inscribed on them, and that the word "DELAY" was inscribed on a bullet recovered at the scene.² The NYPD began a nationwide manhunt to search for the masked perpetrator and also enlisted the help of the public by posting a reward for information leading to his capture.

The testimony at the hearing was that, on the morning of December 9, 2024, employees and customers at a McDonald's in Altoona, Pennsylvania believed that a customer at the restaurant resembled the New York City shooter. At around 9:14 a.m., a McDonald's employee called Blair 911 to report that customers were suspicious of another customer that "looked like the CEO shooter from New York." (Ex. 5A: Blair 911 Call; Ex. 5C: Call for Service Detail Report, Hr. 65.) At 9:28 a.m., Patrolmen Joseph Detwiler and Tyler Frye of the Altoona Police Department responded to

²At the suppression hearing, Patrolman Stephen Fox incorrectly testified that the engravings on the shell casings stated "deny," "depote" and "defend." (Hr. 777-78.)

the McDonald's restaurant. (Hr. 178.) Patrolman Detwiler, a 14-year-veteran of the Altoona Police Department, had been familiar with videos and articles relating to the New York City shooter from watching *Fox News*. (Hr. 179–86.) Patrolman Frye, a rookie officer six months out of the academy, knew only a “small amount” about the New York City shooting. (Hr. 461.)

Arriving at the McDonald's, the patrolmen, both armed, in full uniform and displaying badges, approached Mr. Mangione at 9:29 a.m. as he sat at a table in the back of the restaurant. (Ex. 6A.1 at 09:29:12; Ex. 6B.1 at 09:29:12.) As pictured below, Mr. Mangione was sitting at a corner table with a wall behind him and to his left:



(Ex. 6A.1 at 09:29:12.)³

Patrolmen Detwiler and Frye positioned themselves to Mr. Mangione's right, blocking his only exit from the table as he was already surrounded by two walls and a table in front of him. (Ex. 6B.1 at 09:29:16.) Seconds after their arrival, they approached Mr. Mangione, both in uniform and

³The still photos embedded in this motion are screen shots from the police body-worn camera footage that was admitted as evidence at the hearing.

fully armed, and asked Mr. Mangione to pull down his face mask. (*Id.* at 09:29:13.) When Mr. Mangione lowered his mask, Patrolman Detwiler immediately “knew” that the man in the McDonald’s was the New York City shooter. (Hr. 197–98.) Patrolman Detwiler then asked Mr. Mangione for his name; Mr. Mangione responded that his name was “Mark” and “Mark Rosario.” (Ex. 6B.1 at 09:29:20.) Patrolman Detwiler told Mr. Mangione that someone had called the police because they thought he was suspicious. (*Id.* at 09:29:27.)

In response to Patrolman Detwiler’s request for identification, Mr. Mangione provided a New Jersey license in the name of Mark Rosario. (Ex. 6B.1 at 09:29:39.) When Patrolman Frye left the immediate area to verify the license number, Patrolman Detwiler asked Mr. Mangione if he was from New Jersey and whether he had been to New York recently. (Ex. 6A.1 at 09:29:48 – 09:30:00.) As Mr. Mangione prepared to eat his food, Patrolman Detwiler moved even closer to Mr. Mangione and asked him what he was doing in New York. (*Id.* at 09:30:11 – 09:30:18.) Before giving Mr. Mangione an opportunity to respond, Patrolman Detwiler asked him to stand up and put his hands on top of his head—while Detwiler simultaneously grabbed and lifted Mr. Mangione’s right wrist above his head. (*Id.* at 09:30:24 – 09:30:34.) As Patrolman Detwiler frisked Mr. Mangione, he asked Mr. Mangione why he was nervous. (*Id.* at 09:30:34.) Patrolman Detwiler frisked Mr. Mangione for more than fifteen seconds in front of Patrolman Frye and did not find any weapons or contraband on Mangione. (*Id.* at 09:30:34 – 09:30:51.) During the frisk, Patrolman Frye pinned the Mark Rosario ID to his uniform. (*Id.* at 09:30:36). Patrolman Detwiler then ordered Mr. Mangione to sit back down at the table. Mr. Mangione was cooperative and complied with every request. (*Id.* at 09:30:51 – 09:30:55.)

Patrolman Detwiler then directed Patrolman Frye to talk to Mr. Mangione, while Detwiler motioned for Frye to move physically closer to Mangione to reinforce Mangione’s inability to

leave. (Ex. 6A.1 at 09:30:56.) At Patrolman Detwiler's direction, Patrolman Frye assumed Detwiler's position blocking Mr. Mangione from leaving the table and exiting the McDonald's. (Ex. 6B.1 at 09:31:00.) Patrolman Frye moved next to Mr. Mangione at around 9:31 a.m. and never left that position for roughly thirty minutes. As Patrolman Frye effectively had Mr. Mangione in custody while he stood watch over him and blocked any potential exit, Patrolman Detwiler took the Mark Rosario ID from Frye and went outside to call Lieutenant Tom Hanelly. During this call, which took place two minutes after Patrolman Detwiler approached Mr. Mangione, Detwiler told Lieutenant Hanelly that he was "100% sure" that Mangione was the individual that law enforcement was looking for in connection to the December 4, 2024, shooting in New York. (Ex. 6A.1 at 09:31:38 – 09:31:57; Hr. 203.) Patrolman Detwiler asked Lieutenant Hanelly, "why don't you come out here." (Ex. 6A.1 at 09:31:59.)

Patrolman Detwiler returned to the back area of the McDonald's to further interrogate Mr. Mangione and asked if he was from New Jersey, what he was doing in Altoona and, again, whether he had been to New York recently. (Ex. 6A.1 at 09:32:08 – 09:33:11.) Even though Patrolman Detwiler had already concluded that Mr. Mangione was the New York shooter, he told Mr. Mangione, as a pretext for the police interaction, that they were there because Mr. Mangione had been at the McDonald's for too long. (*Id.* at 09:33:31 – 09:33:42.) Patrolman Detwiler also admittedly lied to Mr. Mangione by telling him that they would let Mr. Mangione leave the McDonald's once they verified his identity. (*Id.* at 09:33:22 – 09:33:28; Hr. 208.) Patrolman Frye remained in his strategic position blocking Mr. Mangione's exit as Patrolman Detwiler continued interrogating Mr. Mangione:



(Ex. 6A.1 at 09:36:32.)

At 9:35 a.m., Patrolman Detwiler again asked Mr. Mangione why he was in Altoona and where he was from. (Ex. 6B.1 at 09:35:00.) Patrolman Detwiler continued to lie to Mr. Mangione by telling him that he had been to the McDonald's six times in the last week for people staying too long at the restaurant. (Ex. 6A.1 at 09:36:02; Hr. 210, 382.) At 9:37:36 a.m., Patrolman Detwiler pinned the Mark Rosario ID to his uniform. (Ex. 6B.1 at 09:37:36.) As Patrolmen Detwiler and Frye waited for Lieutenant Hanelly to arrive, Detwiler continued to speak to Mr. Mangione and, at one point, began whistling along with the Christmas carols that were playing at the McDonald's. (*Id.* at 09:40:15.)

At 9:35 a.m., six minutes after Patrolmen Detwiler and Frye had arrived at McDonald's and four minutes after Hanelly received the call from Detwiler saying he was sure Mr. Mangione was the New York shooter, Lieutenant Hanelly called NYPD's 911 center on his way to the

McDonald's to "get the ball rolling" with the NYPD. (Ex. 14: Lieutenant Hanelly's Call Log; Hr. 1003.) One minute later, Lieutenant Hanelly called the NYPD's 911 center again and was still on the phone with them when he arrived at the McDonald's at 9:40 a.m. (Ex. 14; Hr. 1004.) Lieutenant Hanelly entered through the side door and immediately took the Mark Rosario ID from Patrolman Detwiler. (Ex. 6B.1 at 09:40:54 – 09:41:02.) Seconds later, more than twelve minutes after he had first approached Mr. Mangione, Patrolman Detwiler moved a backpack from the floor where Patrolman Frye had been blocking Mr. Mangione's path to an area far out of Mr. Mangione's reach. (Ex. 6A.1 at 09:41:08.) Sergeant Jon Burns, a supervisor at the Altoona Police Department, entered the McDonald's approximately thirty seconds later. (*Id.* at 09:30:35.) Almost immediately after entering, Sergeant Burns motioned to Patrolman Detwiler asking if he had frisked Mr. Mangione. (*Id.* at 09:41:49.) Patrolman Detwiler responded affirmatively that he had already frisked him. Sergeant Burns did not frisk Mr. Mangione himself or ask Patrolman Detwiler to frisk him a second time because he trusted that Detwiler "did [his] job correctly." (Hr. 1074.)

At 9:41:54 a.m., Corporal Garrett Trent arrived at the McDonald's. (Ex. 6A.1 at 09:41:54.) At that time, there were five officers in the back of the McDonald's near Mr. Mangione: Patrolman Detwiler, Patrolman Frye, Lieutenant Hanelly, Sergeant Burns and Corporal Trent. Neither Lieutenant Hanelly nor Sergeant Burns—the supervising officers at the scene—asked Patrolman Detwiler or Patrolman Frye to move the backpack further away from Mr. Mangione. (Hr. 1074.) Sergeant Burns explained at the hearing that he did not "feel the need to move the backpack from where it was" because there was no "immediate threat" as the bag "wasn't within reach of the defendant at the time and there was plenty of officers standing around." (Hr. 1075.) Sergeant Burns also noted that both Patrolmen Detwiler and Frye were standing between Mr. Mangione and the backpack. (*Id.*)

One minute later, two additional uniformed and armed officers entered the back area of the McDonald's where Mr. Mangione was being held: Patrolman Sam McCoy (Ex. 6A.1 at 09:42:35) and Patrolman Luke Yeager (*Id.* at 09:42:36.) At the same time, another officer, Corporal Bryan Miller, entered the McDonald's from the front entrance and walked to the back dining area where Mr. Mangione and the other officers were located. (Ex. 6G at 09:42:15.)

Patrolman Detwiler ordered Patrolman McCoy to take his place and stand next to Patrolman Frye (forming an armed human wall further trapping Mr. Mangione at the back of the restaurant). (Ex. 6A.1 at 09:42:38.) From a safety perspective, Lieutenant Hanelly was "content with how officers were around" Mr. Mangione and that Mr. Mangione was considered "detained" at that point. (Hr. 1006.)⁴ As Patrolmen Frye, Yeager and McCoy stood watch over Mr. Mangione, Patrolman Detwiler walked outside to talk with Lieutenant Hanelly, Sergeant Burns and Corporal Trent to confirm that Mr. Mangione fit the description of the New York suspect. (Ex. 6A.1 09:42:49.) Sergeant Burns testified at the hearing that he had no safety concerns with leaving Patrolmen Frye, Yeager and McCoy alone with Mr. Mangione because Mangione "had already been frisked for weapons" and the backpack "had been away from [Mangione's] immediate reach." (Hr. 1078.) Sergeant Burns further noted that Patrolmen Frye, Yeager and McCoy were "all trained officers capable of handling" Mr. Mangione. (*Id.*)

Patrolman McCoy approached Mr. Mangione and asked if he had any weapons on him. (Ex. 6B.1 at 09:42:49.) Patrolman McCoy asked Patrolman Frye if they had already patted him down. (*Id.* at 09:42:52.) After Patrolman Frye informed Patrolman McCoy that Patrolman Detwiler had frisked Mr. Mangione, McCoy did not frisk Mr. Mangione again. Patrolman McCoy asked

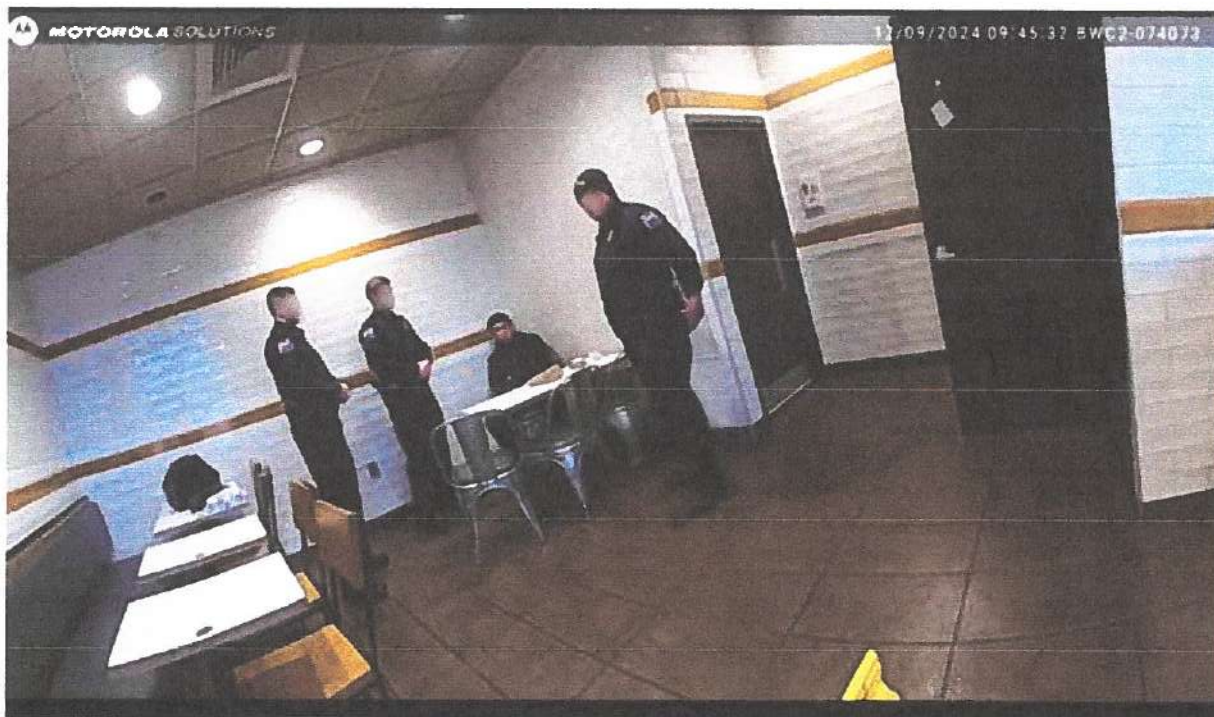
⁴Sergeant Burns acknowledged that a suspect could be considered detained even when he was not handcuffed, and that a suspect could be considered detained even without an officer informing the suspect that he was detained. (Hr. 1082.)

Mr. Mangione if the backpack and laptop near Patrolman Frye belonged to Mangione. (Ex. 6C at 09:42:55.) Mr. Mangione replied that they were his, as Patrolman McCoy moved the property to an adjacent table that was even further away from Mr. Mangione. (*Id.* at 09:42:57 – 09:43:06.) Patrolman McCoy then asked Mr. Mangione if he knew what “all this nonsense was about”; Mangione responded, “we will find out I guess.” (Ex. 6B.1 at 09:43:37 – 09:43:44; Hr. 1130.) Patrolman McCoy continued to interrogate Mr. Mangione, asking if he was soaking wet, if he had walked there and if he had a car. (*Id.* at 09:43:44 – 09:43:59.) In response to Patrolman McCoy’s questioning, Mr. Mangione replied that it was raining and stated that he was going to “let this all play out.” (*Id.*) While Patrolman McCoy searched through a CVS bag on the table in front of Mr. Mangione, Mangione stated, “Calling a couple more cars? This is a puffy jacket. I’m not very big.” (*Id.* at 09:44:04 – 09:44:09.) Patrolman McCoy then removed the CVS bag from Mr. Mangione’s table and placed it with the rest of his belongings. (*Id.* at 09:44:09 – 09:44:14.)

At this point, there were eight officers at the scene: Patrolman Frye, Patrolman McCoy, Patrolman Yeager and Corporal Miller were in the back of the McDonald’s, while Patrolman Detwiler, Lieutenant Hanelly, Sergeant Burns and Corporal Trent were talking right outside. A ninth officer, Patrolwoman Christy Wasser entered the back of the McDonald’s a few seconds later (Ex. 6C at 09:44:45),⁵ with a tenth officer, Patrolman Stephen Fox, entering a minute later. (Ex. 6E.1 at 09:45:45.) Given the police presence in the back of the McDonald’s at the time, Lieutenant Hanelly noted at the hearing that he believed by 9:43 a.m. that the scene “was under control” and the situation was “stable.” (Hr. 1001; *see also* Hr. 658–59 (Patrolwoman Wasser testifying that the situation was “totally under control” when she arrived at the McDonald’s.)

⁵Despite arriving at 9:44:45 a.m., Patrolwoman Wasser did not turn on her body-worn camera until she started searching Mr. Mangione’s backpack more than thirteen minutes later. (Ex. 6F.1 at 09:58:05.)

When Patrolman Detwiler reentered the McDonald's at 9:45 a.m., there were three patrolmen surrounding Mr. Mangione (Frye, Yeager and McCoy), and Mr. Mangione's backpack was approximately nine feet away on a table (Hr. 487), a distance that Lieutenant Hanelly testified at the hearing was "adequate" (Hr. 1009). Notably, two of the patrolmen (Frye and Yeager) were positioned directly between Mr. Mangione and the backpack:



(Ex. 6A.2 at 09:45:32.)

Given the distance between Mr. Mangione and the backpack, and the fact that officers were positioned between Mr. Mangione and the backpack, Sergeant Burns noted at the hearing that the scene was "safe" and that he felt secure that Mr. Mangione could not access the backpack. (Hr. 1079–80.)

At 9:45 a.m., Lieutenant Hanelly called the "turnkey officer" on duty, Patrolman Austin Homan, and asked him to run Mr. Mangione's "Rosario ID through NCIC." (Hr. 961.) At 9:46 a.m., with at least ten officers now on the scene, Lieutenant Hanelly asked Patrolman Detwiler if

he had read Mr. Mangione the false ID warnings required under Pennsylvania law. (Ex. 6A.2 at 09:46:46.) When Patrolman Detwiler responded that he had not, Lieutenant Hanelly told Detwiler to provide Mr. Mangione with the required warnings. (*Id.* at 09:46:57.) Patrolman Detwiler then walked over to Mr. Mangione and informed him that he was under official police investigation and that he would be arrested for “false ID” if he gave the police a false name again. (Ex. 6B.1 at 09:46:59 – 09:47:10.)

Still without reading Mr. Mangione his *Miranda* rights, Patrolman Detwiler continued interrogating Mr. Mangione by asking if his name was Mark Rosario, to which Mr. Mangione responded, “No, sir.” (Ex. 6B.1 at 09:47:10 – 09:47:14.) Patrolman Detwiler asked Mr. Mangione for his real name and his date of birth, which Mr. Mangione provided to Patrolman Frye. (*Id.* at 09:47:15 – 09:47:42.) Patrolman Fox asked Mr. Mangione twice why he lied about his name. (*Id.* at 09:47:43, 09:48:00.) In response to this questioning, Mr. Mangione responded, “clearly, I shouldn’t have.” (Ex. 6A.2 at 09:48:03.) At this time, there were ten officers surrounding Mr. Mangione and blocking his exit from the McDonald’s. At 9:48:13 a.m., Patrolman Frye also asked Mr. Mangione why he lied, to which Mr. Mangione responded that it was the ID he had in his wallet. (Ex. 6B.1 at 09:48:13). Patrolman Fox then asked if Mr. Mangione had a fake ID, and Mr. Mangione replied, “yes.” (Ex. 6B.1 at 09:48:22; 6A.2 at 09:48:25.)

At 9:48 a.m.—nearly twenty minutes after law enforcement first approached Mr. Mangione, prevented him from leaving, moved his property nine feet away from him and asked him numerous interrogation questions—Corporal Trent instructed Patrolman Stephen Fox to finally read Mr. Mangione his *Miranda* warnings. (Ex. 6G at 09:48:28.) After informing Mr. Mangione of his constitutionally protected right to remain silent, Patrolman Fox asked Mr. Mangione if he wanted to talk to law enforcement. (Ex. 6B.1 at 09:48:51.) Mr. Mangione exercised

his constitutional right to remain silent by first shaking his head “no,” and then stating, “no, I don’t think . . .”—clearly indicating that he did not want to speak to law enforcement. (*Id.* at 09:48:55 – 09:48:59.) Patrolman Fox told Mr. Mangione that he “was not in custody at this point” (*Id.* at 09:48:55), despite the fact that, at that moment, there were ten officers in the back of the McDonald’s where Mr. Mangione was sitting, they had already decided with 100% certainty that he was the shooter and he was clearly in custody and not free to leave.⁶ Despite Mr. Mangione exercising his right to remain silent, which Patrolman Fox had just told him was his right, Fox immediately continued to interrogate Mr. Mangione by asking why he had a fake ID. (Ex. 6E.1 at 09:49:33.) After Mr. Mangione responded for the second time that he was going to “remain silent” (*Id.* at 09:49:37), Patrolman Fox ordered Mangione to stand and put his hands on the wall so Fox could pat him down (*Id.* at 09:49:56), to which Mr. Mangione complied in all respects. Patrolman Fox asked Mr. Mangione if he had any weapons on him, to which he initially responded, “no” (*Id.* at 09:50:06). After Patrolman Fox frisked Mr. Mangione’s pockets and did not find anything, Mangione volunteered to Fox that he had a pocketknife in his right pocket.⁷ (*Id.* at 09:50:14.)

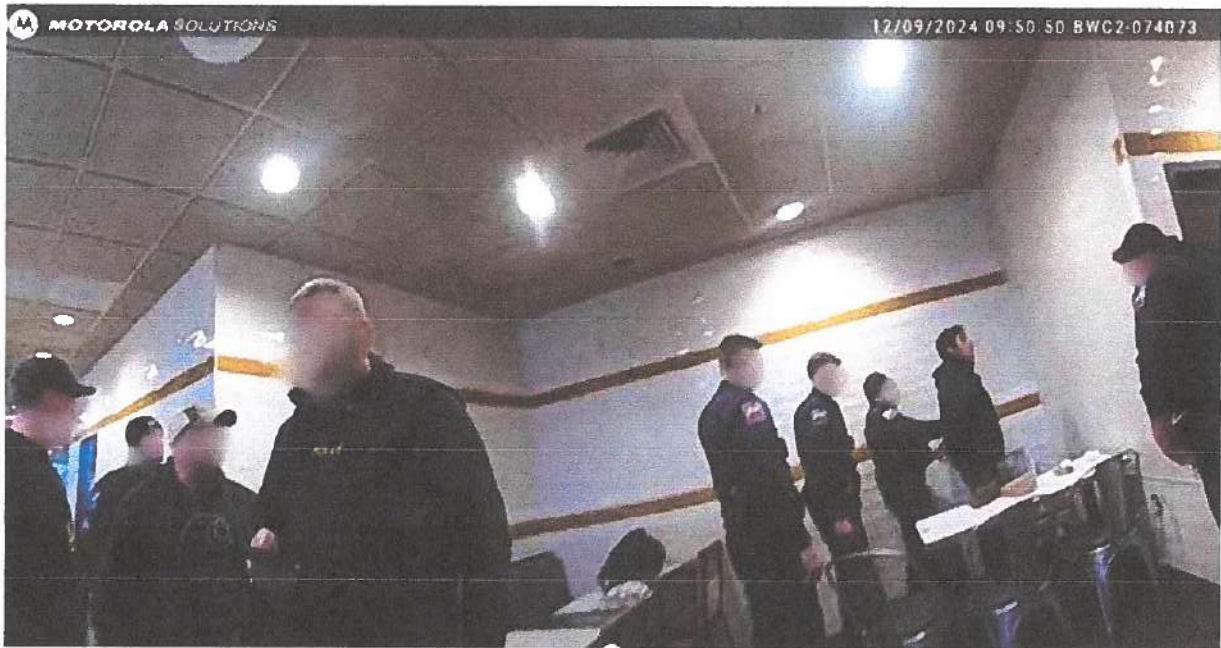
At 9:50 a.m., approximately ninety seconds after telling Mr. Mangione that he was not in custody despite being surrounded by officers, and after Mangione had been frisked twice, Sergeant Burns directed Patrolman Fox to handcuff and detain Mangione. (Ex. 6G at 09:50:32; Hr. 791–92, 1044.) Patrolman Fox put gloves on and then retrieved the pocketknife from Mr. Mangione’s pocket and placed it on the table where Mangione was standing. (Ex. 6C at 09:51:13 – 09:51:22.) Patrolman McCoy instructed Patrolman Fox to move the pocketknife to the adjacent table behind

⁶At the hearing, Lieutenant Hanelly testified that Mr. Mangione was already “detained at that point.” (Hr. 1006.)

⁷Multiple witnesses testified at the hearing that the knife was not illegal to carry in Pennsylvania. (Hr. 499, 866–67.)

the wall of officers where McCoy had placed Mangione's backpack nine minutes earlier. (Ex. 6B.1 at 09:51:26.)

Mr. Mangione remained standing, handcuffed and surrounded by officers as they waited to verify his identification:



(Ex. 6A.2 at 09:50:50.)

At 9:51:37 a.m., an investigator from the Pennsylvania Attorney General's Office, Agent Andrew Crist approached Mr. Mangione and took a photo of him, which he then sent to the FBI to run facial recognition on Mr. Mangione. (Ex. 6B.1 at 09:51:37; Hr. 1022.) At 9:52 a.m., Patrolman Fox accused Mr. Mangione of giving a fake name again because law enforcement was not getting a response on the name Luigi Mangione. (Ex. 6B.1 at 09:52:02.) Mr. Mangione stated that he provided the correct name, asked how Patrolman Frye had spelled his name and then

confirmed the proper spelling,⁸ his date of birth and that his ID was from Maryland. (*Id.* at 09:52:02 – 09:52:43.)

Mr. Mangione remained standing and handcuffed for the next six minutes while the Altoona Police Department reached out to the Blair County District Attorney's Office to decide how to proceed. (Hr. 969–72.) While waiting, Mr. Mangione asked why there were so many officers there. In response, Patrolman McCoy stated that there was “just a lot of people trying to figure it out.” (Ex. 6B.1 at 09:56:32.) At 9:53 a.m., Lieutenant Hanelly first called the Blair County District Attorney Pete Weeks but was unable to reach him and instead spoke with Assistant District Attorney Nichole Smith. (Ex. 14.) Lieutenant Hanelly explained the situation and asked ADA Smith whether it would be appropriate to charge Mr. Mangione with “tampering with records or identification.” (Hr. 550–51.) ADA Smith confirmed that the charge was appropriate and further advised Lieutenant Hanelly that a forgery charge was also justified. (*Id.*)

B. Mr. Mangione's Arrest and the Searches at the McDonald's

1. The Search of Mr. Mangione

At 9:57:53 a.m., Patrolman Detwiler approached Mr. Mangione to officially place him under arrest. (Ex. 6B.1 at 09:57:53.) Before starting to search Mr. Mangione, Patrolman Detwiler moved Mangione closer to the table where Mangione's backpack had been placed seventeen minutes earlier. (Ex. 6C at 09:57:57.) Patrolmen Frye and Yeager still remained between Mr. Mangione and the table with his backpack. (*Id.* at 09:58:01.) This closer distance between Mr. Mangione and the backpack did not concern Lieutenant Hanelly because he did not believe it was “plausible” that Mr. Mangione could access the bag while rear cuffed. (Hr. 1010.) Similarly,

⁸Patrolman Fox was unable to read Patrolman Frye's handwriting, which led to confusion about the proper spelling. However, body-worn camera footage and witnesses confirm that Mr. Mangione had given the proper spelling of his name and date of birth earlier.

Patrolman McCoy noted at the hearing that he was not concerned that Mr. Mangione could access his backpack while rear-cuffed and surrounded by officers who “had good body positioning.” (Hr. 1153–54.) At 9:58:07 a.m., Patrolman McCoy advised the Blair dispatch center to “mark [Mr. Mangione] in custody.” (Ex. 6C at 09:58:07.)

At 9:58:29 a.m., Patrolmen Detwiler, Frye and McCoy started searching through Mr. Mangione’s pockets and clothing. (Ex. 6C at 09:58:29.) From this search, the officers recovered a jar of peanut butter, a pouch with money, coins, gloves, papers, a hat and a rolled-up piece of string. (Hr. 254–55.) At 10:00:45 a.m., Patrolmen Detwiler and Frye removed Mr. Mangione from the McDonald’s to bring him to the precinct. (Ex. 6B.1 at 10:00:45.) On the drive to the precinct, Mr. Mangione asked Patrolman Frye and Patrolman Detwiler for their names and apologized for “wasting [their] time.” (Ex. 6A.3 at 10:02:57 – 10:03:14.)

2. The Search of Mr. Mangione’s Backpack

As Patrolman Detwiler approached to arrest Mr. Mangione, Patrolwoman Wasser simultaneously started walking over to search Mr. Mangione’s backpack. (Ex. 6B.1 at 09:57:53.) As established through the hearing testimony, by this time, law enforcement was confident that they had secured the back area of the McDonald’s and that the situation was under control. (*See, e.g.*, Hr. 1007 (Lieutenant Hanelly testifying that he “didn’t see a need” to clear the McDonald’s of the customers because he “had the situation under control”); Hr. 1079–80 (Sergeant Burns testifying that he felt the “[s]cene was safe at the point,” and that “there was plenty enough officers there to maintain scene security”); Hr. 1084 (Sergeant Burns testifying that the back of the McDonald’s was secure); Hr. 338 (Patrolman Detwiler testifying that, as of 9:48:50 a.m., the scene was “under control”).)

That law enforcement was in control of the area is further established by the fact that

officers allowed McDonald's employees and customers to walk through the back area of the McDonald's throughout the entire time Mr. Mangione was surrounded by officers. (Ex. 6B.1 at 09:32:10 (employee accessing closet), 09:39:38 (employee accessing closet), 09:43:21 (employee accessing closet), 09:45:13 (customer using bathroom), 09:48:51 (customer using bathroom), 09:53:11 (customer using bathroom), 09:54:24 (employee using bathroom); Ex. 6A.2 at 09:52:05 (Patrolman Detwiler walking a customer out the back entrance); *see also* Hr. 338 (Patrolman Detwiler testifying that he was not worried about customers using the bathroom because the "place was under control"); Hr. 1044 (Sergeant Burns testifying that "there were obviously a number of us, we were trying to secure that area but we're allowing people to utilize the restroom as well as enter and exit the door there to the right").) Nor did officers ever clear any part of the McDonald's of customers or employees the entire time they were there.

At 9:58:12 a.m., Patrolman Fox approached the table with the backpack and asked Mr. Mangione if there was anything in the bag that they needed to know about. (Ex. 6B.1 at 09:58:12; Hr. 804.) In response, Mr. Mangione stated that he would remain silent. (*Id.*) Notably, by the time Patrolman Fox asked Mr. Mangione that question, Patrolwoman Wasser had already put gloves on to begin the search of Mangione's backpack. (Ex. 6C at 09:58:00; Hr. 673.) Patrolwoman Wasser acknowledged that she had already intended to search the backpack even before hearing Mr. Mangione's response. (Hr. 673.)

At 9:58:25 a.m., Patrolwoman Wasser and Patrolman Fox began their warrantless search of Mr. Mangione's backpack. (Ex. 6C at 09:58:25.) As part of this search, Patrolwoman Wasser and Patrolman Fox opened Mr. Mangione's backpack and started searching the backpack, its compartments and its contents, including multiple closed bags and containers that were within the backpack—while Mangione stood handcuffed and surrounded by officers who were positioned

between Mangione and his backpack:



(Ex. 6D at 09:58:49.)

At the time of Mr. Mangione's arrest and the search of his backpack, there were 12 law enforcement officers in the back of the McDonald's: (1) Patrolman Detwiler; (2) Patrolman Frye; (3) Patrolman McCoy; (4) Patrolman Yeager; (5) Patrolman Fox; (6) Patrolwoman Wasser; (7) Corporal Miller; (8) Corporal Trent; (9) Sergeant Dusten Thompson; (10) Sergeant Burns; (11) Lieutenant Hanelly; and (12) Agent Crist from the Pennsylvania Attorney General's Office.⁹

⁹Agent Crist entered the McDonald's at 9:49:31 a.m., as shown on the McDonald's surveillance video. (Ex. 4B at 09:49:31.) Two additional officers from Altoona Police Department, Patrolmen Matthew Mazzara and Thomas Wendt, entered the McDonald's at 9:54:21 a.m., but left a few minutes later. (Ex. 6B.1 at 09:54:21.)



(Ex. 4C at 09:59:04.)

The hearing testimony established that, at the time of the backpack search, the officers had the entire area under control. (*See, e.g.*, Hr. 315, 320, 338 (Patrolman Detwiler testifying that they were “in control of the whole McDonald’s” as early as 9:30:38 a.m. and that he was “not worried about letting customers use the bathroom”); Hr. 658–59 (Patrolwoman Wasser testifying that the situation was “totally under control” when she arrived at the McDonald’s); Hr. 865–66, 874 (Patrolman Fox testifying that the back area was “controlled”); Hr. 1001, 1005, 1007, 1018, 1021 (Lieutenant Hanelly testifying that the scene was “stable” and completely “under control”); Hr. 1156 (Patrolman McCoy testifying that “when [they] got there [they] established control”).)

Moreover, Mr. Mangione had been compliant with law enforcement’s requests and had not caused any issues at the McDonald’s. (Hr. 320, 354–55 (Patrolman Detwiler testifying that Mr. Mangione was cooperative, was not “giving [him] a hard time,” and was not fighting or struggling); Hr. 521–22 (Patrolman Frye testifying that Mr. Mangione “never acted belligerent,” “didn’t argue with the police,” “didn’t fight with any officers,” “never reached for his backpack” and “[n]ever reached for the pocket knife in his pocket”); Hr. 886, 919–20 (“Patrolman Fox noting

that Mr. Mangione “was polite the whole time,” “was compliant,” “followed [his] instructions,” “was never belligerent,” “never argued,” “never reached for a bag” and “never reached for [his] pocket knife”); 1017–18 (Lieutenant Hanelly testifying that Mr. Mangione “was cooperative as the law requires him to be” and “was not combative”); Hr. 1078 (Sergeant Burns testifying that “there was no security concern” leaving Mr. Mangione with three junior officers even though he was not handcuffed because Mr. Mangione “was being compliant”); Hr. 1154–56 (Patrolman McCoy testifying that “[n]one of the actions [Mr. Mangione] took that day were frightening or made [him] fear for [his] life,” and that Mr. Mangione “never acted belligerent,” “was never combative,” “never argued with the police,” “didn’t fight with any officers,” “never tried to open his backpack,” “never reached for his backpack” and “never reached into his pocket to get a pocket knife”).)

At 9:58:50 a.m., just seconds after they opened the backpack, Corporal Trent approached Patrolwoman Wasser and Patrolman Fox and asked, “Why don’t we go through this back at the station?” while making a comment referencing “bombs.”¹⁰ (Ex. 6E.1 at 09:58:50.) Patrolwoman Wasser and Patrolman Fox briefly paused their search, and Patrolwoman Wasser responded, “I don’t know. That’s why we want to make sure there’s nothing in there that’s gonna . . .” (*Id.* 6E.1 at 09:58:54.) As Corporal Trent walked away, Patrolwoman Wasser and Patrolman Fox resumed their search of Mr. Mangione’s backpack. Though purportedly still concerned about a possible bomb, Patrolman Fox joked he would “rather have [a bomb] here than down at the station.” (*Id.* at

¹⁰Patrolwoman Wasser testified that Corporal Trent asked her “[a]bout taking the bag back to the station” but also told her to “check it for bombs.” (Hr. 587.) Corporal Trent’s full statement is unintelligible on the body-worn camera.

09:59:00.) Patrolwoman Wasser responded, laughing, “I don’t want to pull a Moser.”¹¹ (*Id.* at 09:59:04.)

At 9:59:05 a.m., Patrolman Fox pulled a red journal from the Eagle Creek pouch found within Mr. Mangione’s backpack and placed it on the table (Ex. 6E.1 at 09:59:05.) At 9:59:11 a.m., Patrolwoman Wasser recovered a waterproof bag (purported Faraday bag). (*Id.* at 09:59:11.) Just 15 seconds later, Patrolman Fox retrieved a small cardboard container from the backpack and struggled to slice it open with a knife. (*Id.* at 09:59:26.) When asked at the hearing whether he believed the cardboard contained a bomb, Patrolman Fox testified, “No” and that he believed it contained some “type of data chip.” (Hr. 893.)

At 9:59:30 a.m., Patrolwoman Wasser opened and then removed a cellphone and passport from the black waterproof bag found within Mr. Mangione’s backpack. (Ex. 6E.1 at 09:59:30.) Patrolwoman Wasser stated, “Got names in there,” as she handed the passport to Sergeant Bryan Miller (*Id.* at 09:59:35 – 09:59:40.) After receiving the passport, Corporal Miller, Corporal Trent and Sergeant Burns inspected its contents. (Ex. 6D at 09:59:48.) Like Patrolman Fox, Patrolwoman Wasser acknowledged at the suppression hearing that she did not believe there could be a bomb inside the small bag. (Hr. 679.) Nevertheless, she opened the bag and removed both the phone and passport inside before giving it to other officers. (Ex. 6E.1 at 09:59:24 – 09:59:39.)

At 9:59:44 a.m., fourteen seconds later, Patrolwoman Wasser removed and searched a second item, his wallet, that she again acknowledged she knew did not contain a bomb. (Hr. 687.) She took out and examined two of Mr. Mangione’s credit cards before returning them to the wallet and then to the black waterproof bag. (Ex. 6E.1 at 09:59:44.)

¹¹Patrolwoman Wasser testified that the phrase “pull a Moser” referred to an incident in which an Altoona police officer named Moser “brought a bomb back to [the] police station.” (Hr. 588.)

At 10:00:36 a.m., Patrolwoman Wasser found and removed a Chase envelope from Mr. Mangione's backpack (also too small to contain a bomb), which she examined before returning it to the backpack. (Ex. 6E.1 at 10:00:36.)

For more than one minute, Patrolman Fox continued cutting through the cardboard while supposedly searching for a bomb, despite acknowledging that he knew there was no bomb inside the cardboard. (Ex. 6E.1 at 10:00:51.)¹² At 10:00:51 a.m., Patrolman Fox finally sliced open and revealed the computer chip enclosed in the cardboard container. (*Id.*) The officers continued their warrantless search through Mr. Mangione's backpack at McDonald's even after he was removed from the restaurant by other officers and had been driven to the precinct. Both Patrolwoman Wasser and Patrolman Fox continued to indiscriminately rummage through the backpack and its contents, during which they recovered a gun magazine loaded with bullets wrapped in a pair of underwear. (*Id.* at 10:01:07.)

After Patrolwoman Wasser excitedly announced her discovery of the magazine to the other officers in McDonald's, Corporal Trent promptly stated, "Now that you've cleared it all, let's just go back to the station." (Ex. 6E.1 at 10:01:31.) Despite having just conducted an evidentiary search of the backpack—including searching items that she knew did not contain a bomb—Patrolwoman Wasser responded that she was "just making sure [there] wasn't a bomb or anything." (*Id.* at 10:01:33.) Echoing Corporal Trent, Patrolman Fox told Patrolwoman Wasser, "now that we found that [i.e., the magazine], let's just take it back." (*Id.* at 10:01:48.) Although she had not completed

¹²While Patrolwoman Wasser and Patrolman Fox were conducting their warrantless search of Mr. Mangione's backpack, Lieutenant Hanelly, at 10:01 a.m., was placing his third call to the NYPD 911 call center (Ex. 14.)

her “bomb search” of the backpack,¹³ Patrolwoman Wasser stopped searching and placed the items back into the bag. (*Id.* at 10:01:51.)

In addition to not calling for the bomb squad, evacuating the McDonald’s or fully searching the backpack for an explosive device, the officers’ lack of concern about a possible bomb was further evidenced when they began joking about it. At 10:01:37 a.m., Agent Crist joked about blowing up Sergeant Thompson and Patrolman Fox laughed about blowing up his K-9, Blue. (Ex. 6E.1 at 10:01:37 – 10:01:45.)

At 10:03:07 a.m., while still inside the McDonald’s, Patrolwoman Wasser, Patrolman Fox, Patrolman McCoy, Agent Crist, Sergeant Burns and Corporal Trent discussed whether they needed to obtain a search warrant before continuing their search of the bag. Patrolwoman Wasser again claimed that she searched the backpack “to make sure there’s no bombs.” (Ex. 6E.1 at 10:03:28.) In response, Corporal Trent stated that, “at this point, you’re probably gonna need to do a search warrant for [the backpack],” and instructed Patrolwoman Wasser and Patrolman Fox to “just leave” the backpack when they arrived at the station. (*Id.* at 10:03:30 – 10:03:44.) Sergeant Burns responded that Mr. Mangione was being arrested for a crime in Pennsylvania and that they could therefore search the backpack incident to arrest. (*Id.* at 10:03:43.) While Patrolman Fox agreed with Sergeant Burns, Corporal Miller echoed Corporal Trent’s sentiments, stating that they needed

¹³Patrolwoman Wasser testified that she looked and felt inside the backpack one more time and was satisfied that there was no bomb. (Hr. 592, 599–600.) It is unclear how Patrolwoman Wasser felt comfortable there was no bomb when she did not finish searching her section of the backpack, Patrolman Fox did not finish searching his section of the backpack and there was a third compartment of the backpack that no one had searched. (Hr. 697 (Patrolwoman Wasser admitting that she did not open the other compartments and that she did not even reach down to search the rest of the middle compartment she had been searching.) Moreover, Patrolwoman Wasser’s claim that she felt comfortable that she had sufficiently searched the backpack for a bomb is shown to be even more absurd given that, once at the precinct, Wasser found a silencer—an object the shape and size of a pipe bomb—in the very section where she had searched and then stopped searching.

to “get a search warrant” for the backpack. (*Id.* at 10:04:00.)

After this discussion, Patrolman Fox left the McDonald’s at 10:04:13 a.m. carrying a brown McDonald’s bag containing some of the contents of Mr. Mangione’s backpack, which he then placed in the back of his vehicle. (Ex. 6E.1 at 10:04:13 – 10:04:40.) Patrolwoman Wasser left the McDonald’s at the same time carrying Mr. Mangione’s backpack and told Patrolman Fox that she would see him at the station. (Ex. 6F.1 at 10:04:13.) Patrolwoman Wasser shut off her body-worn camera as she walked towards her car. Although she was about to start driving to the precinct, Patrolwoman Wasser kept wearing the disposable gloves that she had put on in order to search Mr. Mangione’s backpack. After Patrolwoman Wasser and Patrolman Fox left, Lieutenant Hanelly, Sergeant Burns, Corporal Miller, Sergeant Thompson, Corporal Trent and Agent Crist remained inside the McDonald’s. (Ex. 4B at 10:03:57 – 10:05:57.) At 10:06 a.m., while still there, Lieutenant Hanelly received a call from Deputy Chief Derrick Swope. (Ex. 4B at 10:06:04; Ex. 14.) At 10:09 a.m., Lieutenant Hanelly, Corporal Trent, Sergeant Burns, Agent Crist and Corporal Miller left the McDonald’s while Sergeant Thompson stayed behind to collect information from customers and a McDonald’s employee. (Ex. 4B at 10:09:07.)

C. The Searches at the Precinct

1. The Search of Mr. Mangione

Patrolmen Detwiler and Frye arrived with Mr. Mangione at the precinct at 10:10:28 a.m., taking them less than nine minutes to drive from the McDonald’s. (Ex. 6B.2 at 10:10:28; Hr. 354.) Both hearing testimony and camera footage confirm that this approximately nine-minute drive was at a normal speed, without lights and sirens and included stopping at one traffic light that took one minute and forty-one seconds before it turned green. In the intake area of the precinct, Patrolmen Frye and Homan processed Mr. Mangione’s arrest and inventoried the property they recovered

from his person. (Ex. 6B.2 at 10:12:01 – 10:20:40; Ex 6B.3 at 10:22:24 –10:25:42.) Mr. Mangione was shackled by his ankle with his hands uncuffed while he answered pedigree questions. (*Id.*) Mr. Mangione removed his extra layers of clothing as directed. Mr. Mangione was also strip searched before being taken to a cell. (Ex. 6B.3 at 10:26:54.)

2. The Search of Mr. Mangione's Backpack

After Patrolwoman Wasser left the McDonald's at 10:04:13 a.m., there is no body-worn or car camera footage from her for the next eleven minutes as Patrolwoman Wasser drove to the precinct with the backpack. When Patrolwoman Wasser arrived at the precinct at 10:15:07 a.m., she was still wearing the rubber gloves and had possession of both the backpack and the brown McDonald's bag that Patrolman Fox had placed in his car. (Ex. 6F.2 at 10:15:07.)¹⁴ As Patrolwoman Wasser exited her vehicle, she turned on her body-worn camera that she had shut off when leaving the McDonald's. (Hr. 715.)

At 10:15:37 a.m., Patrolwoman Wasser entered the precinct's intake area where Mr. Mangione was being processed by Patrolmen Frye and Homan. (Ex. 6F.2 at 10:15:37.) Patrolwoman Wasser set Mr. Mangione's backpack on a chair located in the corner of the precinct's intake area and placed the McDonald's bag on the floor nearby. (*Id.* at 10:16:06.) As depicted in the picture below, there was no room in this area for Patrolwoman Wasser to remove

¹⁴Patrolwoman Wasser testified at the hearing that she met Patrolman Fox on the way to precinct to retrieve the McDonald's bag from Fox because he was called back to the McDonald's. (Hr. 600–01.) Patrolwoman Wasser claimed that she could not remember how she communicated with Patrolman Fox to arrange this meeting (whether she radioed him or called him on his cellphone), what they said to each other during this communication arranging the meeting or whether they had any conversation when this transfer happened. (Hr. 712–14.) This interaction—for which there was no body-worn camera footage—lasted between 10–12 seconds (as per Patrolman Fox (Hr. 829)) or between about 30–40 seconds (as per Patrolwoman Wasser (Hr. 713)). Patrolwoman Wasser offered no explanation as to why it took her a full two minutes longer to arrive at the precinct than Patrolmen Detwiler and Frye.

all the items from the backpack and conduct an inventory search:



(Ex. 6F.2 at 10:16:03.)

At 10:16:08 a.m., one minute after arriving at the precinct, just as she knew the audio on her body-worn camera would begin recording,¹⁵ Patrolwoman Wasser continued her warrantless search of the backpack. Patrolwoman Wasser initially re-opened the same backpack compartment that she had already started searching at the McDonald's (but which she had never finished searching), before immediately closing that compartment while uttering something indecipherable—clearly indicating that she had mistakenly opened the wrong compartment. Patrolwoman Wasser then immediately opened the front compartment of the backpack as if she was specifically looking for something. (Ex. 6F.2 at 10:16:09.) Instantly, without having to search or rummage through the front compartment at all, she “found” a handgun in full view of her body-worn camera.

¹⁵Patrolwoman Wasser testified that “it takes a minute before the [body-worn camera] sound is activated.” (Hr. 689.)

After “finding” the gun at the precinct, allegedly for the first time, and moving the backpack and McDonald’s bag to a different location away from Mr. Mangione, Patrolwoman Wasser again explained to Deputy Chief Swope that she quickly searched the bag at McDonald’s to make sure there were “no bombs or anything” (Ex. 6F.2 at 10:17:00.) Patrolwoman Wasser did not explain why she did not seek a warrant once she had arrived at the precinct despite clear instructions from Corporal Trent and Corporal Miller (both of whom are her superiors) to do so.

Patrolwoman Wasser then continued to search the backpack at the precinct, on the floor of a hallway, without a warrant. The video and audio of this search clearly shows that this was not an inventory search; in fact, not only was she searching for evidence, Patrolwoman Wasser was specifically looking for Mr. Mangione’s identification which she initially could not find but continued to rummage around the backpack indiscriminately until she was able to locate it. As part of this search, Patrolwoman Wasser removed evidentiary items from the backpack and placed them in separate evidence bags, including the following¹⁶:

- A gun (Ex. 6F.2 at 10:18:04);
- A microchip (10:18:09);
- A cellphone and a Faraday bag (10:18:32);
- A silencer (10:19:26);
- The knife that Patrolman Fox removed from Mr. Mangione’s pocket (10:19:43);
- A gun magazine (10:22:18);
- A red journal (10:22:50);

¹⁶The hearing testimony established that members of the Altoona Police Department were in constant contact with the NYPD, and that they deemed all of Mr. Mangione’s property as “evidence” because this was a homicide investigation and everything was going to be surrendered to the NYPD.

- A USB (10:23:40);
- SIM cards (10:23:58);
- A camera (10:26:03); and
- A piece of paper with directions (10:27:46.)

After removing these items and placing them in separate evidence bags, Patrolwoman Wasser asked if she should “put this all back in,” referring to the other items that she had recovered from the backpack but had not yet separated as evidence. (Ex. 6F.2 at 10:28:19.) An officer replied that she should, and she then placed all the other items back into the backpack without taking any inventory of these items, which included a bag of toiletries (with some pills), batteries, items of clothing, masks and hair clips. At no point during this evidentiary search did Patrolwoman Wasser, Deputy Chief Swope, Sergeant Burns or any other Altoona officer who entered the area document or catalog the items being removed from or returned to the backpack.

At 10:25 a.m., Lieutenant Hanelly spoke for roughly fifteen minutes with NYPD officers and detectives and provided information regarding Mr. Mangione’s arrest, which included discussing evidence that had been recovered from Mangione. (Ex. 14; Hr. 981.) While on the phone with the NYPD, Lieutenant Hanelly missed a call from ADA Smith at 10:34 a.m. (Ex. 14; Hr. 981–82.)

At 10:26:54 a.m., Patrolman Frye and three additional officers escorted Mr. Mangione from the intake area to holding cell two. (Ex 6B.3 at 10:26:54.) At 10:31:12 a.m., Patrolman Frye returned to the intake area, where Patrolman Fox, Patrolman Homan, Sergeant Heuston, Patrolman George Featherstone and Sergeant Thompson were standing with the items recovered from Mr. Mangione’s person. (Ex. 6B.4 at 10:31:12.) At 10:32:11 a.m., as Patrolman Frye began placing the items found on Mr. Mangione’s person into a brown Lowe’s bag, Frye asked Patrolman Homan

whether he had documented “everything of evidentiary value.” (*Id.* at 10:32:11.) At the suppression hearing, Patrolman Frye testified that, notwithstanding the Altoona Patrol Guide’s explicit requirement that officers inventory all property, he was “only concerned about the evidence that was of an evidentiary nature” while he and Patrolman Homan placed Mr. Mangione’s items into evidence bags. (Hr. 518–19.)

At 10:33:52 a.m., while still in the intake area, Sergeant Heuston received a phone call from Sergeant Venios of the NYPD. (Ex. 6B.4 at 10:33:52; Hr. 1236.) Sergeant Heuston told Sergeant Venios that Mr. Mangione was “more likely than not [the CEO shooter],” stating they “found all kinds of goodies.” (6B.4 at 10:33:52–10:34:00.) Sergeant Hueston testified that by “goodies” he was referring to “evidence that [he] thought would help [the] NYPD in [their] case.” (Hr. 1237.) Sergeant Heuston informed Sergeant Venios that they recovered “a handgun, suppressor, [a] cellphone [] in a Faraday bag,” and “a checklist.” (Ex. 6B.4 at 10:34:04–10:34:25.) Sergeant Heuston stated that he was listing items “that appeared to be of evidentiary value” and that confirmed Mr. Mangione was “more likely than not” the shooter. (Hr. 1237.)

At 10:32:22 a.m., after completing her warrantless search of Mr. Mangione’s backpack in the hallway, Patrolwoman Wasser returned to the intake area of the precinct with the backpack, the McDonald’s bag and the Mark Rosario ID. (Ex. 6B.4 at 10:32:22.) At the hearing, Patrolman Featherstone testified that the backpack was then moved from the intake area “to a small office area down the hallway” of the precinct. (Hr. 1285.) Patrolman Featherstone stated that he, Patrolwoman Wasser and Sergeant Heuston later moved Mr. Mangione’s items (both the backpack and the items found on Mr. Mangione’s person) to his office once they realized that the original “room was not going to be sufficient for [them] to” conduct a search. (*Id.*) Patrolman Featherstone claimed that when Mr. Mangione’s items were brought to his office, “nothing was labeled” and

only “[s]ome items were placed inside envelopes essentially for transport, for storage, [and were] not really marked” while others were “still inside the backpack.” (Hr. 1286–87.)

At 10:45 a.m., Lieutenant Hanelly received a call from NYPD Lieutenant David Leonardi and informed him that Mr. Mangione had been placed under arrest for possession of the Mark Rosario fake ID. (Hr. 1406–07.) Based on the information Lieutenant Hanelly provided, Lieutenant Leonardi told Hanelly that “it’s possible that [Mr. Mangione] is [the NYPD’s] person of interest,” that he “would like no one to speak to [Mr. Mangione]” and that all of Mr. Mangione’s property should be held until Leonardi arrived in Altoona. (Hr. 1407.) At 10:58 a.m., Lieutenant Hanelly called ADA Smith. (Ex. 14.) One minute later, Lieutenant Hanelly received another phone call from Lieutenant Leonardi. (*Id.*) After speaking with Lieutenant Hanelly, Lieutenant Leonardi and his team left for Altoona, Pennsylvania. (Hr. 1406–07.)

Between approximately 10:30 a.m. and 10:40 a.m., all of Mr. Mangione’s belongings were gathered in Patrolman Featherstone’s office and Sergeant Heuston began taking photographs of the items. (Hr. 1232, 1287.) About halfway through the search, Mr. Mangione’s property was moved upstairs to the “roll call or training room to allow additional agencies to come in.” (Hr. 1293–94.) At approximately 10:46 a.m., Corporal Trent can be seen carrying the McDonald’s bag and backpack through the rear corridor of the precinct, followed by Patrolwoman Wasser, Sergeant Burns and Patrolman Fox. (Ex. H.) In the roll-call room, Patrolman Featherstone, Sergeant Burns and Sergeant Heuston continued documenting Mr. Mangione’s property.

Sergeant Heuston removed writings from Mr. Mangione’s journal and various envelopes, read the contents of the writings and photographed the writings to send them to the NYPD. Sergeant Heuston also photographed U.S. currency, a USB contained in a blue and black pouch, the Mark Rosario ID, a black wallet with U.S. currency, a SEPTA ticket, a Greyhound bus ticket,

a Visa gift card, a USB drive attached to a chain, foreign currency, sneakers, gloves, jackets, an orange hat, clothing, a U.S. passport, a Maryland driver's license, a backpack, a gun, a suppressor, magazines, a computer chip enclosed in cardboard, an Eagle Creek pouch, a black and white pouch and Mr. Mangione's red journal. (Ex. 8B.1–8B.39; Hr. 1287.) From the moment he became involved, Sergeant Heuston stated that he was “ultimately” helping the NYPD with their case. (Hr. 1235.) Though Sergeant Heuston claimed he “methodically” catalogued the property, he “read” and selectively photographed only certain pages of the journal and items collected from the backpack that he thought were “crucial to [the NYPD’s] investigation.” (Hr. 1234–35, 1238; *see also* Hr. 1234–35 (Sergeant Heuston testifying that he “read part of the journal” and only “photographed” the pages “that appeared pertinent to the NYPD’s investigation.”) At approximately 12:15 p.m., Sergeant Heuston emailed the photos he took of Mr. Mangione’s belongings to NYPD detectives, including photographs of the writings contained in the red journal. (Hr. 1234.) Similarly, Lieutenant Hanelly sent photos of the journal, laptop, cell phone and other belongings recovered from Mr. Mangione to Detective Gunn and other NYPD detectives via text and email. (Hr. 1012–16.)

Around 1:19 p.m., Sergeant Burns took additional photos of the seized property. (Hr. 1100–02.) Of the 172 photos that Sergeant Burns took, the majority depicted the writings from Mr. Mangione’s journal. (Hr. 1101.) As Sergeant Burns was flipping through, he testified that he read some of the journal “just out of curiosity” and saw pages “labeled blog” and others with “miscellaneous writings.” (Hr. 1101–02.) Like Sergeant Heuston, Sergeant Burns stated that he was not taking “pictures of the journal for the purposes of the Altoona forgery case,” but was instead taking them for “the New York City investigation [of] the shooting.” (Hr. 1102–03; *see also* Hr. 1103 (Sergeant Burns testifying that he was taking pictures for “what may be relevant to”

the New York City investigation).) Sergeant Burns later provided the photographs to the FBI, Homeland Security and Pennsylvania State Police. (Hr. 1108.) Again, Sergeant Burns stated that providing the photos to various law enforcement agencies had “nothing to do with the Altoona forgery investigation” and everything to do with “the New York City investigation into the shooting” (*Id.*) Further, Sergeant Burns confirmed that “all these pictures, all these searches were done before and without any search warrant.” (*Id.*)

At 4:40:20 p.m., Sergeant Dusten Thompson escorted Mr. Mangione from holding cell two to an interview room in the precinct where he met with ADA Joel Seidemann, Detective Oscar Diaz and Detective James Curcio. (Ex. 6I at 16:40:20.) After reading Mr. Mangione his *Miranda* warnings at 4:40:53 p.m., ADA Seidemann, Detective Diaz and Detective Curcio attempted to question Mr. Mangione for approximately five minutes before exiting the interview room at 4:46:06 p.m., leaving Mr. Mangione alone until 4:59:29 p.m. (*Id.* at 16:40:53 –16:59:29.) Although there were no law enforcement personnel in the room, officers continued to surreptitiously record Mr. Mangione in the room alone even though Pennsylvania is a two-party recording state.¹⁷ (Hr. 1433–34.) Mr. Mangione was then returned to his holding cell.

Over seven hours after the warrantless search of Mr. Mangione’s backpack, the Altoona Police Department finally sought a search warrant at 5:14 p.m., which Sergeant Heuston prepared and ADA Smith approved. (Ex. 12A; Hr. 564.) This warrant application sought permission for the NYPD to seize Mr. Mangione’s backpack and other belongings from Altoona law enforcement. The following day, Sergeant Heuston prepared a second search warrant to allow the NYPD to seize Mr. Mangione’s clothes, which DA Pete Weeks approved at 12:07 p.m. (Ex. 12B.)

¹⁷The District Attorney’s Office had originally informed counsel that it intended on using Mr. Mangione’s statements while alone in the interview room at trial. The prosecutors withdrew their statement notice after this testimony revealed the illegal nature of the recording.

At 5:33:08 p.m., Patrolman Frye and Patrolman Fox escorted Mr. Mangione from the Altoona police precinct to the Blair County Courthouse for his preliminary arraignment. (Ex. 6B.5 at 17:33:08 p.m.) During the drive, Mr. Mangione commented that Altoona is a “nice town” and that the McDonald’s on Plank Road was a “community center.” (Ex. 6E.2 at 05:38:16 – 05:38:40.) Patrolman Frye, Patrolman Fox and Mr. Mangione arrived at the courthouse at 5:50:09 p.m. for his 6:30 p.m. appearance. (Ex 6B.5 at 17:50:09; Hr. 557.) In the courthouse, Patrolman Fox alleged that Mr. Mangione stated, “All of these people here defending a mass murderer, that’s wild,” referring to the reporters at the courthouse.¹⁸ (Hr. 831–32, 917–18.) After the arraignment, Mr. Mangione was taken to The State Correctional Institution in Huntingdon (“SCI Huntingdon”), located approximately forty-five minutes from the Blair County Courthouse. (Hr. 566.)

From December 9, 2024, to December 19, 2024, Mr. Mangione was housed at SCI Huntingdon under constant watch. (Ex. 15: Mangione Monitoring Form; Hr. 81–82.) Corrections Officer Thomas Rivers testified that they were required to complete “a close watch form where [they wrote] down [Mr. Mangione’s] physical movements approximately seven times an hour.” (*Id.*) While observing Mr. Mangione, corrections officers sat approximately two meters away from his cell. (Hr. 136.) Corrections Officer Matthew Henry was tasked with monitoring Mr. Mangione on December 10, 11, 12 and 13, 2024. (Hr. 135–36.) C.O. Henry testified that on December 10, 2024, Mr. Mangione “blurted” out statements to him, without any prompting or questioning. (Hr. 147.) C.O. Henry stated that Mr. Mangione told him about the foreign currency, the 3D printed pistol found in his backpack, that he was being accused of being a foreign agent, that he was arrested in McDonald’s by one older and one younger officer and that he was a software engineer. (Hr. 136–38, 147.) According to C.O. Henry, Mr. Mangione volunteered all this information

¹⁸There is no body-worn camera footage of this alleged statement. (Hr. 917.)

without C.O. Henry initiating, responding to or participating in the conversation in any way. (*Id.*) Further, C.O. Henry stated he did nothing to “memorialize” what Mr. Mangione said—he did not write anything down, make a recording or note it in his phone—despite knowing that Mr. Mangione was a suspect in a gun-related murder case in New York City. (Hr. 149–51.) C.O. Henry testified that he could not recall any other conversations with Mr. Mangione on December 11, 12, or 13, 2024. (Hr. 138–39.)

On December 16, 2024, Corrections Officer Rivers monitored Mr. Mangione between approximately 1:30 p.m. and 9:30 p.m. (Hr. 86, 94.) C.O. Rivers testified that, during that time, Mr. Mangione talked about his travels, different mental states “within third world countries compared to the west” and asked C.O. Rivers his opinion on healthcare (Hr. 87–89.) C.O. Rivers stated that he could not recall who initiated the conversation about healthcare or “specifically remember” what he said to Mr. Mangione, but that he did offer his opinion on the differences between private and naturalized healthcare. (Hr. 88–89.) Towards the end of his shift, C.O. Rivers claimed that Mr. Mangione asked him about his public perception on mainstream media versus social media. (Hr. 89–90.) In addition, C.O. Rivers claimed that Mr. Mangione made comments about being compared to Ted Kaczynski but could not recall any details about how Kaczynski was brought up. (Hr. 90–91.) C.O. Rivers also testified that Mr. Mangione asked to make a public statement and asked about the media’s focus on the case. (Hr. 91–92.)

C.O. Rivers testified that, the following day, December 17, 2024, he was assigned to monitor Mr. Mangione again. (Hr. 94–95.) C.O. Rivers stated that he and Mr. Mangione discussed literature, including authors Orwell, Huxley and Thoreau, and that Mr. Mangione recommended *The Doors of Perception* by Huxley. (Hr. 95.) At some point, C.O. Rivers stated that Mr. Mangione brought up American health and that they discussed the standard of health “among American

citizens and compared them to Europeans.” (Hr. 96.) Like C.O. Henry, however, C.O. Rivers did not take any notes or write down any part of their many conversations, except for the book recommendation of *The Doors of Perception*. (Hr. 127.)

III. ARGUMENT

A. All Evidence Recovered from Mr. Mangione’s Backpack Must Be Suppressed Because Law Enforcement Failed to Obtain a Search Warrant Before Searching the Backpack

1. Legal Standard

i. New York Law Applies

Although the statements and evidence that Mr. Mangione seeks to suppress were obtained by Altoona law enforcement in the Commonwealth of Pennsylvania, Mr. Mangione is being prosecuted in New York State for a crime that he allegedly committed in New York. Under these circumstances, there can be no doubt that New York is the forum state. Accordingly, New York law applies to the suppression issues in this case because New York “has a paramount interest in the application of its law” where it is the forum state. *See, e.g., People v. Espinal*, 161 A.D.3d 556, 557 (1st Dep’t 2018) (“We find it unnecessary to decide any questions of New Jersey search and seizure law, because we find that New York law governs the issues raised here. Suppression issues, including those arising out of a defendant’s constitutional rights, are generally governed by the law of the forum, and New York has a paramount interest in the application of its laws to this case.” (quotation omitted)); *People v. Lerow*, 70 A.D.3d 66, 70 (4th Dep’t 2009) (“We note at the outset that the People are correct that New York law applies to the administration of defendant’s blood test because procedural and evidentiary issues are governed by the law of the forum state, and New York has a paramount interest in the application of its laws to this case.” (citations and quotations omitted)); *People v. Johnson*, 303 A.D.2d 903, 904 (3d Dep’t 2003) (applying New

York law in a criminal case pending in New York because “procedural and evidentiary issues are governed by the law of the forum”); *People v. Sebelist*, 206 A.D.2d 901, 901 (4th Dep’t 1994) (“County Court properly concluded that New York law applies to the custodial interrogation of a 16-year-old Pennsylvania resident conducted by members of the New York State Police in a Pennsylvania police station concerning the suspect’s involvement in a homicide committed in New York.”); *People v. Ostas*, 179 A.D.2d 893, 894 (3d Dep’t 1992) (“Although defendant’s oral statement was taken in Indiana by Indiana police officers, it was to be used in a New York criminal proceeding generated by a violent crime committed in New York; hence, New York has a paramount interest in applying its laws.”); *People v. Benson*, 88 A.D.2d 229, 231 (1982) (“Traditionally, procedural and evidentiary issues are governed by the law of the forum.”).

ii. Legal Standard for Searches Incident to a Lawful Arrest in New York

The Fourth Amendment protects individuals from unreasonable searches and seizures by the government. U.S. Const. amend. IV. Building on the Fourth Amendment’s protections, the New York Court of Appeals has ruled that “[a]ll warrantless searches presumptively are unreasonable per se, and, thus, where a warrant has not been obtained, it is the People who have the burden of overcoming this presumption of unreasonableness.” *People v. Jimenez*, 22 N.Y.3d 717, 721 (2014) (quotations and alterations omitted); *see also People v. Jenkins*, 24 N.Y.3d 62, 64 (2014) (“[S]ubject only to carefully drawn and narrow exceptions, a warrantless search of an individual’s home is per se unreasonable and hence unconstitutional.”).

While New York courts have accepted a search conducted by law enforcement “incident to a lawful arrest” as an exception to the warrant requirement, the prosecution must first satisfy two separate requirements: “The first imposes spatial and temporal limitations to ensure that the search is not significantly divorced in time or place from the arrest. The second, and equally

important, predicate requires the People to demonstrate the presence of exigent circumstances.” *Jimenez*, 22 N.Y.3d at 721–22; *see also People v. Gokey*, 60 N.Y.2d 309, 312 (1983) (“Under the State Constitution, an individual’s right of privacy in his or her effects dictates that a warrantless search incident to arrest be deemed unreasonable unless justified by the presence of exigent circumstances.”).

The exigent circumstances requirement for searches incident to a lawful arrest specifically applies when law enforcement searches closed containers. *Jimenez*, 22 N.Y.3d at 719 (“In the context of warrantless searches of closed containers incident to arrest, the People bear the burden of demonstrating the presence of exigent circumstances in order to invoke this exception to the warrant requirement.”). When addressing the exigency requirement for a warrantless search incident to a lawful arrest of property within the defendant’s “immediate control” or “grabbable area,” the Court of Appeals has recognized “two interests that may justify the warrantless search of that property incident to a lawful arrest: the safety of the public and the arresting officer; and the protection of evidence from destruction or concealment.” *Gokey*, 60 N.Y.2d at 312; *People v. Morales*, 126 A.D.3d 43, 45 (1st Dep’t 2015) (“The Court of Appeals has recognized two interests underlying the exigency requirement: the safety of the public and the arresting officer, and the protection of evidence from destruction or concealment.”); *People v. Julio*, 245 A.D.2d 158, 158 (1st Dep’t 1997) (“A bag that is within the immediate control or grabbable area of a suspect at the time of his arrest may not be subjected to a warrantless search incident to arrest unless the circumstances leading to the arrest support a reasonable belief that the suspect may gain possession of a weapon or be able to destroy evidence.”).

Nevertheless, because the search incident to a lawful arrest exception to the warrant rule requires exigency,

a container may not be searched for a weapon or evidence if it is apparent that it is so securely fastened that the person arrested cannot quickly reach its contents or the person arrested makes unmistakably clear that he will not seek to reach the contents or the container is so small that it could not contain a weapon or evidence of the crime.

People v. Smith, 59 N.Y.2d 454, 458 (1983) (citations omitted) (ruling that the police did not need a warrant where, “[a]t the time of arrest defendant was holding the briefcase in his hand; its contents were, therefore, readily accessible to him and it was of sufficient size to contain a weapon.”).

Similarly, “even a bag within the immediate control or grabbable area of a suspect at the time of his arrest may not be subjected to a warrantless search incident to the arrest, unless the circumstances leading to the arrest support a reasonable belief that the suspect may gain possession of a weapon or be able to destroy evidence located in the bag.” *People v. Jimenez*, 22 N.Y.3d at 722; *People v. Washington*, 171 A.D.3d 458, 459 (1st Dep’t 2019) (“We find that the trial court should have suppressed the 12 inch knife recovered by the police during a warrantless search of defendant’s bag. Although at the time of the search the bag was on the floor within the ‘grabbable area’ next to defendant, he was standing with his arms handcuffed behind his back. These circumstances do not support a reasonable belief that the defendant could have either gained possession of a weapon or destroyed evidence located in the bag.” (internal *Gokey* citation omitted)); *People v. Houston*, 143 A.D.3d 737, 738–39 (2d Dep’t 2016) (suppressing evidence recovered from the warrantless search of the defendant’s briefcase that he placed on a parked car when he surrendered because, even though the police had found a loaded gun on the defendant’s jacket pocket when they arrested him, the police failed to establish exigent circumstances to search

the brief case).¹⁹

Moreover, a search incident to a lawful arrest is not justified, and suppression is proper, when the defendant's backpack is "not within the defendant's immediate control or grabbable area at the time he was arrested." *See, e.g., People v. Thompson*, 118 A.D.3d 922, 924 (2d Dep't 2014) (suppressing a semi-automatic gun recovered from the defendant's backpack because the search "was not justified as a search incident to a lawful arrest," as the "backpack was not within the defendant's immediate control or 'grabbable area' at the time he was arrested"); *People v. Diaz*, 107 A.D.3d 401, 401 (1st Dep't 2013) (warrantless search of the defendant's backpack was unlawful because the defendant was handcuffed at the time of the search and it was no longer in his control); *People v. Julio*, 245 A.D.2d 158, 158 (1st Dep't 1997) (warrantless search of the defendant's bag was unlawful where it was in the exclusive control of the police and the defendant was unable to reach it because he was handcuffed and surrounded by police officers).

People v. Morales, 126 A.D.3d 43 (1st Dep't 2015) is particularly instructive. There, the police responded to a 911 call of a suspicious man inside a restaurant who appeared to be trying to steal from women's purses. After exiting the restaurant with the police, the defendant placed both of his hands in his jacket pockets, leading to a struggle between the officers and the defendant when the defendant refused to remove his hands from his jacket pockets. The seven officers at the scene subdued the defendant, handcuffed him and placed him in a police car. While the defendant

¹⁹*Cf. People v. Velez*, 154 A.D.3d 527, 528 (1st Dep't 2017) (finding exigent circumstances to search the defendant's wallet even though the defendant was handcuffed because the wallet "was within his grabbable area and had not been reduced to the exclusive control of the police" and because "the officers had reason to suspect that [the wallet] might contain a weapon, because defendant had been arrested for robbery, a violent crime, and the officers had already recovered one razor blade from defendant."); *In re Michael H.*, 161 A.D.3d 459, 460 (1st Dep't 2018) (denying suppression where "the bag was in appellant's grabbable area, and the police opened the bag almost simultaneously with handcuffing appellant").

sat handcuffed in the back seat, officers searched his jacket that had fallen onto the trunk of the police car during the altercation and found drugs and a box cutter.

In reversing the lower court and dismissing the indictment, the First Department found that “at the time of the search, the jacket was not within defendant’s grabbable area, and there were no exigent circumstances justifying a warrantless search of the jacket incident to arrest.” *Id.* at 44. While the defendant had struggled with the police earlier, the First Department noted that the defendant was subdued at the time of the search and that “the scene at the time of the search was police-controlled.” *Id.* at 47.

Notably, in suppressing the evidence, the First Department rejected the dissenting judge’s argument that the search “was justified because the jacket may have contained a loaded gun that would endanger the police and the public” because, “even if there had been a legitimate concern, at some earlier time during the encounter between defendant and the police, that defendant might retrieve a weapon from the jacket, that possibility no longer existed at the time the police conducted the search.” *Id.* at 48. The First Department further noted how the dissent’s argument was not consistent with New York case law:

Taken to its logical conclusion, the dissent is arguing that an exigency that may have existed earlier in the encounter allowed the police to search the jacket, even where the jacket was in the exclusive control of the police. That view, if accepted, would run afoul of Court of Appeals jurisprudence and would eviscerate the grabbable area doctrine.

Id.; see also *id.* at 48–49 (“The dissent would extend this doctrine and hold that whenever there is the possible presence of a weapon, the police can search a container to protect themselves, even if it is nowhere near the suspect’s grabbable reach. Such a conclusion finds no support in this state’s jurisprudence on searches incident to arrest.”).

iii Legal Standard for Inventory Searches in New York

“An inventory search is exactly what its name suggests, a search designed to properly catalogue the contents of the item searched.” *People v. Johnson*, 1 N.Y.3d 252, 256 (2003); *see also People v. Douglas*, 40 N.Y.3d 385, 389 (2023) (“An inventory search is ‘a search designed to properly catalogue the contents of the item searched.’” (quoting *Johnson*)). “As the Supreme Court has stated, ‘an inventory search must not be a ruse for a general rummaging in order to discover incriminating evidence.’” *Johnson*, 1 N.Y.3d at 256 (quoting *Florida v. Wells*, 495 U.S. 1, 4, (1990); *see also People v. Walker*, 20 N.Y.3d 122, 127 (2012) (noting that police do not have “carte blanche to conduct any search they want and call it an “inventory search.”). Rather, “[b]ecause a warrant based on probable cause is not required to execute an inventory search, any inventory search must ‘be conducted according to a familiar routine procedure.’” *Douglas*, 40 N.Y.3d at 389 (quoting *People v. Galak*, 80 N.Y.2d 715, 719 (1993)). This procedure “must be designed to meet three specific objectives: “to protect the property of the defendant, to protect the police against any claim of lost property, and to protect police personnel and others from any dangerous instruments.” *Douglas*, 40 N.Y.3d at 389. Moreover, the “protocol must limit the discretion of the officer in the field.” *Id.* (quotations omitted).

The People carry the burden to “establish the validity of the protocol itself—specifically, that the procedure meets those three objectives and sufficiently limits the discretion of searching officers.” *Id.* In addition, the People “must also demonstrate that these “particular officer[s] conducted this search properly and in compliance with established procedures.” *Id.* (quoting *Johnson*, 1 N.Y.3d at 256).

Importantly, to be a valid inventory search, “the People are required to establish that the search actually produced “a meaningful inventory list.” *People v. Gomez*, 50 A.D.3d 407, 408 (1st

Dep't 2008) (quoting *Johnson*, 1 N.Y.3d at 256 (noting that “the hallmark of an inventory search” is “a meaningful inventory list”); *see also Galak*, 80 N.Y.2d at 720 (“An inventory search is justified by the fact that a detailed and carefully recorded inventory protects the seized property while it is in police hands and insures against claims of loss, theft or vandalism.”)).

2. Law Enforcement’s Search of Mr. Mangione’s Backpack at the McDonald’s was not a Valid Search Incident to a Lawful Arrest

At the suppression hearing, the Altoona police officers claimed that their search of Mr. Mangione’s backpack at the McDonald’s was authorized as a valid search incident to a lawful arrest. (*See, e.g.*, Hr. 595–96 (Patrolwoman Wasser testifying that both Sergeant Burns and Patrolman Fox stated that no warrant was necessary because law enforcement could search Mr. Mangione’s backpack at the McDonald’s as a search incident to arrest); Hr. 754 (Patrolwoman Wasser stating that she had a right to search the backpack under Pennsylvania law as a search incident to a lawful arrest); Hr. 808 (Patrolman Fox testifying, “Every arrest I make is a search incident to arrest whether it is the person or a bag that they have on their person or another person,” and that he never sought a search warrant before searching a bag”); Hr. 905 (Patrolman Fox testifying, “I understand where they were coming from, but we did not need a search warrant. It was search incident to arrest, a search warrant was not needed.”); Hr. 1050 (Sergeant Burns stating that law enforcement was authorized to search the backpack because it was a search incident to a lawful arrest).)

This argument fails under New York law, however, because a search incident to a lawful arrest is limited to items “within the defendant’s immediate control or ‘grabbable area’ at the time he was arrested.” *People v. Thompson*, 118 A.D.3d 922, 924 (2d Dep’t 2014); *see also People v. Morales*, 126 A.D.3d 43 (1st Dep’t 2015), *People v. Diaz*, 107 A.D.3d 401, 401 (1st Dep’t 2013) and *People v. Julio*, 245 A.D.2d 158, 158 (1st Dep’t 1997), all cited above.

As is demonstrated from the body-worn camera footage of multiple officers, law enforcement moved Mr. Mangione's backpack outside of his immediate control approximately seventeen minutes before he was arrested. Moreover, at the time of the search, Mr. Mangione was rear cuffed and separated from his backpack by at least five officers, with another seven officers in the immediate area in the back of the McDonald's. Notably, at least three of the officers at the back of the McDonald's (Lieutenant Hanelly, Patrolman Yeager and Patrolman McCoy) were noticeably bigger in size than Mr. Mangione. (See Hr. 996 (describing Lieutenant Hanelly as six-foot-five); 1076 (describing Patrolman Yeager as six-foot); 1143 (describing Patrolman McCoy as six-foot).)

That the backpack was not in Mr. Mangione's immediate control at the time of his arrest was further established by the testimony of Altoona officers at the suppression hearing. For example, Lieutenant Tom Hanelly—the highest-ranking law enforcement member at the McDonald's where Mr. Mangione was arrested—testified that he did not tell officers to move Mr. Mangione further away from his backpack at the time of the search because he did not believe it was plausible that Mr. Mangione could access his backpack while rear cuffed and surrounded by officers:

- Q. And Mr. Mangione was formally arrested and searched ultimately by Officers Frye and Detwiler, correct?
- A. Yes.
- Q. And at the time that he was formally arrested and taken into custody, Officers Frye and Detwiler searched Mr. Mangione, did a more in-depth search of his, of his clothing, correct?
- A. Yeah, they removed his outer layers of clothing to conduct a more thorough search.
- Q. And at that time you did not tell anyone to move the backpack further away from Mr. Mangione while they were conducting that search, correct?
- A. That is correct.
- Q. And you didn't tell Officers Frye and Detwiler to move Mr. Mangione away from the backpack and do the search elsewhere, right?
- A. Correct.

- Q. Because you had no concern that he could access it, correct?
 A. Yeah, I didn't think that was plausible.
 Q. Because he was cuffed and he was rear-cuffed, correct?
 A. He had been cooperative up till that point.
 Q. And he was in handcuffs, correct?
 A. He was in handcuffs, yes.

(Hr. 1010.)

Similarly, Sergeant Jon Burns—the second-highest ranking law enforcement officer at the McDonald's—testified that Mr. Mangione was not in control of his backpack at the time of the arrest and search:

- Q. At the moment when Officers Wasser and Fox were going through the backpack, Mr. Mangione was not in control of his backpack, was he?
 A. That is correct.
 Q. He wasn't holding it, right?
 A. No.
 Q. In fact, he was handcuffed, so he couldn't reach it, right?
 A. Yes.
 Q. And there are officers between him and the backpack, right?
 A. Yes.

(Hr. 1088.)

Another officer, Patrolman Samuel McCoy, started searching Mr. Mangione at the time of his arrest. As with Lieutenant Hanelly and Sergeant Burns, Patrolman McCoy also testified that Mr. Mangione was separated from his backpack and surrounded by officers at the time of his arrest and the search:

- Q. And at the time when Mr. Mangione is being searched, it is you, Detwiler and Frye searching him, correct?
 A. Yes.
 Q. There's Fox and Wasser doing the backpack, correct?
 A. Yes, sir.
 Q. And these other officers that you mentioned, Hanelly, Crist, Burns, Trent, Miller, they are all in that area, correct?
 A. I believe they are still at the McDonald's, yes.
 Q. At this point, again, he is rear-cuffed, right?
 A. Yes. It is our policy that unless it is a female that is actively pregnant, they are to be cuffed behind their back.
 Q. And there are several officers around him, correct?

- A. Yes, sir.
Q. So you weren't concerned that Mr. Mangione was going to kick off his sneakers, evade the officers and try to open up the backpack with his feet, were you?
A. No, because we had good body positioning.
Q. And you were separating him from his backpack, correct?
A. Correct.

(Hr. 1153–54.)

Given the body-worn camera footage and the law enforcement testimony at the suppression hearing establishing that the backpack was not in Mr. Mangione's immediate control at the time of his arrest, the District Attorney's Office cannot meet their burden establishing a valid search incident to a lawful arrest. *See People v. Mabry*, 37 N.Y.3d 933, 934 (2021) ("The People failed to establish that the warrantless search of defendant's backpack was a valid search incident to arrest. The record does not contain evidence supporting a determination that the backpack was in defendant's immediate control or grabbable area." (internal quotation omitted)); *see generally People v. Jimenez*, 22 N.Y.3d 717, 721 (2014) ("All warrantless searches presumptively are unreasonable per se, and, thus, where a warrant has not been obtained, it is the People who have the burden of overcoming this presumption of unreasonableness." (quotation and alteration omitted)).

At the hearing, the District Attorney's Office made several arguments attempting to salvage the improper search at McDonald's. All these arguments fail. First, the prosecution noted with nearly every Altoona law enforcement witness that the witness was only familiar with Pennsylvania law and not New York law. This argument fails for two reasons. First, as noted above, New York law applies to this suppression hearing, not Pennsylvania law. Second, the McDonald's search was not a valid search incident to a lawful arrest even under Pennsylvania law. Specifically, much like New York law, Pennsylvania law limits a search incident to arrest to the

person arrested and “the area within his immediate control.” *See, e.g., Commonwealth v. Williams*, 305 A.3d 89, 97 (Pa. Super. 2023) (“The search incident to arrest exception allows arresting officers, in order to prevent the arrestee from obtaining a weapon or destroying evidence, to search both the person arrested and the area within his immediate control.” (citation and quotation omitted)); *see also Commonwealth v. Wright*, 742 A.2d 661, 665 (1999) (“A warrantless search incident to an arrest is valid ‘only if it is substantially contemporaneous with the arrest and confined to the immediate vicinity of the arrest.’” (quoting *Shipley v. California*, 395 U.S. 818, 819 (1969))). While “[t]he parameters of a search incident to arrest includes containers and clothing,” it is limited to containers and clothing “that are in the arrestee’s possession at the time of his arrest.” *Commonwealth v. Williams*, 305 A.3d at 97. Because Mr. Mangione did not have possession of his backpack at the time of this arrest, law enforcement’s warrantless search cannot be justified as a search incident to a lawful arrest under Pennsylvania law.

Notably, the same is true under federal law, where the Supreme Court has limited a search incident to a lawful arrest to the “arrestee’s person and the area within his immediate control—construing that phrase to mean the area from within which he might gain possession of a weapon or destructible evidence.” *Chimel v. California*, 395 U.S. 752, 763 (1969). In *Chimel*, the Supreme Court set out the following rationale and limitations for searches incident to a lawful arrest:

When an arrest is made, it is reasonable for the arresting officer to search the person arrested in order to remove any weapons that the latter might seek to use in order to resist arrest or effect his escape. Otherwise, the officer’s safety might well be endangered, and the arrest itself frustrated. In addition, it is entirely reasonable for the arresting officer to search for and seize any evidence on the arrestee’s person in order to prevent its concealment or destruction. And the area into which an arrestee might reach in order to grab a weapon or evidentiary items must, of course, be governed by a like rule. A gun on a table or in a drawer in front of one who is arrested can be as dangerous to the arresting officer as one concealed in the clothing of the person arrested. There is ample justification, therefore, for a search of the arrestee’s person and the area within his immediate control—construing that phrase

to mean the area from within which he might gain possession of a weapon or destructible evidence.

There is no comparable justification, however, for routinely searching any room other than that in which an arrest occurs—or, for that matter, for searching through all the desk drawers or other closed or concealed areas in that room itself. Such searches, in the absence of well-recognized exceptions, may be made only under the authority of a search warrant. The adherence to judicial processes mandated by the Fourth Amendment requires no less.

Chimel, 395 U.S. at 762–63 (quotations and footnote omitted); *see also id.* at 768 (“The search here went far beyond the petitioner’s person and the area from within which he might have obtained either a weapon or something that could have been used as evidence against him. There was no constitutional justification, in the absence of a search warrant, for extending the search beyond that area. The scope of the search was, therefore, ‘unreasonable’ under the Fourth and Fourteenth Amendments and the petitioner’s conviction cannot stand.”).

Forty years later, in *Arizona v. Gant*, the Supreme Court again explained the *Chimel* court’s rationale for limiting searches incident to a lawful arrest to only the arrestee’s person and the area within his immediate control:

In *Chimel*, we held that a search incident to arrest may only include “the arrestee’s person and the area ‘within his immediate control’—construing that phrase to mean the area from within which he might gain possession of a weapon or destructible evidence.” *Ibid.* That limitation, which continues to define the boundaries of the exception, ensures that the scope of a search incident to arrest is commensurate with its purposes of protecting arresting officers and safeguarding any evidence of the offense of arrest that an arrestee might conceal or destroy. *See ibid.* (noting that searches incident to arrest are reasonable “in order to remove any weapons [the arrestee] might seek to use” and “in order to prevent [the] concealment or destruction” of evidence (emphasis added)). If there is no possibility that an arrestee could reach into the area that law enforcement officers seek to search, both justifications for the search-incident-to-arrest exception are absent and the rule does not apply.

Arizona v. Gant, 556 U.S. 332, 339 (2009) (quoting and citing *Chimel*); *see also United States v. Chadwick*, 433 U.S. 1, 15 (1977) (“[T]he search was conducted more than an hour after federal agents had gained exclusive control of the footlocker and long after respondents were securely in

custody; the search therefore cannot be viewed as incidental to the arrest or as justified by any other exigency.”).

Given the legal limitations for searches incident to a lawful arrest under New York, Pennsylvania and Supreme Court case law, it is clear that there was no legal basis for Altoona law enforcement to search Mr. Mangione’s backpack at the McDonald’s. Nevertheless, Altoona law enforcement violated Mr. Mangione’s Fourth Amendment rights by conducting their illegal search.

Moreover, as is evident from the hearing testimony, this was not an isolated constitutional violation. Rather, several Altoona law enforcement officers testified at the hearing that they have never sought a search warrant before searching a defendant’s bag after an arrest; this is true whether the bag was within the area of the defendant’s immediate control or not. For example, Patrolman Fox testified that “[e]very arrest [he] make[s] is a search incident to arrest whether it is the person or a bag that they have on their person or another person.” (Hr. 808.) Patrolman Fox made clear that he never sought a search warrant when searching a bag and instead searched the bag—wherever it was recovered—as part of a search incident to a lawful arrest. (Hr. 808; *see also* Hr. 905 (Patrolman Fox testifying: “I understand where they were coming from, but we did not need a search warrant. It was search incident to arrest, a search warrant was not needed.”).)

Similarly, Patrolman Detwiler testified that the “rule of the Altoona Police Department with respect to searching a bag or closed container of anybody under arrest” is to “search everyone that’s being arrested, their person and their bags.” (Hr. 288.) Patrolman Detwiler further testified that it was his practice not to get a search warrant when searching bags or backpacks pursuant to a search incident to a lawful arrest. (Hr. 290–91.)

Patrolwoman Wasser similarly testified that she had searched hundreds of bags incident to a lawful arrest in her nineteen-year career and she had never sought a search warrant before

conducting the search. (Hr. 630, 755.) Even their supervisor, Lieutenant Hanelly, testified that he has searched thousands of bags incident to a lawful arrest and had never once sought a search warrant before conducting the search. (Hr. 973.) This testimony demonstrates that Altoona law enforcement's conduct in this case was not a mistake or reliant on Pennsylvania law: it was an intentional and egregious violation of Mr. Mangione's Fourth Amendment rights.

Second, the District Attorney's Office elicited testimony at the hearing that, at the time of the search, Mr. Mangione was between two to three feet (Hr. 822) or five feet (Hr. 751) from the area where the backpack search was being conducted. (Hr. 267 (Patrolman Detwiler testifying that Mr. Mangione was "two or three feet" away from where Patrolwoman Wasser and Patrolman Fox were searching the bag); Hr. 400, 404, (Patrolman Frye testifying that Mr. Mangione was "approximately two feet" from the backpack at the time of the search); Hr. 809 (Patrolman Fox testifying that Mr. Mangione was about "four or five feet" from the backpack at the time he was searching it").) In eliciting this testimony, the prosecution is seemingly arguing that the backpack was in Mr. Mangione's immediate control at the time of the search because of his proximity to the bag. This argument fails because it was Altoona law enforcement that created this situation by moving Mr. Mangione closer to the backpack. As noted at the hearing, Altoona officers chose where to place Mr. Mangione's backpack. (Hr. 214, 327–28 (Patrolman Detwiler testifying that he moved the backpack away from Mr. Mangione so that he was in between Mr. Mangione and the backpack); Hr. 385, 388, 487 (Patrolman Frye stating that Patrolman Detwiler moved Mr. Mangione's backpack first, and then Patrolman McCoy moved it to a separate table about eight or nine feet away); Hr. 898 (Patrolman Fox claimed that an officer moved the backpack "to an adjacent table so that [Mr. Mangione] couldn't access" it); Hr. 1009 (Lieutenant Hanelly testifying that Patrolman McCoy "moved the backpack from where Mr. Mangione was seated at the table to

about six feet away”); Hr. 1129, 1147–48 (Officer McCoy stating that he “collected [the] property and put it on a table” that was far enough away from Mr. Mangione).)

Altoona officers then chose where Mr. Mangione was placed when he was arrested and officers started searching the backpack. (Hr. 363 (Patrolman Detwiler testifying that he moved Mr. Mangione so he could search him); Hr. 506 (Patrolman Frye stating that he and Patrolman Detwiler placed Mr. Mangione two feet from the backpack while Patrolwoman Wasser searched it); Hr. 765–66 (Patrolwoman Wasser testifying that Patrolmen Detwiler and Frye moved Mr. Mangione to the area in between the two tables while she searched the backpack); Hr. 873 (Patrolman Fox acknowledging that “Officers Frye and Detwiler [] place[d] Mr. Mangione” at the location where he was standing while Fox searched the backpack); Hr. 1084 (Sergeant Burns stating that Altoona “officers [] decided where to search” Mr. Mangione); Hr. 1153 (Patrolman McCoy confirming that Patrolman Detwiler “moved [Mr. Mangione] to [the] position where [they] started searching him”).) Therefore, because “the police themselves cannot by their own conduct create an appearance of exigency” (*People v. Levan*, 62 N.Y.2d 139, 146 (1984)), the fact that law enforcement moved Mr. Mangione closer to the backpack does not render this an exigent circumstance allowing officers to search Mr. Mangione’s backpack.

Furthermore, as described above, Lieutenant Hanelly, Sergeant Burns and Patrolman McCoy all testified that Mr. Mangione could not access his backpack at the time of the search because Mr. Mangione was rear cuffed and there were officers surrounding Mr. Mangione and blocking him from the backpack. (See also Hr. 874 (Patrolman Fox testifying that, while law enforcement could have moved the backpack and searched it elsewhere, there was no need to because officers “had [the] area controlled,” Mr. Mangione was in handcuffs and had been “cooperative the whole time”).) Accordingly, the fact that Mr. Mangione was between two to five

feet from the backpack at the time of the search does not render the backpack within his “immediate control.”

3. Law Enforcement’s Search of Mr. Mangione’s Backpack at the McDonald’s was not Justified as a Search for a Bomb

The District Attorney’s Office next claims that, even if the backpack search at McDonald’s was not justified as a search incident to a lawful arrest, the search was still proper because officers were searching to make sure there was no bomb in the backpack. Contrary to the prosecution’s argument, the totality of the circumstances demonstrates that the officers’ claim about a bomb was a blatantly false and pretextual justification for conducting an evidentiary search. First, nothing about the alleged shooting in New York five days earlier or law enforcement’s interactions with Mr. Mangione in the McDonald’s that day provided a reasonable basis to believe that there was a bomb in the backpack.²⁰ To the contrary, as noted on pages 22–23 above, the hearing testimony established that Mr. Mangione was fully compliant with law enforcement’s requests at the McDonald’s. Instead, the officers searched the backpack for a bomb because that is something they always do so as not to “pull a Moser” and bring a bomb back to the station. (Hr. 588–89; *see also* Hr. 892 (Patrolman Fox: “Like I said, the bomb threat is always there in the back of my head no matter what bag I am searching.”) Under New York law, however, “exigency is not demonstrated unless it is supported by circumstances giving rise to an objectively reasonable suspicion.” *See, e.g., People v. Diaz*, 107 A.D.3d 401, 402 (1st Dep’t 2013); *see also Welsh v.*

²⁰Patrolman Fox testified at the hearing that he was suspicious that there might be something dangerous in the backpack because, when he had asked Mr. Mangione if there was anything in the bag that he needed to know about, Mr. Mangione responded that he was going to remain silent. (Hr. 804, 875.) However, by the time Patrolman Fox had this conversation with Mr. Mangione, Patrolwoman Wasser already had her gloves on and was about to open the backpack to begin searching—demonstrating that she was set to search the backpack even before Fox approached Mangione to ask him that question and that Mangione’s response was not the basis for her decision to search the backpack.

Wisconsin, 466 U.S. 740, 749–50 (1984) (“[T]he police bear a heavy burden when attempting to demonstrate an urgent need that might justify warrantless searches or arrests.”). Here, there was no exigency as officers had no specific justifiable reason to believe Mr. Mangione had a bomb in his backpack. Law enforcement simply used the excuse of a potential bomb to justify a warrantless search.

Second, if law enforcement was legitimately concerned about a bomb, they would have cleared the McDonald’s and not allowed customers and employees to walk through the area where a bomb might be located. Law enforcement also had the option of moving the backpack to the parking lot, farther away from any civilians. However, instead of taking the situation seriously (which would be consistent with a legitimate concern of a bomb), officers instead laughed and joked about how they would rather have the bomb there than at the precinct, with Patrolman Fox further joking that “[y]ou can blow me up,” but “you don’t want to blow Blue [Fox’s K-9 officer] up.” (Hr. 592, 812.)

Third, and most notably, the body-worn camera footage establishes that this was a search for evidence, not a search for a bomb or a dangerous instrument such as a gun. For example, one of the first items that Patrolwoman Wasser took out of the backpack was a bag too small to carry a bomb or a gun. As Patrolwoman Wasser acknowledged at the suppression hearing, she did not believe that there could be a bomb inside that small bag. (Hr. 679.) Nevertheless, Patrolwoman Wasser opened the bag and removed the phone and passport that were inside. Rather than returning the passport to the bag and continuing her search (as one would expect if this were a search for a bomb), Patrolwoman Wasser instead gave the passport to other officers at the McDonald’s to assist in the Altoona’s false statement/forgery investigation and the NYPD’s New York City shooting investigation. Patrolwoman Wasser then removed an envelope (also too small to contain a bomb

or a gun), which she examined before returning it to the backpack. Patrolwoman Wasser also searched through a wallet that she removed from the backpack—another item that was obviously not a bomb, a gun or a dangerous instrument.

Additionally, during the search, Patrolman Fox used a knife to slice open a small cardboard container too small to contain a bomb, a fact that Patrolman Fox admitted during the hearing:

Q. Did you think there was a bomb wrapped up in that card stock that you opened with the knife?

A. No, I could tell it was some type of data chip, I just wasn't sure.

(Hr. 893.) Despite knowing that this container did not contain a bomb, Patrolman Fox nevertheless opened the container hoping to recover evidence to support the NYPD investigation into the New York City shooting.²¹

That this “bomb search” was pretextual is further demonstrated by the fact that, once Patrolwoman Wasser found the loaded gun magazine in the backpack, Patrolman Fox stated to Wasser, “now that we found that [i.e., the magazine], let’s just take it back” to the precinct. (Ex. 6E.1 at 10:01:48.) If this truly were a search for a bomb, officers would have continued searching the backpack before taking it to the precinct, especially considering that Patrolwoman Wasser and Patrolman Fox had searched only a portion of the backpack before finding the magazine and never

²¹Patrolman Fox’s admission that he searched the cardboard container despite knowing it was not a bomb is not surprising given his earlier testimony that the main reason he was searching the backpack was because he was conducting a search incident to lawful arrest. (See Hr. 892 (“Like I said, the bomb threat is always there in the back of my head no matter what bag I am searching. I am searching his bag incident to arrest. The threat of a bomb is also there or threat of any device that can harm human life, but that’s not the sole reason I am searching that bag, I am searching that bag incident to arrest.”).) As established above, there was no legitimate basis to search the backpack incident to a lawful arrest.

even searched a third compartment in the backpack for a bomb.²² Furthermore, the fact that law enforcement had found a loaded magazine in the backpack would have given officers more reason to suspect that there might be a bomb or something dangerous in the backpack. Yet, because this was an evidence search and not a search for a bomb, Altoona officers immediately stopped searching at the McDonald's once they found incriminating evidence and took the backpack to the precinct.

At the hearing, Patrolwoman Wasser and Patrolman Fox indicated that they also searched the backpack at the McDonald's because the gun used in the New York City shooting was never found. (Hr. 577, 777, 782, 875.) Notably, while at the McDonald's, the only stated concern Patrolwoman Wasser and Patrolman Fox gave for searching the backpack at the McDonald's and not at the precinct was because they were making sure there was no bomb. Neither Patrolwoman Wasser nor Patrolman Fox stated any concern at the time that there might be a gun in the backpack because the gun from the New York shooting was never recovered. Instead, this was a post hoc excuse that law enforcement advanced at the suppression hearing to attempt to now justify the warrantless search of the backpack.

²²To the extent Patrolwoman Wasser and Patrolman Fox testified that they stopped searching because they were confident based on their limited search that there was no bomb in the bag (Hr. 592, 599–600, 697–98, 752 (Patrolwoman Wasser stated that at the point she found the magazine, she was satisfied that there was no bomb because she had searched the “biggest part of the bag”); Hr. 878 (Patrolman Fox testified that he was satisfied that he “did not see any device that appeared to be an explosive device”)), this testimony defies logic. As noted earlier, Patrolwoman Wasser did not finish searching the backpack compartment that she had started searching—where the silencer was ultimately recovered. Similarly, Patrolman Fox did not finish the compartment that he had started searching because he spent “the majority of [his] time” opening the small cardboard that housed a computer chip. (Hr. 878.) Moreover, neither of them searched the backpack's third compartment at the McDonald's (the compartment where Patrolwoman Wasser found the gun at the precinct).

Likewise, Patrolman Fox's claim at the hearing that he was concerned that there might be something dangerous in the backpack because Mr. Mangione had a knife on him at the McDonald's (Hr. 805) also cannot survive scrutiny. As this Court saw at the hearing, the knife that Patrolman Fox was referring to was a pocketknife with a 3–4-inch blade that was not illegal for Mr. Mangione to carry. (Ex. 8A.305; Hr. 499, 866–67.) Moreover, Mr. Mangione informed Patrolman Fox that he had the pocketknife on him after both Patrolmen Detwiler and Fox had already frisked the pocket where the knife was located, and he never reached for the pocketknife while at the McDonald's. (Ex. 6B.1 at 09:50:05 – 09:50:18; Hr. 521, 920, 1155.) Given the small size of the pocketknife, the manner it was recovered (by Mr. Mangione volunteering it to law enforcement) and the fact that Mangione never reached for it, there is no reason to believe that Patrolman Fox considered the fact that Mangione had the knife on him as a reason to search the backpack. This is particularly true given that, while at the McDonald's, Patrolman Fox never mentioned the knife as a basis for the search and instead first mentioned it at the suppression hearing. Furthermore, it is evident that the knife did not create security concerns that there was a dangerous instrument in the backpack as Patrolman Detwiler moved Mr. Mangione **closer** to the backpack **after** Mangione told them about the knife. (Hr. 537.) The Court should therefore not credit these post hoc excuses to search the backpack at the McDonald's.

4. Patrolwoman Wasser's Searches at the Precinct were not Valid Inventory Searches

Altoona law enforcement conducted several warrantless searches of Mr. Mangione and his backpack at the precinct: (1) Patrolmen Frye's and Homan's search of Mr. Mangione's person in the intake area; (2) Patrolwoman Wasser's search of Mr. Mangione's backpack on a folding chair in the intake area; (3) Patrolwoman Wasser's search of Mr. Mangione's backpack in the hallway

outside the intake area; and (4) multiple officers' search of Mr. Mangione's backpack in Patrolman Featherstone's office and then in the roll-call room.

While the first and last searches appear to have the hallmarks of an inventory search, the two searches conducted by Patrolwoman Wasser at the precinct (referred to in the paragraph above as searches (2) and (3)) were warrantless evidence searches and not inventory searches.

i. The Search on the Metal Folding Chair

As depicted in her body-worn camera footage and her hearing testimony, Patrolwoman Wasser entered the intake area and placed Mr. Mangione's backpack on a metal chair in the corner of the intake area. She started her search by briefly unzipping then quickly re-zipping the middle compartment of the backpack, which she had already searched at the McDonald's but stopped looking through once she found the loaded magazine. Patrolwoman Wasser immediately closed the middle compartment and unzipped the front compartment, which she claimed to have not searched before. Instantaneously, Patrolwoman Wasser found a loaded firearm clearly visible in the front compartment.

Patrolwoman Wasser's body-worn camera footage makes clear that this was not an inventory search, but that she knew exactly what she was looking for and where to look for it. After mistakenly opening the middle compartment, Patrolwoman Wasser immediately closed the compartment because she knew that what she was looking for was not in the middle compartment. Had this been an inventory search, she would have had no reason not to start inventorying the items from the middle compartment, especially since she had not finished searching through this compartment at the McDonald's. Rather, Patrolwoman Wasser immediately closed this middle compartment because she was not looking to inventory the contents of the backpack but was looking for something specific—the firearm.

This is also evident from the fact that Patrolwoman Wasser conducted this search on a folding chair in the corner of the intake section where there was not even a table to place the items on. By this point, Patrolwoman Wasser had already known from her preliminary search at the McDonald's that the backpack was filled with a large amount of Mr. Mangione's personal property. As Patrolwoman Wasser testified at the hearing, she knew there were a lot "of items in that backpack," including "multiple small items," "large items," "clothing" and "computer chips" because she had seen them at the McDonald's. (Hr. 720-21.) Patrolwoman Wasser also acknowledged that "an inventory search is a very methodical search," with the "purpose [] to catalog every item." (Hr. 733.) It would not be possible to remove these items and inventory them in the limited space in the corner of the intake area,²³ yet that is the exact area where she chose to start her supposed inventory search. Tellingly, she also started this search without paper to make an inventory list and without evidence bags or tags. (Hr. 720.)

Moreover, after hastily closing the middle compartment of the backpack, Patrolwoman Wasser immediately opened the front compartment where the firearm was conveniently located right on top. The only conceivable reason for this sequence was because she already knew where the firearm was located because she had already looked through that compartment of the backpack on her way to the precinct. Not only would this explain why the trip to the precinct took inexplicably longer than it should have, this would also explain why Patrolwoman Wasser kept the disposable gloves on her hands while driving to the precinct, something she testified she did not normally do. (Hr. 725.) At the McDonald's, Patrolwoman Wasser put the gloves on her hands

²³In fact, the backpack carried so many items that the subsequent search of the backpack was first moved to "a small office area" before being moved to Patrolman Featherstone's office because the previous area "was not going to be sufficient for [them] to organize and seize and search the backpack." (Hr. 1285.)

as she was about to begin searching the backpack so as not to contaminate the evidence. (Hr. 584, 598, 670–71.) Once she stopped searching the backpack at the McDonald's, there was no reason for her to keep the gloves on for the ride to the precinct, unless she was going to search the backpack on the way when her body-worn camera was off.²⁴

Additionally, Patrolwoman Wasser had the time and opportunity on her drive from McDonald's to search the backpack when she stopped on the side of the road to get the McDonald's bag from Patrolman Fox. While her interaction with Patrolman Fox lasted between 10–12 seconds (as per Patrolman Fox (Hr. 829)) or between about 30–40 seconds (as per Patrolwoman Wasser (Hr. 713)), her drive from the McDonald's to the precinct took nearly eleven minutes—two more minutes than it took Patrolmen Detwiler and Fox to drive from the McDonald's to the precinct. This discrepancy in travel time is even more significant given that Patrolmen Detwiler and Frye were stopped at a red light for nearly one minute and forty-one seconds on their drive. (Ex. 6A.3 at 10:02:55 – 10:04:36.) We submit the only plausible conclusion is that the extra time it took Patrolwoman Wasser to reach the precinct was because she was searching through the backpack (while wearing her disposable gloves) on the way to the precinct. That is why she knew exactly where to find the gun as soon as she walked into the precinct.

Another fact that supports the finding that Patrolwoman Wasser knew exactly where the firearm was located when she started searching in the precinct is that she turned on her body-worn camera the moment she arrived in the precinct's parking lot. She did this because she knew, based on her experience, that the camera would start capturing audio a minute after it was turned on—

²⁴As Patrolwoman Wasser well knew from her nineteen years of experience with the Altoona Police Department, there were additional gloves available at the precinct that she could use before starting to search the backpack at the precinct—as her body-worn camera shows boxes of disposable gloves above the front desk of the precinct's intake section. (Ex. 6F.2 at 10:15:58.)

which would be the precise moment she would be finding the gun in the backpack in the intake area.²⁵ While the prosecution may argue that she turned on her body-worn camera in the parking lot because she knew she would be searching the backpack at the precinct and wanted to record her search, it is notable that she did not turn on her body-worn camera at the McDonald's until after she starting searching the backpack, even though she had been at the McDonald's for more than thirteen minutes before starting the search and knew she would be interacting with members of the public. (Hr. 653, 658.) Moreover, Patrolwoman Wasser did not turn her body-worn camera on when she received the brown McDonald's bag from Patrolman Fox on the side of the road. (Hr. 717.) These actions demonstrate that Patrolwoman Wasser did not care whether the entire search or chain of custody of the evidence was recorded. Instead, she purposefully turned her camera on when she arrived in the precinct parking lot because she wanted to ensure that the exact moment she recovered the firearm was recorded with full audio on her body-worn camera so that she would get recognition in this high-profile arrest.

For all these reasons, Patrolwoman Wasser's search on the metal chair in the intake section of the precinct was not an inventory search. Accordingly, the firearm that was recovered during this warrantless search must be suppressed.

ii. The Hallway Search

After locating a firearm during her evidence search of Mr. Mangione's backpack, Patrolwoman Wasser moved the backpack and the brown McDonald's bag to a hallway outside of

²⁵Patrolwoman Wasser's conduct at McDonald's demonstrated that she was very cognizant of what video the body-worn camera would capture. Specifically, in one interaction with Patrolman Detwiler at the McDonald's, Patrolwoman Wasser was about to make a joke or personal comment to Patrolman Detwiler before looking directly at his body-worn camera. Realizing the camera was recording, Patrolwoman Wasser smiled and chose not to comment. (Ex. 6A.2 at 09:55:58; Hr. 668-69.)

the intake area of the precinct at Deputy Chief Swope's direction.²⁶ In what she repeatedly referred to as an inventory search (Hr. 613, 617–18, 632, 635–36, 639, 726, 764), Patrolwoman Wasser subsequently removed the property from the backpack and separated the contents between items of evidence for the New York investigation (that were placed in evidence envelopes) and items that were personal property (that were placed back into the backpack). (Hr. 617, 625–26, 640, 729–30, 740–41, 757, 760–61.) At no time did Patrolwoman Wasser make a list of items that were in the backpack originally or the items that we placed back into the backpack after the search.

There are several reasons why this search was not a valid inventory search. Most importantly, Patrolwoman Wasser was searching for evidence and not taking inventory. As depicted in her body-worn camera footage, she was rummaging through the backpack looking for evidence and then separating evidentiary items for the New York case (e.g., silencer, the red journal, cellphone, a camera) from the other items. Additionally, she began this search looking for Mr. Mangione's identification and could not recall where she had placed it, causing her to rummage around several compartments until she located it in the McDonald's bag. Moreover, once she was done searching, she just put the non-evidentiary items back into the backpack without listing what she had taken out. As Patrolwoman Wasser acknowledged at the hearing: "an

²⁶At the hearing, the District Attorney's Office elicited from Patrolwoman Wasser that Deputy Chief Swope never told her to secure a search warrant after she recovered the firearm. (Hr. 755–56.) It is unclear what the significance of this testimony is. As established above, Altoona law enforcement routinely violates search and seizure law and the Fourth Amendment by searching bags incident to a lawful arrest even if the bag is not within the defendant's immediate control or grabbable area. That Deputy Chief Swope would also violate search and seizure law and the Fourth Amendment by failing to properly advise Patrolwoman Wasser to get a warrant is not surprising. Furthermore, as established by Altoona Police Department Deputy Chief Nathan Snyder at the federal hearing conducted on January 23, 2026, the Altoona procedure for inventory searches would require officers to seek a warrant if a firearm was recovered during an inventory search. (Ex. A: 1/23/26 Hr. 61–62, 65: The transcript to the January 23, 2026, hearing in federal court is Exhibit A to this submission and will be provided to the Court under separate cover.)

inventory search is a very methodical search,” with the “purpose [] to catalog every item.” (Hr. 733.) Here, Patrolwoman Wasser’s search was not methodical, and she did not even bother to catalog or label any of the items, a fact that is further supported by Patrolman Featherstone’s testimony that “[n]othing was labeled yet” when all the items were transferred to his office after the hallway search. (Hr. 1286.)

Furthermore, Sergeant Burns asked Patrolwoman Wasser during this search to photograph the barcode from the sandwich and bread that were in the backpack so law enforcement could try to determine which local store these products were purchased from. (Ex. 6F.2 at 10:20:20; Hr. 731.) That is consistent with searching for evidence not inventorying. As the New York Court of Appeals has ruled, however, “[w]hile incriminating evidence may be a consequence of an inventory search, it should not be its purpose.” *People v. Johnson*, 1 N.Y.3d 252, 256 (2003). Here, considering all the evidence, Patrolwoman Wasser’s conduct on the body-worn camera demonstrates that the true purpose of the search in the hallway was to look for incriminating evidence and not to inventory the backpack. *See, e.g., Johnson*, 1 N.Y.3d at 257 (crediting that hearing court’s conclusion that “the claim that the search was an inventory search was ‘less than a believable claim and it appears to be merely a pretext to cover for what was the officer’s desire in the first place, to see what the defendant was up to and to somehow get into the interior of his car to see if the defendant was in possession of contraband or the weapon’”).²⁷ Consequently, this search was not a valid inventory search and the items recovered must be suppressed.

²⁷The *Johnson* court’s concern that the claim of an inventory search was pretextual is greater in this case because Sergeant Burns testified that Patrolwoman Wasser’s search in the hallway “was merely to remove contraband or suspected weapons and items like that.” (Hr. 1098.) When counsel followed up with the question “So this wasn’t an inventory search, was it,” Sergeant Burns responded that it “would be both.” (Hr. 1098.) Similarly, Sergeant Heuston referred to the hallway search as search incident to a lawful arrest and an inventory search “happening simultaneously.”

In response, the District Attorney's Office will attempt to argue that Patrolwoman Wasser's hallway search should be viewed as a continuous inventory search that culminated in the inventory search that officers completed in Patrolman Featherstone's office and then in the roll-call room. This argument belies the record, as nothing was labeled or inventoried in the hallway search. All Patrolwoman Wasser did was search the bag for evidence. Once that search was completed and evidentiary items were separated, only then were all the contents of the backpack given to Patrolman Featherstone—the precinct's evidence custodian who maintained chain of custody (Hr. 1269)—to be photographed and inventoried. (Hr. 741–42, 746.) At the point that Patrolman Featherstone received the backpack, its contents had not been itemized, photographed or labeled. (Hr. 742.)

This is in sharp contrast to the search of Mr. Mangione's person that Patrolmen Frye and Homan conducted in the intake area. In that search, Patrolman Frye methodically went through each piece of Mr. Mangione's clothing before putting all the items in bags. (Ex. 6B.4 at 10:32:06.) As noted by Sergeant Heuston: “when you're doing the intake process an officer is generally writing down what is being put in the bag so part of his training and experience, he's naming each item as he drops it in the bag.” (Hr. 1190.) In this process, Patrolmen Frye and Homan were addressing all property equally and were not separating items based on what they believed the item's evidentiary value might be. In that scenario, one could possibly argue that the inventory search started in the intake area and was later completed by Patrolman Featherstone. With the hallway search, however, no inventory was even started. Patrolwoman Wasser was just searching

(Hr. 1253; *see also* Hr. 1170 (Sergeant Heuston referring to the intake searches as a “search incident to a lawful arrest and it's also an inventory search of the property where basically you're doing two things simultaneously”).) It is evident here that Patrolwoman Wasser's inventory claim was pretextual as she was focused on finding evidence for the New York investigation and never created an inventory.

the backpack for evidence to be shared with the NYPD (with whom Altoona law enforcement were in almost constant contact). Once she found the evidence, Patrolwoman Wasser indiscriminately jammed all the other items back into the backpack. Under these circumstances, the prosecution cannot credibly argue that Patrolwoman Wasser was conducting an inventory search that was completed later.

iii. The Search in Patrolman Featherstone's Office

Once the evidentiary search in the hallway was completed, officers moved all the items from the backpack to another office to complete an inventory. This search was subsequently moved to Patrolman Featherstone's office before being moved again to the roll-call room. During this search, all items recovered from Mr. Mangione and his backpack were photographed, inventoried and placed in labeled evidence bags. While Mr. Mangione's property was inventoried in this process, the search exceeded the procedures authorized by the Altoona Patrol Guide for two reasons. First, the inventory search provision of the Altoona Patrol Guide only reference inventorying property that was removed from the detainee's person, not from bags or containers that were not on the detainee's person. Specifically, at the hearing, the prosecution argued that General Orders 3.1.9 and 3.1.10 of the Altoona Patrol Guide (admitted as Exhibit 10B at the hearing) authorized Altoona officers to inventory all of Mr. Mangione's property. A simple reading of 3.1.9, however, demonstrates that this General Order refers only to searches of the detainee's person. Tellingly, 3.1.9(A) is titled "Inventory Search of the Detainee." Moreover, 3.1.9(A)(1) states that "[a]ll detainees placed in the cell block area shall be thoroughly searched by the processing officer, regardless of any prior searches that occurred in the field." The next provision, 3.1.9(A)(2) expands on the previous provision by stating, "[w]henever possible, a search of the detainee shall be conducted by an officer or other member of the same sex as the detainee," and

that this “search should be conducted in a safe and discrete manner.” These two provisions, read together, indicate that the search being conducted is a search of the detainee’s person where the searcher would be physically touching the detainee. That is why it is important that the search be conducted by a member of the same sex and that the search be conducted in a safe and discreet manner. If these provisions referred to the search of the detainee’s bag or backpack, there would be no reason to have the search be completed by a member of the same sex or in a safe and discrete manner as there is no need to physically touch the detainee to search their bag or backpack.

The next provision, 3.1.9(A)(3) also contemplates a search of the detainee’s person, as it directs that “[s]pecial attention be given to search those areas where items could be hidden,” and refers specifically to clothing or parts of clothing that the detainee was wearing—i.e., “jacket linings, hidden pockets, hats, belts, footwear, clothing seams, pant waists, and/or cuffs.” The same is true for 3.1.9(A)(5), which references strip searches and body cavity searches. Accordingly, all the provisions of 3.1.9 pertain only to searches of the detainee’s person and not a detainee’s property that was not on his person. Sergeant Burns acknowledged this at the hearing by noting that 3.1.9 authorizes only the inventory search of the detainee and the property that was on the detainee’s person. (Hr. 1103–04.)²⁸

The District Attorney and Altoona Police Department next attempt to rely on General Order 3.1.10 for authorization to conduct an inventory search of the detainee’s property that was not on the detainee’s person. (Hr. 1107 (Sergeant Burns stating that 3.1.10 authorizes a search of the detainee and “any property he had with him at the time of being detained or arrested.”).) This argument has no support in the language of 3.1.10. As an initial matter, 3.1.10 is titled “Secure

²⁸That 3.1.9 only refers to the search of a detainee’s person was further confirmed by the testimony of Altoona Police Department Deputy Chief Nathan Snyder at the January 23, 2026, hearing in federal court addressing the scope of the Altoona General Orders. (Ex. A: 1/2/3/26 Hr. 32–39.)

Storage of Detainee's Property" and refers only to storage of a detainee's property; it does not itself authorize inventory searches. Furthermore, when read together with 3.1.9, these two provisions establish a procedure for officers to conduct an inventory search of the detainee's person (described in 3.1.9) and then instruct officers how to store the items that were recovered in that search of the detainee's person (described in 3.1.10). The connection between the two provisions is also established by the fact that both provisions reference property "removed from the detainee." See 3.1.9(A)(6) (establishing that "[a]ll property **removed from the detainee** shall be itemized utilizing a prisoner property form") and 3.1.10(A)(2)(a) (establishing that "[c]ontraband, evidence and/or illegal weapons **removed from the detainee** shall be placed into evidence as required by agency policy and not returned to the detainee") (emphasis added)). These two provisions use the same language because they describe the same type of property. Because we have already established that 3.1.9 refers only to property on the detainee's person, 3.1.10 must be read to address the same type of property. Accordingly, like with 3.1.9 earlier, 3.1.10 also fails to authorize Altoona officers to conduct an inventory search of a detainee's property that was not recovered from the detainee's person.²⁹ Consequently, to the extent Patrolman Featherstone's inventory

²⁹Sergeant Burns testified that, while 3.1.9 did not authorize a search of a detainee's property not recovered from his person, such a search was authorized by General Order 1.2 (admitted as Exhibit 10A). (Hr. 1104.) As established at the hearing, General Order 1.2 only addressed inventory searches in the context of impound searches of cars. (Hr. 1106.) It did not provide any other authorization of inventory searches. Moreover, if Altoona law enforcement was relying on the automobile search provisions in General Order 1.2 for authorization to conduct an inventory of Mr. Mangione's backpack, those provisions clearly state under 1.2.5 that, if evidence of a crime is discovered during an inventory search, "the officer shall stop the inventory search and secure a search warrant prior to continuing." (Ex. 10A at p. 8.) Needless to say, the officers here did not comply with the directives in General Order 1.2.5 to secure a search warrant after discovering evidence of a crime.

search also covered items recovered from Mr. Mangione's backpack, such an inventory search was not authorized by Altoona's General Orders.

Second, even assuming the Altoona General Orders authorized an inventory search of Mr. Mangione's backpack (it did not), the search conducted in this case exceeded that authorization. Most notably, as part of this search, officers opened, photographed and read Mr. Mangione's journal and other writings. For example, Sergeant Burns testified that he read some of the journal "just out of curiosity," saw pages "labeled blog" and others with "miscellaneous writings" and photographed pages that he thought were relevant to the New York investigation. (Hr. 1101–03.) Similarly, Sergeant Heuston admitted that he read some of the writings—including the journal—and photographed the pages of the journal that he thought might be pertinent to the New York investigation. (Hr. 1234–35.) Reading these writings exceeded the inventory procedures allowed under the Altoona Patrol Guide, as General Order 3.1.10(A) of the Patrol Guide authorized officers to complete a "documented itemized inventory of all items taken from the detainee" (Ex. 10B; Altoona Police Department General Order 3.1.) Even assuming this provision applied to Mr. Mangione's backpack, it would only authorize officers to remove the journal from the backpack and note that a journal was recovered; it would not allow officers to read through the journal.³⁰

Furthermore, reading Mr. Mangione's writings violated New York law. A similar issue was addressed in *People v. Sommerville*, 170 Misc. 2d 1024, 1025 (S. Ct. Kings Cty. 1996), where an officer opened the defendant's backpack after an arrest and itemized all items, including the defendant's calendar book. After opening the calendar book and making sure there was nothing between the pages, the officer read through entries that the officer thought "might be significant

³⁰Deputy Chief Nathan Snyder confirmed during the federal hearing that the Altoona General Orders does not allow officers to read a detainee's writings during an inventory search. (Ex. A: 1/23/26 Hr. 51.)

to his investigation.” *Id.* In addressing the police inventory procedures, the court noted that it must meet two standards of reasonableness: “First, the procedure must be rationally designed to meet the objectives that justify the search. Second, the procedure must limit the discretion of the officer in the field.” *Id.* (citing *Florida v Wells*, 495 U.S. 1, 4 (1990)). The court further noted that the “relationship between the search procedure adopted and the governmental objectives that justify the intrusion, as well as the adequacy of the controls on the officer’s discretion must then be examined. *Sommerville*, 170 Misc. 2d at 1027 (citing *People v Galak*, 80 N.Y.2d 715, 719 (1993)).

At the suppression hearing in *Sommerville*, the officer testified that the routine procedure for conducting an inventory search of a book was “shaking the book upside down, feathering its pages, and then ‘looking’ at each page.” *Sommerville*, 170 Misc. 2d at 1027. The court recognized that the “‘looking’ aspect of the procedure ‘may be related to one or more of the three underlying purposes that justify an inventory search,’ as it ‘may protect an owner’s property while in the custody of the police if small valuables are secreted within the pages’ and ‘may in certain instances guard the police from dangerous instrumentalities such as razors or thin blades that may otherwise go undetected.’” *Id.*

The court then distinguished between simply looking at a page as opposed to reading the actual entries on the page, the latter of which “involved the officer’s affirmative and considered decision to discern the contents contained therein.” *Id.* The court found that the “inventory process should not permit an officer at his unbridled discretion to elect to read entries that might prove ‘relevant to his investigation’” because “such discretion runs afoul of the second standard of reasonableness.” *Id.* The court further found that:

A police officer is not allowed to search for the sole purpose of investigation even when he is following standardized care routines as a part of the inventory process. “The individual police officers must not be allowed so much latitude that inventory

searches are turned into a purposeful and general means of discovering evidence of a crime.”

Id. (quoting *Florida v. Wells*, 495 U.S. at 4). In suppressing the calendar book, the court concluded:

While a police officer’s leafing through the individual pages in a weekly appointment calendar book may further one or more of the governmental interests sought to be protected in the context of an inventory search, the reading of the entries therein furthers no such purpose.

Sommerville, 170 Misc. 2d at 1028.

A similar analysis was conducted in *United States v. Santos*, 961 F. Supp 71 (S.D.N.Y. 1997), where the court ruled that conducting an inventory search did not allow the inventorying officer to read the written materials found among the defendant’s personal property. In doing so, the court noted that the “underlying justifications of the inventory search exception make clear that the objective of caretaking, not investigation, must guide the inventory process.” *Id.* at 74. The court further found that, “[a]s there is no reason why government officials must read written material in order to inventory an arrestee’s personal belongings, the Fourth Amendment requires that they must obtain a warrant before doing so.” *Id.*

This Court should reach the same conclusion here. By reading Mr. Mangione’s journal entries and other writings, Sergeant Burns and Sergeant Heuston exceeded the parameters of a permissible inventory search and instead used the inventory process as a pretext to search for evidence that they believed would be helpful to the New York investigation. Such a search violated the Fourth Amendment, and, accordingly, the contents of the journal and all the rest of Mr. Mangione’s writings that were read in the inventory process must be suppressed.³¹

³¹In addition to Mr. Mangione’s journal and the loose papers and notes contained in his backpack, law enforcement also read the handwritten note that Patrolmen Frye and Homan recovered when searching Mr. Mangione’s person at the McDonald’s. This writing (Exhibit 8B.15) was a to-do list that Sergeant Heuston read after the inventory search of Mr. Mangione’s person in the intake area

Lastly, even assuming Patrolman Featherstone conducted a valid inventory search, the evidence recovered from the backpack must still be suppressed. As noted above, law enforcement's warrantless searches at the McDonald's, on the metal chair and in the hallway were improper. In those searches, all the contents of the backpack were improperly recovered: the gun magazine, the red journal and Mr. Mangione's passport and cellphone were recovered at McDonald's; the firearm was recovered during the search on the metal chair; and all the remaining contents of the backpack were recovered in the hallway search. Consequently, the District Attorney's Office has no basis to claim that the improperly recovered evidence should nevertheless not be suppressed because the evidence would have been inevitably discovered when Patrolman Featherstone conducted an inventory search of the backpack at the precinct. This is because, in New York, the Court of Appeals has established that the doctrine of inevitable discovery does not apply "where, as here, the evidence sought to be suppressed is the very evidence obtained in the illegal search" because

[p]ermitting its admission in evidence effects what amounts to an after-the-fact purging of the initial wrongful conduct, and it can never be claimed that a lapse of time or the occurrence of intervening events has attenuated the connection between the evidence ultimately acquired and the initial misconduct. The illegal conduct and the seizure of the evidence are one and the same.

People v. Stith, 69 N.Y.2d 313, 318 (1987). The Court of Appeals further noted that admitting illegally obtained evidence through the inevitable discovery rule "what would amount to a *post hoc* rationalization of the initial wrong," "would be an unacceptable dilution of the exclusionary rule" and "would defeat a primary purpose of that rule, deterrence of police misconduct." *Id.* at 319. Additionally, "failing to exclude wrongfully obtained primary evidence 'would encourage

and that he later discussed with NYPD Sergeant Venios at 10:34 a.m. (Ex. 6B.4 at 10:34:04 – 10:34:25.) This list must also be suppressed because Sergeant Heuston improperly read the contents of the writing without a search warrant.

unlawful searches in the hope that probable cause would be developed after the fact.” *Id.* (quoting the Oregon Court of Appeals in *State v Crossen*, 21 Or. App. 835, 838 (1975)).

Because the doctrine of inevitable discovery is inapplicable to “primary evidence,” (*i.e.*, “the very evidence obtained in the illegal search”), there is no basis to admit any of the illegally seized evidence from Mr. Mangione’s backpack.³² *See, e.g., People v. Stith*, 69 N.Y.2d at 318; *People v. Julio*, 245 A.D.2d 158, 159 (1st Dep’t 1997) (“The People’s alternative argument, that evidence of the gun should be admitted under the inventory exception, ignores the fact that the exception is only applicable to secondary evidence. It is inapplicable in the circumstances at bar where the evidence of the gun is ‘primary’ evidence, *i.e.* ‘the very evidence obtained in the illegal search.’ The likelihood that the gun would have been discovered during an inventory search at the police station, therefore, does not vitiate an illegal search and seizure. Since the search of the bag was unlawful, the evidence of the gun must be suppressed.” (citation omitted)).

B. Mr. Mangione’s Statements to Law Enforcement Must Be Suppressed

1. Legal Standard

Under New York law, a defendant’s statements obtained through custodial interrogation without *Miranda* warnings should be suppressed. *See, e.g., People v. Corey*, 209 A.D.3d 1306, 1307 (4th Dep’t 2022) (vacating the defendant’s plea where the trial court failed to suppress the portions of the defendant’s statements made without prior *Miranda* warnings while in custody and in response to police questioning); *People v. Dorvil*, 175 A.D.3d 708, 710 (2d Dep’t 2019) (“Under these circumstances, the defendant was improperly subjected to custodial interrogation without being advised of his *Miranda* rights, requiring suppression of those statements.”); *People v.*

³²This is true whether the District Attorney’s Office attempts to cure the improper search based on inevitable discovery through an inventory search or inevitable discovery through a later search warrant.

Crawford, 163 A.D.3d 986, 987 (2d Dep’t 2018) (noting that the hearing court erred by not suppressing the defendant’s pre-*Miranda* statements that were the product of custodial interrogation); *People v. Davis*, 106 A.D.3d 144, 152 (1st Dep’t 2013) (“When, as part of a continuous chain of events, a defendant is subjected to custodial interrogation without *Miranda* warnings, any statements made in response, as well as any additional statements made after the warnings are administered and questioning resumes, must be suppressed.” (quotation omitted)).

In assessing the admissibility of *Miranda*-less statements, courts must determine (1) whether the police questioning constituted interrogation; and (2) whether the defendant was in custody. *See, e.g., People v. Cabrera*, 41 N.Y.3d 35, 52 (2023) (“*Miranda* warnings must be administered when an interrogation occurs ‘after a person has been taken into custody or otherwise deprived of his freedom of action in any significant way.’” (quoting *Miranda v. Arizona*, 384 U.S. 436, 445 (1966))).

For *Miranda* purposes, interrogation refers to any questioning or actions by law enforcement officers that are reasonably likely to elicit an incriminating response from a suspect. *People v. Paulman*, 5 N.Y.3d 122, 129 (2005) (“The term ‘interrogation’ under *Miranda* refers not only to express questioning, but also to any words or actions on the part of the police (other than those normally attendant to arrest and custody) that the police should know are reasonably likely to elicit an incriminating response.”). The Supreme Court has defined that phrase “incriminating response” to refer to “any response—whether inculpatory or exculpatory—that the *prosecution* may seek to introduce at trial.” *Rhode Island v. Innis*, 446 U.S. 291, 302 n.5 (1980). Relying on its *Miranda* decision, the Supreme Court further noted:

No distinction can be drawn between statements which are direct confessions and statements which amount to ‘admissions’ of part or all of an offense. The privilege against self-incrimination protects the individual from being compelled to

incriminate himself in any manner; it does not distinguish degrees of incrimination. Similarly, for precisely the same reason, no distinction may be drawn between inculpatory statements and statements alleged to be merely “exculpatory.” If a statement made were in fact truly exculpatory it would, of course, never be used by the prosecution. In fact, statements merely intended to be exculpatory by the defendant are often used to impeach his testimony at trial or to demonstrate untruths in the statement given under interrogation and thus to prove guilt by implication. These statements are incriminating in any meaningful sense of the word and may not be used without the full warnings and effective waiver required for any other statement.

Id. (quoting *Miranda v. Arizona*, 384 U.S. 436, 476–77 (1966)).

The standard for assessing a suspect’s custodial status is “whether a reasonable person innocent of any wrongdoing would have believed that he or she was not free to leave.” *Paulman*, 5 N.Y.3d at 129; *People v. Yukl*, 25 N.Y.2d 585, 589 (1969) (“The test is not what the defendant thought, but rather what a reasonable man, innocent of any crime, would have thought had he been in the defendant’s position.”). “The burden is on the People to prove beyond a reasonable doubt that the individual was not in custody before *Miranda* warnings were given.” *People v. McCoy*, 89 A.D.3d 1218, 1219 (3rd Dep’t 2011); *People v. Baggett*, 57 A.D.3d 1093, 1094 (2008) (“The People bore the initial burden of proving beyond a reasonable doubt that defendant’s statements were voluntary. Here, this required proof that defendant was not subjected to custodial interrogation before *Miranda* warnings were administered.” (citations omitted)).

2. Mr. Mangione’s Statements to Law Enforcement in the McDonald’s Should be Suppressed

When Patrolmen Detwiler and Frye (fully armed and in uniform) first approached Mr. Mangione at the McDonald’s, he was seated at a back table with a wall behind him, a wall to the left of him and a table in front of him:



(Ex. 6A.1 at 09:29:12.)

Instead of approaching Mr. Mangione from the front of the table, Patrolman Detwiler strategically positioned himself to Mr. Mangione's right—thereby preventing Mr. Mangione from leaving the table and exiting the McDonald's:



(Ex. 6B.1 at 09:29:15.)

Patrolman Detwiler asked Mr. Mangione to pull his mask down and “immediately” knew that Mr. Mangione was the New York City shooter. (Hr. 197–98.) That Patrolman Detwiler asked Mr. Mangione to pull down his mask before even asking his name would have indicated to any objectively reasonable person innocent of a crime that Detwiler was trying to make an identification. Similarly, that Patrolman Detwiler positioned himself to block Mr. Mangione’s only exit route from the table where he was sitting would also raise concerns to that objectively reasonable person that Detwiler was attempting to prevent him from leaving the area. The concern that Mr. Mangione was a suspect further increased when Patrolman Detwiler told him that someone called and said he was suspicious, followed by Detwiler asking to frisk Mr. Mangione even though Mr. Mangione had not done anything wrong in the seventy-five seconds since he was first approached by Detwiler. Patrolman Detwiler then asked Mr. Mangione why he was nervous, as Detwiler frisked Mangione for more than fifteen seconds. Patrolman Detwiler then indicated to Patrolman Frye that Frye should assume the strategic position blocking Mr. Mangione in (where Detwiler had been standing) so that Frye could continue to talk to Mr. Mangione. In addition, Patrolman Detwiler had purposely not given Mr. Mangione his identification card back and had pinned it to this shirt pocket—indicating that he would not be giving it back any time soon.

When all these circumstances are put together for an objectively reasonable person innocent of a crime, the following picture is painted: law enforcement believes the individual is suspicious, is trying to make an identification, is frisking the individual even though he had been doing nothing wrong, while, at the same time, law enforcement is asking him why he is nervous, is making it clear that they had no intention of returning his identification and is blocking the only exit that the individual has to leave his interaction with law enforcement. To this reasonable individual, law enforcement’s decision to block his exit seems intentional because Patrolman

Detwiler made certain to position Patrolman Frye closer to Mr. Mangione to prevent his exit when Detwiler walked out of the McDonald's. The totality of these circumstances would indicate to the objectively reasonable individual that he was not free to leave.

Furthermore, at the hearing, Patrolman Detwiler testified that, once he recognized Mr. Mangione as the New York City shooter (which was immediately after Mr. Mangione pulled down his mask at 9:29 a.m.), Mr. Mangione "was not free to leave" the McDonald's until Patrolman Detwiler identified who he was. (Hr. 307.) This testimony also supports the argument that Mr. Mangione was in custody for *Miranda* purposes soon after Patrolmen Detwiler and Frye approached Mr. Mangione at the back of the McDonald's. *See People v. Parks*, 120 A.D.2d 920, 921 (4th Dep't 1986) (relying on the fact that "the arresting officer admitted that defendant was not free to leave" in determining that, under the circumstances, "a reasonable man, innocent of any crime, who was being restrained and questioned by one or two police officers, would believe he was in custody"). Accordingly, given the totality of the circumstances listed above and Patrolman Detwiler's testimony that Mr. Mangione was not free to leave, any interrogation from this point forward (9:30:59 a.m.) would have been custodial interrogation, and therefore all the statements Mr. Mangione made from this point until he received *Miranda* warnings should be suppressed.³³ These would include the following statements that Mr. Mangione made to Patrolmen Detwiler and Frye based on their custodial interrogation³⁴:

³³Up to this point, the only statements Mr. Mangione had made to law enforcement were that his name was "Mark" and "Mark Rosario," that he was from New Jersey and whether he had been up to New York recently. Counsel does not move to suppress these statements.

³⁴There can be no doubt that these questions were intended to illicit an incriminating response, as Patrolmen Detwiler and Frye were trying to establish that Mr. Mangione was in New York recently, that he was not from New Jersey as his identification indicated and that he had no reason to be in Altoona, Pennsylvania.

Statement	Time
[In response to Frye asking what's going on and what brings Mangione up from New Jersey] I—I'm just gonna wait to see what you guys are up to. I'm just gonna wait.	09:31:34 – 09:31:37
[In response to Frye asking whether Mangione wants to talk to him and stating they had been called about a suspicious person] I mean what's going on? I'm just trying to use the WiFi—I can't use the WiFi?	09:31:40 – 09:31:48
[In response to Detwiler asking if Mangione is from New Jersey] Mhm.	09:32:17
[In response to Detwiler asking whether Mangione is visiting family in Altoona] Uh, no, I'm homeless sir.	09:32:57
[In response to Detwiler asking if Mangione's been up in New York recently] Uh, no sir.	09:33:12
[In response to Detwiler asking how long Mangione's been at the McDonald's] About 40 minutes.	09:33:40
I was just trying to get out of the rain to be honest.	09:34:00
[In response to Detwiler asking what brought Mangione to Altoona from New Jersey] I mean, I haven't been to New Jersey for a little bit . . . moving around.	09:35:05
[In response to Detwiler asking Mangione if he's from New Jersey] DMV, Yeah. DMV like... yes and the surrounding states. Moved around a bit when I was younger. Sorry.	09:35:21 – 09:35:31
Delaware, Virginia yeah exactly...the same	09:35:36 – 09:35:38
[In response to Detwiler claiming that they've been to the McDonald's multiple times for people staying too long] I mean this is like... my receipt's from 8:55.	09:36:10
I wish they would have just told me. I would have just gotten up and left.	09:36:18
[In response to Detwiler asking Mangione what he was eating] Mhm. It's good. It's my first time having it, it's good.	09:38:09 – 09:38:13
Uh, what should I do next time to not get— ³⁵	09:38:55

To the extent the District Attorney's Office argues that Mr. Mangione was not in custody at this point (9:30:59 a.m.), Mr. Mangione was certainly in custody once additional officers responded to the back of the McDonald's and limited Mr. Mangione's movements even more. By 9:42:36 a.m., there were eight officers in the McDonald's near Mr. Mangione: Patrolman Detwiler,

³⁵Should the District Attorney's Office argue that this statement was initiated by Mr. Mangione, the New York Court of Appeals has noted that the "fact that the defendant may have initiated the exchange is not necessarily controlling" because "[s]tatements made in response to police questioning or during a long informal discussion are not truly spontaneous, even though the defendant may have made the opening remarks." *People v. Rivers*, 56 N.Y.2d 476, 479 (1982).

Patrolman Frye, Lieutenant Hanelly, Sergeant Burns, Corporal Trent, Corporal Miller, Patrolman McCoy and Patrolman Yeager. Additionally, three of the officers (Patrolmen Frye, Detwiler and McCoy) had surrounded Mr. Mangione at the back of the McDonald's preventing him from leaving the table area:



(Ex. 6A.2 at 09:45:32.)

Mr. Mangione had been told by Patrolman Detwiler earlier that officers were called to the McDonald's because he had been there too long. Considering the incongruity between the number of officers responding (eight) to the nature of the police call (loitering), as well as the officers' strategic positioning limiting Mr. Mangione's ability to move, any objectively reasonable individual in this situation would believe that he was not free to leave. Accordingly, because Mr. Mangione was in custody when eight officers were preventing him from leaving the McDonald's by 9:42:36 a.m., the following statements before *Miranda* warnings must be suppressed:

Statement	Time
[In response to McCoy asking Mangione about his property] Yes.	09:42:58
[In response to McCoy asking whether Mangione knows “what all this nonsense is about”] I’m going to find out, I guess.	09:43:41
[In response to McCoy asking Mangione if he walked to the McDonald’s] It’s been raining, yeah.	09:43:47
[In response to McCoy asking Mangione whether he has a vehicle] I’m—just gonna let all this play out.	09:43:55
Calling a couple more cars?	09:44:04
This is a puffy jacket I’m not very big.	09:44:07
[In response to Detwiler asking whether Mark Rosario is Mangione’s real name] Uh, no sir.	09:47:13
[In response to Detwiler asking Mangione what his name is] Uh, Luigi Mangione [spells out name.]	09:47:18
[In response to Detwiler and Frye asking Mangione for his date of birth] May 6 ‘98.	09:47:39
[In response to Fox asking Mangione why he lied about his name] Uh, clearly I shouldn’t have.	09:48:03
[In response to McCoy asking Mr. Mangione’s middle initial] “N” for Nicholas.	09:48:11 – 09:48:13
[In response to Frye asking Mangione why he lied] Uh, that was the ID I had in my wallet—I had a fake ID and I handed that one.	09:48:18
[In response to Fox asking Mangione if he had a fake ID] Yes.	09:48:25

At 9:48:31, Patrolman Fox hurriedly read Mr. Mangione his *Miranda* rights. At 9:48:47, Patrolman Fox asked Mr. Mangione if he understood his *Miranda* rights, to which Mr. Mangione responded, “Yes, sir.” Patrolman Fox then asked Mr. Mangione if he wanted to speak with law enforcement. Mr. Mangione first nodded his head indicating “no,” and then stated “no, I don’t think so.” (Ex. 6B.1 at 09:48:55.) As the Supreme Court has ruled, a defendant’s invocation of his right to remain silent must be “scrupulously honored.” *Michigan v. Mosley*, 423 U.S. 96, 104 (1975). The same is true under New York and Pennsylvania law. *See, e.g., People v. Ferro*, 63 N.Y.2d 316, 322 (1984) (“[A] a suspect’s right to remain silent, once invoked, must be ‘scrupulously honored.’”); *Int. of G.E.W.*, 233 A.3d 893, 899 (Pa. Super. 2020) (“Once a person asserts his or her election to remain silent, the right must be “scrupulously honored” by the authorities.”). Yet, in violation of Supreme Court, New York and Pennsylvania law, after telling

Mr. Mangione that he was under an official police investigation and despite Mr. Mangione's clear invocation of his right to remain silent, Patrolman Fox asked Mr. Mangione why he had a fake ID. (*Id.* at 09:49:32.) Mr. Mangione again invoked his right to remain silent. This is yet another example of Altoona law enforcement violating Mr. Mangione's constitutional rights as they attempted to collect evidence for the NYPD to use against him. Because Mr. Mangione asserted his right to remain silent, all questioning that followed should be suppressed—including the following:

Statement	Time
[In response to False ID warnings] No I don't think -- . I'm sorry can you say the last part again?	09:48:54 – 09:49:19
[In response to Fox repeating False ID warnings] Got it.	09:49:29
[In response to why he had a fake ID] I'm gonna remain silent.	09:49:37 – 09:49:39
[In response to Fox asking Mangione to stand up so he could pat him down] Sure thing.	09:49:58
This is the jar of peanut butter by the way you can take that just letting you know.	09:49:59 – 09:50:02
[In response to Fox asking if Mangione had any weapons on him] No.	09:50:07
[In response to Fox asking about the jar of peanut butter] You can take it [jar of peanut butter] out if you want.	09:50:11
I have a pocketknife. Does that count?	09:50:14
[In response to Fox asking where the pocketknife is] Right pocket.	09:50:16
[In response to Fox asking to grab the pocketknife] Sure thing.	09:50:18
[In response to Fox asking to grab the pocketknife] Right here, yup...	09:51:12
[In response to Fox asking if Mangione had any other knives] No.	09:51:26
[In response to Fox stating Mangione provided a fake name] No it's not. That's my name.	09:52:03 – 09:52:06
[In response to McCoy asking what state Mangione would have an ID from] Maryland.	09:52:11
[In response to Fox asking Mangione about his date of birth] 5/6/98 is correct. That's real.	09:52:16 – 09:52:19
[In response to Burns asking Mangione his age] 26.	09:52:21
Can I ask why there are so many cops here?	09:56:28
[In response to question about whether something in bag they need to know about] Just gonna remain silent.	09:58:15

3. Mr. Mangione's Statements to Corrections Officers Henry and Rivers Should be Suppressed

At the suppression hearing, Correction Officers Henry and Rivers testified to statements that Mr. Mangione allegedly made to them on December 10, 16 and 17, 2024, while he was in custody at SCI Huntingdon, a state prison in Pennsylvania. Notably, none of these statements were ever written down by the officers and were first memorialized when the officers were interviewed by the District Attorney's Offices weeks later.

As to C.O. Rivers, he testified that he and Mr. Mangione had conversations discussing, *inter alia*, healthcare and Ted Kaczynski on December 16 and 17, 2024. (Hr. 87–91.) At the time of these alleged statements, C.O. Rivers knew that Mr. Mangione was represented by counsel. (See Hr. 98 (C.O. Rivers noting that he believed that Mr. Mangione “was given the opportunity to make phone calls to his attorney.”) Under New York's indelible right to counsel rule,

[A] defendant in custody in connection with a criminal matter for which he is represented by counsel may not be interrogated in the absence of his attorney with respect to that matter or an unrelated matter unless he waives the right to counsel in the presence of his attorney.

People v. Lopez, 16 N.Y.3d 375, 377 (2011). This rule applies even though it was a Pennsylvania officer who was having conversations with Mr. Mangione that related to the New York case. See *People v. Young*, 181 A.D.3d 1266, 1267 (4th Dep't 2020) (“Here, defendant's indelible right to counsel attached at the time of the preliminary arraignment by virtue of his request for counsel during that proceeding, and it was therefore improper for the Pennsylvania State Troopers to subsequently interview him about the New York offenses notwithstanding the fact that the public defender had not yet been assigned. In reaching that conclusion, we note that even though the interview was carried out by Pennsylvania State Troopers, their interrogation is nevertheless subject to this state's right to counsel jurisprudence inasmuch as they were agents of the [New

York] police officers.”).

It would have been clear to C.O. Rivers at the time of these conversations that the topics of healthcare and Ted Kaczynski related to the New York shooting—which had been widely reported on in the news based on law enforcement leaks. By having these conversations and eliciting information that the New York prosecutors would seek to use at trial, C.O. Rivers’ conversation was an interrogation. *See Rhode Island v. Innis*, 446 U.S. 291, 302 n.5 (1980) (The Supreme Court defining the phrase “incriminating response” in the *Miranda* context to refer to “any response—whether inculpatory or exculpatory—that the *prosecution* may seek to introduce at trial.”). Because C.O. Rivers knew that Mr. Mangione was represented by counsel at the time of these conversations, he violated Mr. Mangione’s indelible right to counsel by engaging in these conversations, and the statements about healthcare and Ted Kaczynski must be suppressed.

As to the statements allegedly made to C.O. Henry, he claims that Mr. Mangione, without any prompting or questioning, spontaneously blurted out statements on December 10, 2024, that Mangione had a backpack with foreign currency and a 3-D printed gun inside. (Hr. 137, 147, 162-63.) C.O. Henry further incredibly testified that he did not initiate or respond to Mr. Mangione’s statements. (Hr. 138, 147, 149, 150, 157, 163.) C.O. Henry further claims that Mr. Mangione made these statements even though it was the first day he was assigned to watch Mr. Mangione and they had never met or spoken before. (Hr. 164.) In essence, C.O. Henry is expecting this Court to believe that Mr. Mangione, without any prompt or questioning, just started making incriminating comments to C.O. Henry—a complete stranger—and that Henry did not respond at all or write anything down at the time. Such testimony strains common sense and credibility, is unworthy of belief and cannot be the basis for the District Attorney’s Office to meet their burden regarding admissibility of Mr. Mangione’s alleged statements to C.O. Henry. *See, e.g., People v. Berrios*, 28

N.Y.2d 361, 369 (1971) (“Where the Judge at the suppression hearing determines that the testimony of the police officer is unworthy of belief, he should conclude that the People have not met their burden of coming forward with sufficient evidence and grant the motion to suppress.”); *see generally People v. Erwin*, 42 N.Y.2d 1064, 1066 (1977) (“Given a finding that the officers’ testimony was not worthy of belief, a review of the record reveals no other evidence whatsoever which would be sufficient to provide reasonable cause for the subsequent search of the defendant’s person and his automobile. Under these circumstances the motion to suppress should have been granted.”); *People v. Carmona*, 233 A.D.2d 142, 144 (1st Dep’t 1996) (“It is well established that the People, faced with a constitutional challenge to a search and seizure, bear the burden of going forward with evidence to show the legality of the search in the first instance. The testimony offered by the People to meet this burden must be credible, and cannot be credited when it appears tailored to nullify constitutional objections, or where such testimony is physically impossible, manifestly untrue, contrary to experience, or self-contradictory.” (citations omitted)); *People v. Quinones*, 61 A.D.2d 765, 766 (1st Dep’t 1978) (rejecting the officer’s testimony “as a matter of law” where the testimony has “all appearances of having been patently tailored to nullify constitutional objections.”). Accordingly, this Court should suppress the statements that Mr. Mangione allegedly made to C.O. Henry.

IV. CONCLUSION

For the reasons stated in counsel's April 30, 2025, omnibus motion, at the December 2025 suppression hearings and in this post-hearing submission, we respectfully request that this Court grant the requested relief.

Respectfully submitted,

A handwritten signature in black ink, appearing to be 'KFR' or similar initials, written in a cursive style.

Karen Friedman Agnifilo
Marc Agnifilo
Jacob Kaplan
Counsel for Luigi Mangione

EXHIBIT A

Q1NDManC

1 UNITED STATES DISTRICT COURT
2 SOUTHERN DISTRICT OF NEW YORK
-----x
3 UNITED STATES OF AMERICA,

4 v.

25 Cr. 176 (MMG)

5 LUIGI MANGIONE,

Conference

6 Defendant.
-----x

7 New York, N.Y.
8 January 23, 2026
11:00 a.m.

9 Before:

10 HON. MARGARET M. GARNETT,

11 District Judge

12 APPEARANCES

13 JAY CLAYTON

14 United States Attorney for the
15 Southern District of New York

16 BY: DOMINIC A. GENTILE

JUN XIANG

ALEXANDRA S. MESSITER

17 THOMAS JOHN WRIGHT

Assistant United States Attorneys

18 AGNIFILO INTRATER LLP

Attorneys for Defendant

19 BY: MARC ANTONY AGNIFILO

20 KAREN FRIEDMAN AGNIFILO

JACOB KAPLAN

21 -and-

MOSKOWITZ COLSON GINSBERG & SCHULMAN LLP

22 BY: EYLAN SCHULMAN

23 CHRISTOPHER R. NEFF

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1 THE DEPUTY CLERK: *United States v. Luigi Mangione*,
2 Case No. 25 Cr. 176.

3 Counsel, please state your appearances for the record,
4 starting with the government.

5 MR. GENTILE: Good morning, your Honor. Dominic
6 Gentile, Jun Xiang, Alexandra Messiter, and Thomas John Wright
7 for the United States. Seated at counsel table with us is
8 paralegal specialist Ananya Sankar.

9 THE COURT: Good morning.

10 MS. FRIEDMAN AGNIFILO: Good morning. Karen Friedman
11 Agnifilo on behalf of Mr. Mangione. Also, Marc Agnifilo, Jacob
12 Kaplan, Eylan Schulman, and Christopher Neff on behalf of
13 Mr. Mangione. Bella Irwin will be seated at counsel table
14 doing exhibits during cross-examination.

15 Thank you, your Honor.

16 THE COURT: Thank you all. You can be seated.

17 A couple of reminders for everyone. The first is for
18 counsel, that, as I told you a couple of weeks ago when we were
19 last together, that we have a live audio feed to the overflow
20 room. The microphones are very sensitive, much more sensitive
21 than they are here in the courtroom, so if you need to confer
22 privately with each other or if you need to confer with
23 Mr. Mangione privately, just be very conscious of the
24 microphones. You can mute your microphone if you're going to
25 speak and you'd like it to be private.

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1 Also, if you are one of the handful of people who are
2 allowed to have a cell phone with you, just take a moment and
3 make sure that it is fully silent in all respects. Off is
4 better. If anyone's phone goes off during the proceeding, it
5 will be taken and you may be escorted out.

6 First, a couple of administrative notes before we get
7 to the evidence today. As to trial scheduling, I'm going to
8 adopt the parties' suggestion that we begin in-person jury
9 selection on Tuesday, September 8, with the goal of beginning a
10 non-capital on Tuesday, October 13. The Monday the 12th the
11 parties suggested is a court holiday. So that would begin on
12 Tuesday, October 13. If a capital trial is to happen, that
13 would begin -- we'd begin the presentation of evidence, opening
14 statements really, on Monday, January 11, 2027.

15 One thing that was absent from the parties' proposal
16 but is crucial to the Court's timing, in particular the timing
17 of the jury department's work, is any discussion of a jury
18 questionnaire, and, if one is used, how the administration of
19 that questionnaire would intersect with the timing of jury
20 selection. Since we're together again next Friday to talk
21 about scheduling and other matters, I just ask counsel to
22 consider that issue, discuss it with each other, and then we
23 can take it up on next Friday when we're together.

24 Okay. I also received the government's search warrant
25 affidavit. Thank you Mr. Gentile.

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1 Does that entire document need to be under seal? In
2 other words, if I refer to that document in my suppression
3 opinion, is there any information that I need to be aware of
4 that may need to be sealed?

5 MR. GENTILE: No, your Honor.

6 THE COURT: All right. Good. I just want to make
7 sure.

8 Then, finally, just a word about today's hearing and
9 the government's letter. As I previously stated, both orally
10 and in writing, the sole issue for today's hearing is to
11 receive evidence about the standard procedures being used by
12 the Altoona Police Department in September of 2024 relating to
13 the securing, safeguarding, and, if appropriate, inventorying
14 of the personal property of a person arrested in a public
15 place, all to inform the Court's evaluation of the government's
16 inevitable discovery arguments related to the contents of the
17 defendant's backpack.

18 The reason for the limitation, as I explained a little
19 bit the last time we were together, is that, in the Court's
20 view, the relevant facts that are necessary to deciding the
21 rest of the suppression motion and the government's arguments
22 and opposition to it are not in dispute.

23 Mr. Kaplan, are you going to be handling the
24 cross-examination?

25 MR. KAPLAN: No, your Honor. Mr. Agnifilo will.

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1 MR. AGNIFILO: It's going to be me, your Honor.

2 THE COURT: All right. Of course, Mr. Agnifilo, I
3 will give you some latitude on cross-examination to impeach,
4 but only if it is impeachment of this witness and his direct
5 testimony. I'm not going to allow this to turn into some kind
6 of extension of the state hearing by proxy. I'm confident that
7 you understand that, but it's good to make sure we're all on
8 the same page.

9 MR. AGNIFILO: Thank you, Judge.

10 THE COURT: So, with that understanding, as I said, in
11 its letter this morning, the government has asked me to
12 preemptively prevent the defense from using Defense Exhibit
13 Two, which appears on its face to be some kind of police log
14 document related to Mr. Mangione's arrest. I'm not going to do
15 that at this point, because I don't know yet the questions that
16 Mr. Agnifilo might ask about that document and the relevance of
17 those questions, and I can't really assess that in a vacuum.

18 I certainly understand the government's concerns. I'm
19 also confident that Mr. Agnifilo understands the scope of this
20 hearing. Everyone should understand that if we begin to veer
21 beyond that scope on direct or cross, I won't hesitate to put a
22 stop to it in the interest of conserving the Court's time and
23 not having this turn into a circus that is not relevant to any
24 issue before the Court.

25 So, with that, before we call the witness, anything,

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1 Mr. Gentile, that you'd like to raise?

2 MR. GENTILE: Not from the government, Judge. No.

3 THE COURT: Mr. Agnifilo, anything?

4 MR. AGNIFILO: Nothing from us, Judge. No.

5 THE COURT: All right. Mr. Gentile, does the
6 government have a witness?

7 MR. GENTILE: We do, your Honor. The government calls
8 Deputy Chief Nathan Snyder.

9 THE COURT: Great.

10 Mr. Snyder.

11 Okay. We're getting him from the hall I assume.

12 Welcome, Mr. Snyder. You're going to come right over
13 here, and when you get to the witness box, just remain standing
14 for the oath.

15 Thank you.

16 (Witness sworn)

17 THE DEPUTY CLERK: Please state and spell your full
18 name for the record.

19 THE WITNESS: Nathan Snyder, N-a-t-h-a-n, S-n-y-d-e-r.

20 THE DEPUTY CLERK: Thank you. You may be seated.

21 THE COURT: You might want to lower that chair. It
22 looks a little high. But you do whatever is comfortable for
23 you.

24 Mr. Gentile.

25 MR. GENTILE: May I inquire, Judge?

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1 THE COURT: You may.

2 MR. GENTILE: Judge, before we begin, I just wanted to
3 point out that some of the exhibits that the government intends
4 to introduce today are duplicates of exhibits that were
5 attached to our motion papers. We are re-numbering them for
6 purposes of this hearing, though.

7 THE COURT: Okay.

8 NATHAN SNYDER,

9 called as a witness by the government,
10 having been duly sworn, testified as follows:

11 DIRECT EXAMINATION

12 BY MR. GENTILE:

13 Q. Good morning, sir.

14 A. Good morning.

15 Q. By whom are you employed?

16 A. The Altoona Police Department.

17 Q. And what is your current position within the Altoona Police
18 Department?

19 A. I am the deputy chief.

20 Q. And how long have you been with the Altoona Police
21 Department?

22 A. Since June of 2009.

23 Q. Did you hold any law enforcement positions prior to your
24 employment with the Altoona Police Department?

25 A. I worked in the state correctional institution for about

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1 four years.

2 Q. Can you briefly describe the positions you've held while
3 you've been with the Altoona Police?

4 A. Sure. When I was hired in 2009, I was a probationary
5 officer until about 2013. I was promoted to corporal. And
6 then about five years after that, I was promoted to sergeant;
7 and about three or four years after that, to lieutenant; and
8 then, most recently, as the deputy chief as of January 2nd.

9 Q. Congratulations on your promotion.

10 A. Thank you.

11 THE COURT: That's January 2nd of this year?

12 A. This year. That's right.

13 Q. Did any of the positions that you just described involve
14 the training of police officers?

15 A. Yes, they did. When I was a patrolman before I became a
16 corporal, I was designated as a FTO. That's a field training
17 officer. And then once I was promoted to corporal, I actually
18 oversaw our FTO program for a couple years. And then, again,
19 as a lieutenant, I oversaw the program for a couple years then,
20 too.

21 Q. Just briefly, what is a field training officer?

22 A. So, a field training officer is responsible for training
23 probationary officers to become Altoona Police Officers and be
24 out on solo patrol.

25 Q. And does that include training them on rules and procedures

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1 of the police department?

2 A. Yes, it does.

3 Q. For how long were you involved in the training of police
4 officers in Altoona?

5 A. Since about 2012.

6 Q. And approximately how long did you serve as a field
7 training officer specifically?

8 A. So, once you're designated a field training officer, you're
9 always involved in the training and mentorship of probationary
10 officers.

11 Q. Chief, does the Altoona Police Department maintain a
12 written set of written policies and procedures?

13 A. Yes, they do.

14 Q. And what is that collection of policies and procedures
15 called?

16 A. They're referred to as general orders.

17 Q. And are those general orders compiled in a larger manual of
18 some sort?

19 A. Yes, they are.

20 Q. And is that manual accessible to the officers of the
21 Altoona Police Department?

22 A. Yes, it is, both electronically and in a hard copy, paper
23 copy.

24 Q. So each of the officers has a manual; is that right?

25 A. That is correct.

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1 Q. Approximately how many sworn officers are there in Altoona
2 Police?

3 A. Currently, there are 70.

4 Q. And how are these officers instructed on the rules and
5 procedures of the Altoona Police Department?

6 A. So, initially, when they are brought in, the FTO will read
7 over the general orders with them, explain them to them. They
8 will then take them out on the street and demonstrate how to
9 apply them, and then, at a later time, they're quizzed
10 basically by a supervisor as to their knowledge of that general
11 order.

12 THE COURT: I'm sorry, Mr. Gentile, to interrupt you.

13 Can I just ask, does Altoona have its own police
14 academy, Mr. Snyder -- or Chief Snyder, or do you participate
15 in some kind of pool academy?

16 THE WITNESS: We do not have our own specific. We
17 actually participate in a larger pool, which is governed by
18 MPOETC.

19 THE COURT: What is MPOETC?

20 THE WITNESS: MPOETC is the Municipal Police Officers
21 Education and Training Commission. They're the governing body
22 for Municipal Police in Pennsylvania.

23 THE COURT: Okay. So, the multiple departments pool
24 to have an academy, and this training that you've talked about,
25 the FTO portion, that's happening after officers come to you

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1 from this pool academy?

2 THE WITNESS: Yes, Judge. That's correct.

3 THE COURT: Thank you. Go ahead, Mr. Gentile.

4 MR. GENTILE: Thank you, Judge.

5 Q. Just following up on what the Court's questions were, the
6 rules and procedures of the Altoona Police Department, are they
7 taught by the police academy that the officers attend, or just
8 by these field training officers and the department itself?

9 A. By the field training officers and the department itself.

10 Q. In addition to the general orders, are there any written
11 materials that the department uses to implement its policies
12 and procedures and to train the officers on?

13 A. Yes, there is. We call them task sheets.

14 Q. And what are the training task sheets?

15 A. Training task sheets are basically the building block for a
16 specific task that the probation officer needs to learn,
17 anything from searches or how to tow a vehicle, and how we do
18 those things.

19 Q. Do the task sheets correspond to the general orders you
20 described earlier?

21 A. Yes, they do.

22 Q. And are the task sheets part of the manual?

23 A. Yes.

24 Q. We're going to get into those task sheets a little bit more
25 later. Before we move on, Chief, I want to ask you, were you

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1 involved in the arrest of the defendant on December 9, 2024, in
2 Altoona, Pennsylvania?

3 A. No, I was not.

4 Q. Were you even working that day?

5 A. I was, but not in that area.

6 Q. Were you in Altoona, Pennsylvania, on that day?

7 A. No, I was not.

8 Q. Have you spoken with the officers who did participate in
9 his arrest at the McDonald's in any substantive way about their
10 actions that day?

11 A. No, I have not.

12 Q. And have you had any involvement in the Altoona Police
13 Department's investigation of the defendant?

14 A. No, I have not.

15 Q. Have you reviewed any of the body-worn camera worn by the
16 officers who interacted with the defendant on December 9, 2024?

17 A. No, I have not.

18 Q. Let's talk a little bit about specific policies and
19 procedures of the Altoona Police Department, specifically,
20 those regarding the securing, safeguarding and inventorying of
21 detainee property.

22 Does the Altoona Police Department manual have
23 specific procedures which pertain to detainee property?

24 A. Yes, we do.

25 Q. And what are those policies and procedures?

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1 A. They are found in general orders 3.1, 3.5 and 3.6.

2 Q. And are there any policies and procedures that are
3 discussed or referenced in those task sheets that you discussed
4 earlier?

5 A. Yes, there are.

6 Q. Let's start with general order 3.1.

7 With the Court's permission, I'm going to ask
8 Ms. Sankar to publish what's been marked as Government Exhibit
9 One to the Court, the witness and the parties.

10 THE COURT: Yes.

11 Any objection, Mr. Agnifilo?

12 MR. AGNIFILO: No, your Honor. None.

13 Q. Chief, do you recognize this document that's on the screen
14 in front of you?

15 A. Yes, I do.

16 Q. What is it?

17 A. This is the Altoona Police Department's general order 3.1.

18 Q. Is this a true and accurate copy of general order 3.1?

19 A. Yes, it is.

20 MR. GENTILE: The government offers Government Exhibit
21 One into evidence, Judge.

22 THE COURT: Any objections, Mr. Agnifilo?

23 MR. AGNIFILO: No objection, your Honor. Thank you.

24 THE COURT: All right. Government Exhibit One is
25 received.

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1 (Government Exhibit One received in evidence)

2 Q. Chief, what is the title of general order 3.1?

3 A. Cell area.

4 Q. And which sections of general order 3.1 apply to detainee
5 property?

6 A. 3.1.9 and 3.1.10.

7 Q. I'm going to direct your attention to section 3.1.9, which
8 is titled "Required Detainee Searches," and specifically
9 subsection A, which is titled "Inventory Search of the
10 Detainee." And that's on page six, and paragraph one under
11 that subheading.

12 I'm going to ask you to take a look at that, and then
13 I'm also going to direct your attention to section 3.1.10,
14 which is titled "Secure Storage of Detainee Property," and it's
15 specifically subsection A and sub-subsection (a)(1). Just look
16 at that briefly.

17 Chief, taken together --

18 THE COURT: I'm sorry, Mr. Gentile.

19 Mr. Snyder, if at any time it's helpful to you to see
20 a paper copy of these documents, so you can see these things in
21 context -- I know you're very familiar with the things the
22 government is showing you, but if at any time you -- the screen
23 is fantastic, but you can't always see the whole document, so
24 please don't hesitate. I have paper copies. So does the
25 government. If at any time it would be helpful for you to see

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1 something in context in paper, you just tell me and we'll take
2 care of it. Okay?

3 THE WITNESS: Okay. Thank you.

4 THE COURT: Go ahead, Mr. Gentile.

5 MR. GENTILE: Thank you, Judge.

6 Q. Taken together, Chief, what do these two sections of the
7 general order 3.1 describe?

8 A. They describe the process of when a detainee is brought to
9 station, that their property will be searched, that the
10 detainee will be searched, that the property will be
11 inventoried, and it will be safeguarded until a disposition of
12 the detainee.

13 Q. Does this system of securing and inventorying detainee
14 property described in these particular sections apply only to
15 property that is found on a detainee's person, or does it apply
16 to all property belonging to a detainee?

17 A. This would be for all property.

18 Q. And do these procedures apply to the personal property of a
19 person arrested in a public place?

20 A. Yes.

21 Q. Let's turn to general order 3.6.

22 MR. GENTILE: May we publish what has been marked as
23 Government Exhibit Two, Judge?

24 THE COURT: Any objection, Mr. Agnifilo?

25 MR. AGNIFILO: No objection, Judge.

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1 THE COURT: Yes.

2 Q. Chief, do you recognize this document?

3 A. Yes, I do.

4 Q. And can you tell the Court what it is?

5 A. It is the Altoona Police Department's general order 3.6.

6 Q. And is it a true and accurate copy of general order 3.6?

7 A. Yes, it is.

8 MR. GENTILE: The government offers Government Exhibit
9 Two into evidence, Judge.

10 MR. AGNIFILO: No objection.

11 THE COURT: Okay. Government Exhibit Two is received.

12 (Government Exhibit Two received in evidence)

13 Q. Chief, what is the title of general order 3.6?

14 A. "Property and Evidence Control."

15 Q. I'm going to direct your attention to section 3.6.1 on page
16 2, which contains the heading "Receiving and Retention of
17 Evidence and Property." I'm going to ask you to look at that
18 briefly.

19 Generally speaking, Chief, what procedure does 3.6.1
20 establish for property coming into the possession of the
21 Altoona Police Department?

22 A. It states that all property that we receive must be
23 documented, inventoried and safeguarded until a disposition can
24 be made.

25 Q. And it applies to those enumerated categories below

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1 paragraph one; is that right?

2 A. That is correct.

3 Q. And does this system of safeguarding, securing and
4 inventorying property apply to all of a detainee's property or
5 only property that's found on his or her person?

6 A. All of their property.

7 THE COURT: Can I just ask you, Mr. Snyder, this
8 category B, all the other properties -- all the other
9 categories seem pretty self-explanatory to me, but category B,
10 "recovered property," based on your experience and involvement
11 with implementing these orders, what does "recovered property"
12 mean?

13 Give me some examples of what that refers to.

14 THE WITNESS: So recovered property would be anything
15 that we find that we can't relatively quickly link to an owner,
16 that our guys find, where -- versus like a found property,
17 typically we're talking about somebody brings that to the
18 station or somebody stops an officer and says, hey, I found a
19 wallet, that type of thing.

20 THE COURT: All right. So "recovered property" is
21 intended to encompass things that police officers might find,
22 whether at a crime scene or in connection with some other
23 investigation? Basically, anything that isn't found or
24 abandoned but is picked up by a police officer in some context
25 in the course of their duties?

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1 THE WITNESS: I would say that's accurate.

2 THE COURT: Thank you.

3 Go ahead Mr. Gentile.

4 MR. GENTILE: Thank you, Judge.

5 Q. Following up on the Court's question, all of those
6 enumerated categories, this procedure applies to? This
7 procedure applies to all those enumerated categories; is that
8 right?

9 A. That is correct.

10 Q. So, that means that any recovered property that's not
11 associated with anyone would also be inventoried as well; is
12 that right?

13 A. That is correct.

14 Q. Does this section include the personal property of a person
15 arrested in a public place?

16 A. Yes, it does.

17 Q. The third general order you mentioned, Chief, is general
18 order 3.5; is that right?

19 A. That's correct.

20 MR. GENTILE: May we publish what has been marked as
21 Government Exhibit Three?

22 MR. AGNIFILO: No objection.

23 THE COURT: Yes.

24 Q. Chief, do you recognize this document?

25 A. Yes, I do.

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1 Q. And what is this document?

2 A. This is the Altoona Police Department's general order 3.5.

3 Q. And is this a true and accurate copy of general order 3.5?

4 A. Yes, it is.

5 MR. GENTILE: The government offers Government Exhibit
6 Three into evidence.

7 MR. AGNIFILO: No objection, Judge.

8 THE COURT: Government Exhibit Three is received.

9 (Government Exhibit Three received in evidence)

10 Q. Chief, can you read what the title of general order 3.5 is?

11 A. "Collection and Preservation of Evidence."

12 Q. Directing your attention to section 3.5.2, on page 2.

13 What does that section of 3.5 cover?

14 A. Again, it states, all evidence and property received by a
15 member of our department will be documented, safeguarded and
16 secured until a disposition can be made with that.

17 Q. And, again, it applies to those enumerated categories
18 underneath paragraph A; is that right?

19 A. That is correct.

20 Q. Generally speaking, what does section 3.5.2 instruct
21 officers to do with those categories of property?

22 A. It says that we're going to document them, inventory and
23 secure them until we can get a disposition for that property.

24 Q. Chief, the three general orders we just went through, were
25 they all in effect in December of 2024?

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1 A. Yes, they were.

2 Q. Let's talk a little bit more about the task sheets you
3 discussed earlier. How are the Altoona Police Department
4 officers instructed on the procedures described in the general
5 orders?

6 A. So, again, with the task sheets, they're read to the
7 probationary officer, usually by the FTO. The FTO can ask
8 questions -- or, I'm sorry, the probationary officer will ask
9 questions. The FTO will clarify that, and then they'll
10 actually attempt to demonstrate that to show them in the field
11 how that applies. Again, they'll be brought back to the
12 station at some point and quizzed by a supervisor as to their
13 knowledge of that task, and then they'll be signed off on it.

14 Q. I believe you testified earlier that the task sheets
15 correspond to the general orders in the manual; is that right?

16 A. That is correct.

17 Q. Do instructions in the task sheets -- I'm sorry. Since the
18 instructions on the task sheets correspond to the general
19 orders, does that mean that the instructions on those sheets
20 are followed by the Altoona Police Officers throughout their
21 careers?

22 A. That is correct.

23 Q. So it's not -- doesn't just apply to probationary officers;
24 is that right?

25 A. That is correct.

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1 THE COURT: So let me just make sure I understand,
2 Mr. Snyder. The purpose of what we are calling "task sheets,"
3 their purpose to exist is to assist in training new officers;
4 is that right?

5 THE WITNESS: That is correct.

6 THE COURT: But the concepts and instructions and
7 procedures that are reflected on those task sheets are
8 procedures that apply to any officer in the department, not
9 only probationary officers?

10 THE WITNESS: That is correct.

11 THE COURT: Okay. Sometimes I just -- I want to make
12 sure I understand, so if I say something that's wrong, I want
13 you to correct me. But the summary that I -- do I have a
14 correct understanding of these task sheets?

15 THE WITNESS: That is correct.

16 THE COURT: Great. Thank you.

17 Go ahead, Mr. Gentile.

18 MR. GENTILE: Thank you, Judge.

19 With the Court's permission, I'm going to ask
20 Ms. Sankar to publish for the Court, the witness and the
21 parties Government Exhibit Four.

22 MR. AGNIFILO: No objection.

23 THE COURT: You may publish Government Exhibit Four.

24 Q. Chief, do you recognize this document?

25 A. Yes, I do.

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1 Q. And can you tell the Court what it is?

2 A. This is the Altoona Police Department task sheet for
3 custodial arrest procedures, summary, misdemeanor and felony
4 offenses.

5 Q. And is this a true and accurate copy of the task sheet for
6 custodial arrest procedures?

7 A. Yes, it is.

8 MR. GENTILE: The government offers Government Exhibit
9 Four into evidence.

10 MR. AGNIFILO: No objection, Judge.

11 THE COURT: All right. Four is received.

12 (Government Exhibit Four received in evidence)

13 Q. I'm going to direct your attention to II. It's on page 3,
14 operational procedures, section D, which is titled "In-custody
15 Arrests," and I'm going to ask you to focus on no. 7.

16 What procedure does this specific subsection address?

17 A. This talks about prisoners and their property being
18 inventoried, and actually entering that information on an
19 Altoona Police Department prisoner log.

20 Q. And does this inventory procedure apply to all property
21 that accompanies a person arrested by an Altoona officer --

22 A. Yes.

23 Q. -- or just property found on his person?

24 A. All property.

25 Q. Chief, the last item I want you to take a look at is what

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1 has been marked as Government Exhibit Five.

2 MR. GENTILE: May we publish, Judge?

3 THE COURT: Yes.

4 Q. Chief, do you recognize this document?

5 A. Yes, I do.

6 Q. And what is this?

7 A. It is the Altoona Police Department "detention of
8 prisoners, adult" task sheet.

9 Q. Is this a true and accurate copy of the task sheet
10 "detention of prisoners?"

11 A. Yes, it is.

12 MR. GENTILE: The government offers Government Exhibit
13 Five into evidence.

14 MR. AGNIFILO: No, objection, Judge.

15 THE COURT: Five is received.

16 (Government Exhibit Five received in evidence)

17 Q. Chief, I'm going to direct your attention to II,
18 operational procedures, letter D.

19 Generally speaking, Chief, what procedure does this
20 specific section address?

21 A. This is addressing personal belongings that are found with
22 a prisoner being inventoried and, again, safeguarded until a
23 disposition can be made for them.

24 Q. Does this inventory procedure apply to an arrestee's
25 property that are going to be returned to the prisoner?

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1 A. Yes.

2 Q. Does this specific procedure come into play after a search
3 of an arrestee is conducted and they've already identified what
4 property is personal and what property is evidence?

5 A. Yes, that would be correct.

6 Q. So how does this specific inventory procedure fit within
7 the broader set of procedures we've discussed previously?

8 A. So, when we're inventorying property, we decide what's
9 going to be evidence, and that gets taken care of, documented,
10 and then placed into secure evidence. Personal belongings that
11 are items that the detainee could get back, or that could
12 follow him to an institution, those things are also documented,
13 but they're documented on this form. And then they are placed
14 into a secure locker that can be accessed once we have a
15 disposition of the prisoner. So, that's how it works.

16 Q. Is this simply an additional layer of the inventory
17 process?

18 A. Yes, it is.

19 Q. Chief, were the two task sheets that you just described for
20 us in effect in December of 2024?

21 A. Yes, they were.

22 Q. My last question, Chief: Are the procedures you've
23 described here today the standardized procedures for the
24 Altoona Police Department when conducting inventory searches?

25 A. Yes.

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1 MR. GENTILE: No further questions, Judge.

2 THE COURT: Thank you, Mr. Gentile.

3 I just have one further question before
4 cross-examination. Other than for items which are evidence,
5 which I understand the purpose, but from your perspective and
6 based on your training and experience, what's the purpose of
7 this safeguarding and inventorying procedure for the remainder
8 of a detainee's personal property?

9 THE WITNESS: So, in my experience, I've had people
10 with heirloom necklaces from their grandmother, things like
11 that. These are all their personal property, and we want to
12 make sure that we get them back to this detainee. We're
13 responsible for taking them into custody, and that kind of goes
14 along with we're now responsible for your property, we want to
15 make sure you get it back.

16 Furthermore, I don't want to give back somebody's
17 property without inventorying, because somebody could say, hey,
18 my wallet had \$10,000 in it, and I don't know that if I don't
19 search it. And, obviously, one of the most important is also
20 that I'm not going to store any type of weapon or anything that
21 can maybe be accessed even upon release or anything like that,
22 so I want to make sure it's safe with the property.

23 THE COURT: Just taking a step back to arrest
24 procedures, let's say I'm arrested on a public bus and I have
25 my purse or backpack like on the seat next to me and the

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1 officers come, ma'am, stand up, and in that standing up and
2 handcuffing of me, I'm separated from my purse, with my wallet
3 and cell phone and all that. What is the property procedure to
4 be followed in Altoona? If you were training an officer, what
5 are they supposed to do with that purse that's on the seat on a
6 public bus?

7 THE WITNESS: So they'll start by asking, ma'am, is
8 this your purse? And if you say yes, we'll take that property
9 with you. If you say, no, it's not my purse, in a public place
10 like that, we'll go ask whoever owns the -- or who's
11 responsible for that area, hey, does this purse belong here, is
12 it yours? If no, then we will take custody of that purse,
13 because it is somebody's purse. And then we will inventory it
14 and try to get it back to its owner.

15 THE COURT: Why not just leave it there? You've
16 arrested me and you're taking me away. Why not just leave the
17 bag?

18 THE WITNESS: Our duties are sometimes a little broad.
19 Even though we're trying to accomplish one thing, we may
20 encounter something else, and we can't turn a blind eye to it.
21 We still have to handle that while we're there, also.

22 THE COURT: What if I say, yes, it is my bag? Why not
23 leave it there? I'm being arrested.

24 THE WITNESS: Well, because you want to bring it with
25 you. You probably have valuables in there like your ID. You

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1 might need money to take a bus home or anything like that.
2 More importantly, nowadays, everybody has their phone
3 somewhere. I know I wouldn't want to be separated from those
4 items.

5 THE COURT: Thank you.

6 Mr. Agnifilo.

7 MR. AGNIFILO: Yes. Thank you very much.

8 CROSS-EXAMINATION

9 BY MR. AGNIFILO:

10 Q. Chief Snyder, it's very nice to meet you. My name is Marc
11 Agnifilo. I'm going to ask you a few questions. It won't be
12 very long. We'll get you back to Altoona before ice and snow
13 reclaim the earth.

14 A. Thank you.

15 Q. So one thing I want to go over with you, the differences
16 between these general orders you talked about with my
17 colleague, and what were the other things called, task sheets?

18 A. That's correct.

19 Q. Okay. And just what -- who writes the task sheets, if you
20 know?

21 A. So, before me, I believe the training coordinator, prior to
22 me, had written out these task sheets.

23 Q. Okay. And the general orders, the order is from the police
24 chief of the Altoona Police Department; am I right?

25 A. That would be correct.

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1 Q. Okay. And do you have any hard copies of the orders in
2 front of you or no?

3 A. I do not.

4 Q. If you -- I repeat what the judge said, if you want the
5 hard copy orders, I'll give them to you, and that's fine.

6 THE COURT: Mr. Agnifilo, do you want him to have
7 them? I see Mr. Gentile is --

8 MR. AGNIFILO: If we could get them easily, that would
9 be great. We have them, too. I think we have them, too.

10 THE COURT: Okay. If it would be easier just to have
11 them --

12 MR. AGNIFILO: It might be.

13 THE COURT: -- for Chief Snyder to have them in front
14 of him --

15 MR. AGNIFILO: We can use one as an example. This is
16 Government Exhibit One. Can I approach the --

17 THE COURT: Yes, of course.

18 Q. If we're able to -- it's already in evidence. This is
19 Government Exhibit One. If we can go to the last page of this
20 and put this up on the screen for everyone.

21 All right. If we can go to the last page?

22 So, when you get yourself situated, Chief, this is the
23 last page of Government Exhibit One, and what you see here,
24 this one is not signed, but you see a place where it would be
25 signed by -- is that a police chief whose name you're familiar

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1 with?

2 A. Yes, it is.

3 Q. Okay. And this name, it's Janice Freehling? Am I saying
4 that right?

5 A. Yes, that's correct.

6 Q. Okay. And Chief Freehling was the chief of the Altoona
7 Police Department at some point in the past; am I right?

8 A. That is correct.

9 Q. Okay. She's no longer the chief?

10 A. No longer.

11 Q. All right. And is it your understanding with these general
12 orders that these are actually signed by the chief of police?

13 A. Yes.

14 Q. This one doesn't happen to be, but there's a place for a
15 signature?

16 A. That is correct.

17 Q. Okay. And, in your experience, if we were in the Altoona
18 Police Department and we were looking at the general orders,
19 would we see these general orders signed by the police chief?

20 A. That is correct.

21 Q. All right. And that's true for all the general orders; am
22 I right?

23 A. I would say that would be correct.

24 Q. Okay. Just to give an example, let's just pull up, just as
25 another example, Government's Exhibit Two. It's already in

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1 evidence. We'll go to the last page. We can give you that
2 hard copy as well.

3 MR. AGNIFILO: May I approach the witness, Judge?

4 THE COURT: Yes.

5 MR. AGNIFILO: Thank you.

6 Q. All right. This is Government's Exhibit Two. We're going
7 to go to the last page.

8 And we see this same sort of signature block there,
9 right?

10 A. That is correct.

11 Q. Okay. And now, in regard to these task sheets, let's go to
12 what is already in evidence, for example, as Government's
13 Exhibit Five, if we can pull it up for the chief. It's a
14 two-page document.

15 Chief, we're going to show you both pages. So, this
16 is the first page of Government's Exhibit Five.

17 Do you see that there on your screen?

18 A. I do.

19 Q. Okay. And let's go to the second page.

20 Do you see that on your screen?

21 A. Yes, sir.

22 Q. All right. So one of the differences -- and tell me if
23 this is right -- between the general orders and these task
24 sheets is that the general orders are actually signed by the
25 chief of police, correct?

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1 A. That is correct.

2 Q. All right. And tell us again, who prepares the material in
3 the task sheets?

4 A. Before me, I believe it was the training coordinator.

5 Q. All right. So am I right that one has the sort of force of
6 an order -- it's called an order, signed by the police chief --
7 and then one does not? Am I right?

8 A. So the task sheet is meant to be broken down, because,
9 again, it's the first exposure that a probationary officer has
10 to this task, so it's really broken down. Whereas, when you
11 saw in the general orders that were mentioned and that we
12 talked about, there was maybe only four or five lines on these
13 talking about maybe in the same task, you're now broken down
14 into two pages of explanation, because, again, we're not
15 dealing with a 10-year veteran who may understand the lingo and
16 that type of thing. This is a brand new guy fresh out of the
17 academy. So --

18 Q. Got it. Let's go to the first page of this document. If
19 you can -- so the point -- this is really a summary. This is a
20 summary of corresponding parts of the general order; is that a
21 fair way to put it?

22 A. I would say if you look at the training task sheet itself,
23 like Roman numeral I there has reference material, so that's
24 also explaining to the probation officer, we're not just
25 telling you what to do. We're going to show you where that

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1 came from, also, because that is part of the task sheet for the
2 actual probationary officer, an FTO, to go over that reference
3 material, to show them how we got to this is why we do that.

4 Q. Got it. All right. I'm going to direct your attention to
5 Government's Exhibit One. I think you have a hard copy. You
6 went over it with my colleague from the government.

7 I want to direct your attention to 3.1.9, which is on
8 the sixth page, and when you get there, just look up and let me
9 know you're there.

10 A. Yes.

11 Q. All right. So this is entitled "required detainee
12 searches," right?

13 A. That is correct.

14 Q. Okay. So you agree with me, we're going to go step-by-step
15 through this section. In terms of the title, there's no
16 reference to a bag, there's no reference to a car, there's no
17 reference to anything other than the three words, "required
18 detainee searches;" am I right?

19 A. That is correct.

20 Q. And then, A, it says, "inventory search of the detainee."
21 Do you see that?

22 A. I do.

23 Q. Okay. Again, no reference to anything other than the
24 detainee, the person in custody, correct?

25 A. Correct.

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1 Q. And let's look at the first sentence. "All detainees
2 placed in the cell block area shall be thoroughly searched by
3 the processing officer regardless of any prior searches that
4 occurred in the field." That's the first sentence there,
5 right?

6 A. That's correct.

7 Q. All right. So, this is talking about a search of, by its
8 own words, the detainee in the cell block area, correct?

9 A. That is correct.

10 Q. All right. So this is telling us that the search of the
11 detainee has to be in a particular area, specifically, the cell
12 block area, correct?

13 A. It's saying, in that first sentence, that the detainee
14 placed in the cell block shall be searched thoroughly by the
15 officer. That's prior to putting them in that cell block.

16 Q. Correct. Okay. So what this is telling us is that the
17 detainee is supposed to be searched prior to the detainee being
18 put in the cell?

19 A. That is correct.

20 Q. All right. If we go to the second paragraph, it says,
21 whenever possible, a search of the detainee, shall be conducted
22 by an officer or other member of the same -- of the same sex as
23 the detainee; am I right?

24 A. That is correct.

25 Q. And that's because this contemplates a physical search of

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1 the person of the detainee; am I right?

2 A. Yes, that's correct.

3 Q. All right. If we were talking about a search of a bag or a
4 backpack, the sex of the person searching the bag or the
5 backpack wouldn't matter, would it?

6 A. Not that I'm aware of.

7 Q. Right. This is somewhat of a privacy concern that we want
8 male detainees searched by male officers; we want female
9 detainees searched by female officers; am I right?

10 A. You would be correct.

11 Q. Okay. And that same concern would not exist if the search
12 was of a shoulder bag or a backpack or some other object; am I
13 right?

14 A. Not that I would find any reason for.

15 Q. Right. Okay. And then it goes on to say, the search
16 should be conducted in a safe and discrete manner. Along the
17 same lines, we want the search of the person to be conducted in
18 a safe and discrete manner. Am I correct?

19 A. Correct.

20 Q. Okay. Because what we're talking about in these two
21 paragraphs is the search of a person; am I right?

22 A. I would say that would be correct.

23 Q. Okay. So let's go to the third paragraph. The third
24 paragraph says, "special attention shall be given to search
25 those areas where items could be hidden." And then there's a

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1 comma. We're going to get to what's after the comma in a
2 minute. "Special attention shall be given to search those
3 areas where items could be hidden."

4 That's what it says before the comma; am I right?

5 A. Correct.

6 Q. Now, certainly, items can be hidden in bags, correct?

7 A. Correct.

8 Q. Items could be hidden in backpacks, right?

9 A. Yes.

10 Q. But let's now look at what's after the comma. Such as
11 jacket, jacket linings -- I'm sorry, jacket linings, hidden
12 pockets, hats, belts, footwear, clothing seams, pant waists,
13 and/or cuffs.

14 Do you see that there?

15 A. I do.

16 Q. Okay. Each of those eight things relate to the search of a
17 person, correct?

18 A. They do.

19 Q. Okay. A hat obviously would be on a person, correct?

20 A. Possibly.

21 Q. Yeah. Belts, footwear, these are items that you associate
22 with the search of a person, correct?

23 A. Correct.

24 Q. Okay. And, again, you don't see any reference to bags or
25 backpacks or anything like that? At least what we've looked at

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1 so far in this section; am I right?

2 A. Correct.

3 Q. So number four, just so we hit all the different sections,
4 number four says, "officers shall exercise special attention to
5 detail to ensure that no detainee is placed in a cell while in
6 possession of any items which may be used to harm themselves or
7 others or otherwise be used for the purposes of escape."

8 Do you see that there?

9 A. I do.

10 Q. Okay. And then let's go to number five. Number five talks
11 about strip searches and body cavity searches.

12 Do you see that there?

13 A. I do.

14 Q. Okay. In regard to that, we're talking about specifically
15 and exclusively to the search of a person's body, correct?

16 A. Correct.

17 Q. Okay. So, again, there's no reference, and we're already
18 up to paragraph five here, there's no reference to a bag or a
19 backpack or anything other than the search of a person, right?

20 A. I believe on number three, after you listed the clothing
21 seams, the hats, the belts, the footwear, the next sentence,
22 "the searching officer shall remove all personal property and
23 itemize the property," when we went over that -- "all personal
24 property."

25 Q. Okay.

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1 A. So that would then include everything.

2 Q. All right. I'm glad you brought that up. Let's talk about
3 that for a second.

4 All right. So the sentence before it, you agree with
5 me, is eight different things that you associate with a search
6 of a person, right? We just talked about that a few minutes
7 ago?

8 A. Yes.

9 Q. Now, what this sentence is saying, and correct me if I'm
10 wrong, is that the personal property and items of property are
11 supposed to be put on a detainee property receipt, correct?

12 A. That is correct.

13 Q. So then this sentence introduces a new concept for us,
14 which we haven't seen so far, that being the detainee property
15 receipt, correct?

16 A. Correct.

17 Q. And just very briefly, we don't need to belabor the point,
18 what's the detainee property receipt?

19 A. So, it is referred to as the prisoner property log. It's
20 just another name for it.

21 Q. Okay. And this is -- and just describe it to us very
22 briefly. It's a document? It's a physical document; am I
23 right?

24 A. Correct.

25 Q. I would imagine it has the name of the prisoner, correct?

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1 A. Correct.

2 Q. I would imagine it would have a different list of entries
3 of different items of property that are on that log; am I
4 right?

5 A. Correct.

6 Q. Okay. And so what paragraph three is telling us is that
7 this property that you've recovered, you have to put all that
8 on a detainee property receipt; am I right?

9 A. Correct.

10 Q. Okay. All right. Now, so let's go to -- so, five, I think
11 you agreed with me that strip search, body cavity searches are
12 uniquely concerned with the search of a person's body, correct?

13 A. Correct.

14 Q. All right. Now let's go to the last paragraph here. All
15 property removed from the detainee shall be itemized using a
16 prisoner property form.

17 Do you see that there?

18 A. I do.

19 Q. Okay. So the phrase that's used here is "removed from the
20 detainee;" am I right?

21 A. Correct.

22 Q. Okay. Again, there's no reference -- and now that we've
23 gone through this entire section, and you tell me if I'm
24 missing it, there's no reference anywhere in this section to a
25 bag, correct?

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1 A. No, I do not see anything that says "bag" specifically.

2 Q. Okay. There's no reference to anything other than a search
3 of the person?

4 A. Not in this general order, no.

5 Q. Okay. So we're just talking the minimum -- 3.1.9, there's
6 no reference to anything other than the search of a person,
7 right?

8 A. Right.

9 Q. Okay. Let's go 3.1.10.

10 Now, 3.1.9, as we talked about, was called "required
11 detainee searches," right?

12 A. Correct.

13 Q. And 3.1.10 is called "secure storage of detainee property;"
14 am I right?

15 A. Correct.

16 Q. Okay. Now, tell me if this is right, these two sections
17 work in conjunction with each other in that, under 3.1.9,
18 property is going to be collected, and then at 3.1.10, property
19 is going to be stored in a secure fashion; am I right?

20 A. That would be correct.

21 Q. Okay. What we see is we have some of the same phrases.

22 Let me show you what I mean. So, in 3.1.9(6), it says, "all
23 property removed from the detainee."

24 Do you see that there?

25 A. I do.

Q1NDManC

Nathan Snyder - Cross

1 Q. Okay. Then if we go down to 3.1.10 -- it's the last
2 paragraph. I think it's a -- no, I'm sorry, it's 2(a). Do you
3 see that at the bottom?

4 A. Yes.

5 Q. Okay. And it uses that same phrase again, "contraband,
6 evidence and/or illegal weapons removed from the detainee." We
7 have that same phrase, "removed from the detainee," right?

8 A. Correct.

9 Q. And, again, in those sections -- and feel free to take a
10 look at the whole section 3.1.10 -- there's no reference to a
11 bag or a backpack or something other than the search of a
12 person?

13 A. I do not see anything there.

14 Q. Okay. Now, I think Her Honor was asking you some
15 questions, and I wanted to follow up on a few of them. The
16 idea of safeguarding property -- let me back up a second.

17 Inventory searches are to safeguard personal property;
18 am I right?

19 A. That is correct.

20 Q. This, these two sections, are not sections explicitly about
21 evidence per se, things that are going to be used in a
22 courtroom?

23 A. They're not specific about that, correct.

24 Q. Right. So, you're familiar with not only the three general
25 orders that my colleague showed you a few minutes ago, you're

Q1NDManC

Nathan Snyder - Cross

1 familiar with all of them; fair to say?

2 A. Yes.

3 Q. Okay. We have one I wanted you to take a look at. It's
4 general order 1.2. It would be -- it's proposed as Defense
5 Exhibit A.

6 What I'm going to do is I'm going to give you a copy.

7 THE COURT: Do you have a copy for me, Mr. Agnifilo?

8 MR. AGNIFILO: Yes. Yes, of course, Judge.

9 All right. Yes, Judge. Can I approach?

10 THE COURT: You can hand my copy to Ms. Verneus.

11 Thank you.

12 Q. All right. So before we talk about this document, just
13 tell us briefly what it is.

14 A. It is the Altoona Police Department's general order 1.2.

15 Q. Okay. And if we can go to the last page. Feel free to
16 flip to the last page of it. It's page 15.

17 And we see the same name of the same police chief,
18 Chief Janice Freehling.

19 Do you see that?

20 A. That is correct.

21 MR. AGNIFILO: Your Honor, we offer this as Defense
22 Exhibit A.

23 MR. GENTILE: No objection.

24 THE COURT: All right. Defense A is admitted.

25 (Defendant's Exhibit A received in evidence)

Q1NDManC

Nathan Snyder - Cross

1 Q. So, Defense Exhibit A, if we look at -- I've been meaning
2 to ask you -- I'm meeting you for the first time, so I've been
3 meaning to ask you a lot of things -- on the first page, you
4 see it states "index words?"

5 A. Yes.

6 Q. It says "index words," but those are basically the
7 different types of information that's going to be in that
8 general order; am I right?

9 A. That would be correct.

10 Q. All right. So if we look at the third entry here, it says,
11 "statutory authorizations."

12 That's the first thing, right?

13 A. Right.

14 Q. Then it says "in-custody procedures," the second thing,
15 right?

16 A. That's correct.

17 Q. And then it says, "search and seizure procedures," right?

18 A. Correct.

19 Q. So is it fair to say this is a general order that deals
20 with the procedures around search and seizure?

21 A. Correct.

22 Q. All right. So let's go through this and just -- we're not
23 going to belabor, just a little bit more detail. We're going
24 to look on page 2. We're going to look at the top of page 2,
25 1.2.1.

Q1NDManC

Nathan Snyder - Cross

1 Do you see that there?

2 A. Yes.

3 Q. It says, "agency statutory authorizations."

4 Do you see that?

5 A. I do.

6 Q. Okay. And it says, under A, "United States Constitution,
7 the Constitution of the Commonwealth of Pennsylvania, the
8 Pennsylvania Rules of Criminal Procedure, Title 234, and the
9 Third Class City Code define the legal authority granted to the
10 Altoona Police Department as it pertains to the enforcement of
11 codified laws, statutes and ordinances."

12 It says that there, right?

13 A. Correct.

14 Q. Okay. Now, is it right, is it your understanding of that
15 paragraph and the rules generally that the Altoona Police
16 Department is saying that, our general orders are going to be
17 in accordance with, for instance, the Constitution of the
18 United States of America?

19 A. That is correct.

20 Q. And the Constitution of the Commonwealth of Pennsylvania,
21 right?

22 A. Correct.

23 Q. And these other legal laws and rules that are listed here,
24 correct?

25 A. Correct.

Q1NDManC

Nathan Snyder - Cross

1 Q. All right. Let's look very briefly on page 3. I think
2 this is subsumed by what we just talked about.

3 On the top there it says, "policy." Do you see that
4 on the top of page 3?

5 A. Yes, I do.

6 Q. Okay. And it says, "it is the sworn responsibility of all
7 members of the Altoona Police Department to comply with the
8 constitutional requirements regarding in-custody situations,
9 including but not limited to" -- then there are a number of
10 entries, and one of them is "search and seizure," right?

11 A. Correct.

12 Q. Okay. So one of the obligations of the officers and other
13 folks who work for the Altoona Police Department is that their
14 procedures have to follow the U.S. Constitution; am I right?

15 A. Correct.

16 Q. And the other laws that were outlined in that paragraph we
17 just looked at a little while ago, right?

18 A. Correct.

19 Q. Okay. Now, there are a number -- if we look on page 5, so
20 we get to page 5 -- and just look up at me when you're done.

21 Okay. Thank you. So, it's 1.2.3, and it says "search and
22 seizure without a warrant procedures."

23 Do you see that?

24 A. I do.

25 Q. Okay. There are a number -- and I'm going to -- we're

Q1NDManC

Nathan Snyder - Cross

1 going to go sort of -- I'm going to have you thumb through
2 pages 5, 6 and 7. There are a number of different types of
3 searches that are listed under there, and we're going to talk
4 about them one by one. We're not going to talk about a lot of
5 them in great detail at all.

6 The first one on the bottom of page 5, "search by
7 consent," that's A, right, search by consent?

8 A. Correct.

9 MR. GENTILE: Objection, your Honor. We're going
10 beyond the scope of the very narrow lane of inquiry the Court
11 set out for this, the securing and inventorying of property of
12 an arrested person in a public place. We're now venturing into
13 search and seizure law and consent and probable cause, and that
14 is not the focus of today's hearing, at least from the
15 government's perspective.

16 THE COURT: Understood.

17 Where is this going, Mr. Agnifilo?

18 MR. AGNIFILO: So, where we're going is I believe that
19 the direct examination does not capture the entirety of what
20 the obligations of the Altoona Police Department are, and this
21 is where I'm getting to with the Chief, is that what we see in
22 the inventory procedures later in the general orders, in
23 chapter three of the general orders, are all informed by the
24 earlier chapters of the general orders, including this one in
25 the first section.

Q1NDManC

Nathan Snyder - Cross

1 THE COURT: So let's try to get to that point a little
2 bit faster.

3 MR. AGNIFILO: Yes. Very good.

4 THE COURT: I mean, we can assume Deputy Snyder is
5 familiar with these orders. He said that a number of times.

6 MR. AGNIFILO: Yes.

7 THE COURT: I don't think you have to orient him.
8 Just get to the part that's relevant to this.

9 BY MR. AGNIFILO:

10 Q. Let's get right to it. Let's go to page 8. Page 8 talks
11 about "impound inventory search."

12 Do you see that there?

13 A. Yes, I do.

14 Q. All right. And this is talking about impounded vehicles;
15 am I right?

16 A. That is correct.

17 Q. Which we don't have in this case, correct? I mean, as far
18 as you know?

19 A. I am unaware.

20 Q. Very good. All right. But in the section on impounded
21 vehicles, this particular order, for instance, talks about how
22 to deal with closed containers, correct?

23 A. Where is that --

24 Q. Let me not make you look for it. Fourth line down. It
25 says, "when inventorying a vehicle, all closed containers will

Q1NDManC

Nathan Snyder - Cross

1 be searched unless the contents can easily be ascertained."

2 Do you see that there?

3 A. I do.

4 Q. Okay. So here now I want to get back to what we were
5 talking about a few minutes ago. When I asked you before, in
6 the two sections you reviewed on direct examination and then
7 with me on cross, there was no mention in those sections, for
8 instance, of a backpack. I asked you that a few times, right?

9 A. Right.

10 Q. Or a bag of any sort, correct?

11 A. Correct.

12 Q. Or "any closed container" was not mentioned in that section
13 we spoke about a few minutes ago, correct?

14 A. Correct.

15 Q. But you'll agree with me that when the chief, when the
16 police chief who signed these orders wants closed containers to
17 be able to be searched, that could be written into the order as
18 it is here?

19 A. I am unaware of what she wanted at that time.

20 Q. Okay. But you agree with me that there is a provision for
21 searching closed containers in the impound section having to do
22 with vehicles, correct?

23 A. Correct.

24 Q. Now, the idea of an inventory search is safeguarding a
25 prisoner's property pending whatever's going to come next in

Q1NDManC

Nathan Snyder - Cross

1 that person's situation, whether they be released, whether they
2 go to prison, whatever the situation may be, correct?

3 A. Correct.

4 Q. Okay. It is not -- tell me if this is right. It is not a
5 typical inventory situation when all of the items are going to
6 be given to another police department, for instance, in a
7 murder investigation?

8 MR. GENTILE: Objection.

9 THE COURT: Is there a difference, Deputy Snyder, in
10 your inventory practices if you're going to hand something over
11 to another department or if you know that Altoona is keeping
12 the investigation? Does that have any effect on your practices
13 with regard to inventorying bags or things of that nature?

14 THE WITNESS: As far as the inventory, no.

15 Q. Fair to say, the inventory process does not contemplate
16 that this is all going to be used as evidence; am I right?

17 A. I'm not sure I understand.

18 Q. Let me ask you a better question. That's fair enough.

19 The purpose of inventorying, I think you've identified
20 three different purposes, and I want to make sure I have this
21 right. You want to make sure that the person's property is
22 returned to them and it's not lost, correct?

23 A. Correct.

24 Q. You want to make sure that it's not damaged, right?

25 A. Correct.

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Nathan Snyder - Cross

1 Q. And you want to make sure that the police personnel and
2 others who might be in close proximity with that property are
3 safe; am I right?

4 A. Correct.

5 Q. Okay. None of those purposes relate to the handling of
6 evidence to be used in a criminal case; am I right?

7 A. Correct.

8 Q. Bear with me one second, Chief.

9 MR. AGNIFILO: Your Honor, just give me one second,
10 please.

11 Q. Chief, I think we talked a little bit ago about a prisoner
12 log, right?

13 A. Correct.

14 Q. I'm going to show you a copy.

15 You're familiar with them generally I imagine, right?

16 A. Yes.

17 Q. I'm going to show you a copy, and I'm just going to ask you
18 some specific questions. You can refer to it or, if you
19 remember independently, you can answer that way.

20 MR. AGNIFILO: So, if your Honor is okay, I'll
21 approach the chief and just give him a sample department
22 prisoner log.

23 THE COURT: Is there a copy for me, also?

24 MR. AGNIFILO: Yes, Judge.

25 This is actually the one in this case, but we're not

Q1NDManC

Nathan Snyder - Cross

1 looking to put it into evidence.

2 THE COURT: Okay. So it's just, in effect, as a
3 demonstrative, Mr. Agnifilo?

4 MR. AGNIFILO: Yes.

5 THE COURT: Just for the record, the witness has been
6 handed an exhibit marked as Defense Exhibit B for
7 identification.

8 MR. AGNIFILO: Yes, Judge. Thank you. This is
9 Defense B for identification.

10 Q. Okay. So, this is an Altoona Police Department prisoner
11 log; am I right?

12 A. That is correct.

13 Q. Okay. I really just want to look down about one-third from
14 the bottom where it says "prisoner property."

15 Do you see that there?

16 A. Yes.

17 Q. Now, correct me if I'm wrong, there are a number of entries
18 on this particular prisoner log, which are belt, wallet,
19 jacket, hat, purse, watch, rings, necklace, and earrings.

20 Do you see those there?

21 A. I do see them.

22 Q. Okay. There's no reference anywhere in this document, am I
23 right, to bags, backpacks, or things of that nature?

24 A. That would be under "other items."

25 Q. Okay. Other items?

Q1NDManC

Nathan Snyder - Cross

1 A. Yes. Correct.

2 Q. But there's nothing specifically to reflect bags or
3 backpacks or things like that?

4 A. No.

5 Q. Okay. Now, in terms of an inventorying procedure, correct
6 me if I'm wrong, there would be no reason to read entries in,
7 for instance, a notebook or a journal; am I right?

8 A. Typically, not something that would be done.

9 Q. Okay. It's something that you might want to photograph the
10 entirety of the journal to see what condition it's in, but
11 there would be no reason to read each page, correct?

12 A. I'd say that's correct.

13 Q. And we're getting to the end. I want to go through some of
14 the other sections that you went through with my colleague
15 here.

16 All right. Let's look at general order 3.6. Do you
17 have that in front of you?

18 A. I do.

19 Q. You do. Can you take a look at it for a second?

20 THE COURT: Just for the record, that's Government
21 Exhibit Two.

22 MR. AGNIFILO: It is Government Exhibit Two.

23 Q. So, here it talks -- in the "index words," it says,
24 evidence, found and/or abandoned property, recovered property.

25 Do you see that there?

Q1NDManC

Nathan Snyder - Cross

1 A. I do see that.

2 Q. Okay. Now, if we look at pages 6 and 7, under 3.6.6, it
3 talks about documented inspections, inventory, and audits
4 required.

5 Do you see that there?

6 A. Yes, sir.

7 Q. Okay. And then the first thing it talks about is "annual
8 inspection."

9 Do you see that there?

10 A. I do.

11 Q. What's an annual inspection?

12 Let me read, just so you don't -- if you know what it
13 is, you can give an answer. If not, I'm happy to read it to
14 you.

15 A. I do. So, it's an annual inspection of the evidence room.

16 Q. Okay. So that has nothing to do with an inventory per se,
17 in regard to a specific person?

18 A. Not that I am aware of.

19 Q. Okay. Now, is this section here, 3.6.6, is this a section
20 that has to do with the auditing and sort of self, you know,
21 regulation of the evidence room?

22 A. Yes.

23 Q. All right. So this is basically a principle of quality
24 control that the Altoona Police Department uses to make sure
25 that everything in the evidence room is kept in good order?

Q1NDManC

Nathan Snyder - Cross

1 A. Correct.

2 Q. All right. Let's look at general order 3.5, which is
3 Government Exhibit Three. Do you have that in front of you,
4 Chief? If not, we can get you --

5 A. I do not.

6 Q. Yes. Let me get it to you. Let me get it to you.

7 MR. AGNIFILO: Does your Honor want a copy of 3.5?

8 THE COURT: I have it. Thank you, Mr. Agnifilo.

9 Q. Okay. Let me approach the witness.

10 Take a look at it, and I have just a couple questions
11 for you. We're really winding down.

12 So, in that first section, under "purpose," it talks
13 about the integrity of the chain of custody of evidence.

14 Do you see that there in the second -- that second
15 line there?

16 A. Yes, I do.

17 Q. All right. And tell me if this is right. Chain of custody
18 is a principle where pieces of evidence will always be able to
19 know who had it, that it was logged properly, so if you want to
20 use it in a court proceeding, it can be admissible; is that
21 basically right?

22 A. Sounds like a basic principle.

23 Q. All right. It sounds like something a lawyer would say.

24 So, now, if we look at page 3, under "physical evidence," under
25 (2), it says -- tell me, are you there?

Q1NDManC

Nathan Snyder - Cross

1 A. Yes.

2 Q. Okay. It says, "when an officer receives physical
3 evidence, he or she shall maintain a secure chain of custody."
4 You see that phrase again, right?

5 A. Yes.

6 Q. Okay. So this is a section that has to do with the
7 collection of evidence; am I right?

8 A. Correct.

9 Q. All right. And the maintenance of a chain of custody of
10 collected evidence, correct?

11 A. Correct.

12 Q. Okay. So that could be used and admitted someday in a
13 court proceeding if it gets to that?

14 A. If that's where it goes, yes.

15 Q. All right. One second, Chief.

16 MR. AGNIFILO: One second, Judge.

17 Q. All right. A few more questions, Chief, and then I'll be
18 done.

19 Fair to say -- I think we talked about it at the
20 outset -- the general orders, the general orders are a much
21 more thorough discussion of the different subject matters
22 covered than are the task sheets; is that fair to say?

23 A. They're a little deeper into that -- I'm not understanding.

24 Q. Yes. Sure. The general orders that we've been covering
25 cover these different subjects in great detail; am I right?

Q1NDManC

Nathan Snyder - Cross

1 A. Not as -- I would disagree, when we're talking about the
2 task sheets, like I explained before, for new probationary
3 officers, we try to break it down a little better for them.
4 Again, they don't know -- they're not a 10-year veteran officer
5 that understands maybe the lingo or some of the terminology
6 used. So, for the new guys, I would say the task sheets are
7 broken down a little bit better.

8 Q. But the task sheets are essentially -- they're not issued
9 by the police chief, correct?

10 A. They're issued as part of our manual to the new guys, and
11 it is something they have to pass in order to continue on in
12 the training program.

13 Q. Right. But whereas the general orders are actually orders
14 from the police chief, the task sheets are not.

15 A. The general order is an order. Yes. Correct.

16 Q. And the task sheets are not an order in the same way; am I
17 right?

18 A. I guess it depends on what you mean. Like I said, you
19 can't -- in order for probationary officers to get off
20 probation, he has to complete those task sheets and show that
21 he has knowledge on those task sheets. If he does not sign off
22 on the task sheet, he will not move further in the FTO program.

23 Q. And just so I understand --

24 THE COURT: Go ahead, Mr. Agnifilo, and then I'll ask
25 my question.

Q1NDManC

Nathan Snyder - Cross

1 Q. Sure. When you say "sign off," I'm not clear on what
2 you're saying. He signs off on the task sheets. Just tell us
3 what that means.

4 A. Oh, basically, when the task sheet is presented to the
5 probationary officer and the FTO explains it and the probation
6 officer reads it and everything, they go out and do the
7 demonstration, show how it's applicable in the field, come
8 back. Then a supervisor -- their kind of last step as a new
9 guy, their supervisor would quiz them on that task sheet.

10 Once the supervisor feels, hey, this probational
11 officer is proficient in this task, he or she will sign it.
12 That piece of paper will be training paperwork for the day, and
13 we will check that off as one of their completions of task
14 sheets required for them for that step in the training program.
15 Then they can continue to move forward.

16 Q. All right.

17 THE COURT: Can any random person in the Altoona
18 Police Department prepare those task sheets and check them off
19 and sign them?

20 THE WITNESS: So, we require our probationary officers
21 to only sign them off with supervisors who have been FTOs.

22 THE COURT: Those are people designated by the chief
23 of the department to conduct this training, right?

24 THE WITNESS: That is correct.

25 THE COURT: Go ahead, Mr. Agnifilo.

Q1NDManC

Nathan Snyder - Cross

1 MR. AGNIFILO: Yes. Thank you, Judge.

2 Q. Do you know how the general orders are prepared?

3 A. As far as typed up or --

4 Q. Is there a meet -- because now you're a deputy chief. Are
5 there meetings to refine them as time goes on? Have you ever
6 had any input into what goes into a general order?

7 I'm just trying to figure out how they get to be what
8 they are.

9 A. I do not.

10 Q. Fair enough. Give me one second.

11 MR. AGNIFILO: Sir, thank you. It was very nice
12 meeting you. Safe travels back to Pennsylvania.

13 THE WITNESS: Thank you.

14 THE COURT: Chief, I just have a question. I want to
15 make sure I understand. Let's go back to my example where
16 you're arresting me on a public bus, right? So, for purposes
17 of the example, there's maybe a probationary police officer.
18 You're the field training officer making sure that they follow
19 all the procedures.

20 You approach me. Ma'am, stand up, please. What's
21 this all about? You say, ma'am, I need you to stand up. I
22 stand up. I'm handcuffed, and I'm told I'm going to be placed
23 under arrest. On the seat next to me, towards the window, is a
24 purse, a large one for these purposes, and the officer asks me,
25 as we went over before, ma'am, is that your bag. I say, yes.

Q1NDManC

Nathan Snyder - Cross

1 Walk me through everything that happens next if you
2 are teaching a probationary officer what to do in that
3 situation. What's the next thing that's going to happen?

4 THE WITNESS: So, I'm going to instruct the
5 probationary officer, okay, now that you are secured, go ahead
6 and let's pat her down, make sure there's no obvious weapons,
7 anything like that that can obstruct or hurt us or them. I'm
8 going to have him or her do that. We're going to take the bag.
9 We're probably going to move off the bus, because it's not
10 really a controlled environment. Preferably -- we're being
11 hypothetical -- on the street, move to the patrol car, where
12 that way we can secure you in the car. At that time, we'd do
13 probably a very brief check through the bag to make sure we're
14 not -- you know, in our neck of the woods, there's a lot of
15 drugs, so I wouldn't want anything that could pass through the
16 system and we could smell or inhale or anything like that. And
17 I would teach him or her that. This is what we're doing.
18 We're checking to make sure there's nothing in here that can
19 hurt us or hurt her while we're transporting it.

20 Once we go back to the station, once we go to the
21 station, we'd bring you in the alley door. We'd then secure
22 you there. We have a place we secure people we bring in.

23 THE COURT: Is that the holding cell or --

24 THE WITNESS: It's actually like an intake area. It's
25 got like a shackle to the floor, and that's where we would

Q1NDManC

Nathan Snyder - Cross

1 secure them.

2 THE COURT: Then what happens to my bag?

3 THE WITNESS: It's brought with you into the station,
4 and we have a big table that's sitting right there when you
5 come in the door. So we set the bag down, and I would tell the
6 probationary officer, I'd say, okay, go ahead, give her
7 instruction, uncuff her, and then let's begin with our search.

8 And we'd focus on you first. So we'd uncuff you.
9 Hand me your jacket. Hand me your shirt, your gloves. You
10 need to take your jewelry off. Go through that whole thing.
11 If there's a female there, we'd have a female come out and pat
12 you down further.

13 In the meantime, we're placing all the things on this
14 big table, all the items that we've seized.

15 THE COURT: So as you're removing my jewelry, my
16 jacket, that's all going on the same table?

17 THE WITNESS: Correct.

18 THE COURT: Okay.

19 THE WITNESS: If it was just the case of me and a
20 probationary officer, which typically there's always two people
21 there, I would then take that probationary officer and say,
22 okay, we've got her taken care of. Now, this is the form.
23 This is what we need to fill out. She had a necklace. See
24 right here down at the bottom? Necklace. Boom. And we'd go
25 through those items. She has a backpack. It's not listed

Q1NDManC

Nathan Snyder - Cross

1 there, because we can't hardly list everything possible. You
2 know, that form would be 20, 30 pages long.

3 But then we would start inventorying what you have in
4 that bag. Okay. She has two pair of socks, you know, she's
5 got a radio, she's got this, that. We'd inventory all that on
6 the sheet. As long as we didn't pull out anything that was
7 contraband or evidentiary, that we'd deem evidentiary -- like,
8 if you had drugs, obviously, that would be contraband.
9 Everything else is going to get shoved back into that bag, all
10 that personal property. We try to put necklaces and things
11 that could be lost in like a folder. We explain this to them
12 as I'm doing it. You'd be standing there watching it all.
13 Obviously, body cams and station video is on.

14 Then we'd take that, and right beside where we're at,
15 there are eight, nine lockers, and they have locks on them.
16 We'd take that property, put it in there, and I'd say, okay,
17 it's important, locker number one, and he would write that on
18 the sheet, one. So then we would know locker one is your
19 property for when you get released or transferred or whatever.

20 THE COURT: If my bag is zipped closed, why not just
21 take the bag and just put that in a locker without opening it?

22 THE WITNESS: Again, I don't know what is in that bag
23 to, A, safeguard. I don't know if there is something in there
24 that could hurt any of the officers walking by that locker. I
25 don't know what you're capable of. I just met you. So, you

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Nathan Snyder - Cross

1 know, for our safety, for your safety in that facility we're
2 going to check and inventory those things.

3 THE COURT: What if there's money or other valuables
4 inside the bag that aren't evidence or that are valuables? Why
5 do you need to identify and inventory those things?

6 THE WITNESS: Well, again, those are your personal
7 belongings, and they're of value to you. We don't ever want to
8 be accused of taking anything. We want you to get all your
9 stuff back. And since it's your belongings, you need it back,
10 so we will document that on there.

11 There's a money total. I think we break it down into
12 bills and changes. And, you know, I would hate for you to come
13 up with \$2,000 missing, and that might not even be our
14 department. If we're transferring you, we have no way of
15 knowing what another place or facility may or may not lose, so
16 that's why we also have a place for people taking custody of
17 the prisoner to sign for that personal property, so that way
18 they know what they're getting, too.

19 THE COURT: Thank you, sir.

20 MR. AGNIFILO: Your Honor, can I ask a follow-up
21 question? It will be very brief.

22 THE COURT: Well, yes. Yes.

23 BY MR. AGNIFILO:

24 Q. Chief, if you found something illegal, cocaine, a firearm
25 magazine, would you do anything other than continue with the

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1 inventory search?

2 A. In this specific instance --

3 Q. Yes.

4 A. -- that she said?

5 Q. Yes.

6 A. No. We would stop at that point, in her instance.

7 Q. And what would you do?

8 A. At that point we'd probably go get a search warrant.

9 Q. Okay. And so that's the procedure?

10 A. That specific instance, yes, with that set of facts.

11 Q. Okay. So if you had a bag, you were prepared to inventory
12 the bag, you found something illegal, like a firearm magazine
13 or something like that, you would stop and get a search
14 warrant?

15 A. Again, in this specific incident that the judge just
16 outlined --

17 Q. Yes.

18 A. Yes, in her case.

19 Q. Got it. That's all I need to know. Thank you.

20 THE COURT: Mr. Gentile.

21 MR. GENTILE: Briefly, your Honor. Thank you.

22 REDIRECT EXAMINATION

23 BY MR. GENTILE:

24 Q. Chief, I just want to pick up where Mr. Agnifilo left off
25 regarding the inventory search process. If you found a

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1 magazine in someone's purse or bag, if you found contraband,
2 drugs or gambling records or something like that, would you
3 stop the search and then apply for a search warrant in that
4 situation?

5 A. That would be correct.

6 Q. But if you found something that was dangerous, like a
7 magazine or firearm, would you stop searching then, even though
8 there might be a gun attached to that or something even more
9 harmful?

10 A. No, not necessarily.

11 Q. Would you continue searching to see if there were any other
12 dangerous items that would expose other officers or the
13 community to danger?

14 A. Sure.

15 THE COURT: I'm sorry. What was that answer?

16 THE WITNESS: Sure. Yes. I'm sorry.

17 Q. Chief, we went through several categories of property in
18 your direct examination, including found property, abandoned
19 property, evidence and personal property.

20 Do you recall that?

21 A. Yes.

22 Q. And Mr. Agnifilo went through one specific section of the
23 general order that applied to personal property, right?

24 A. Correct.

25 Q. In all those categories of property, do they all require

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1 some sort of securing or inventorying of that property, whether
2 it's found, abandoned, evidentiary or personal?

3 A. Correct.

4 Q. With respect to the task sheets, in order for the -- you
5 said that the task sheets are part of the manual; is that
6 right?

7 A. That is correct.

8 Q. In order for the task sheet to be part of the manual, does
9 the chief have to authorize that?

10 A. Can you ask that again, please?

11 Q. In other words, doesn't someone in authority have to
12 provide some sort of approval for anything that's entered into
13 the manual?

14 A. Correct. Yes.

15 Q. And the inventory process, I believe you spoke -- you
16 answered some questions from Mr. Agnifilo about -- or,
17 actually, from the judge regarding the purposes of the
18 inventory search. It's not just to give or to account for a
19 detainee's personal property, is it? It's also about a safety
20 issue, right?

21 A. Correct.

22 Q. Is it also about an accountability issue for the
23 department, that you know what property you're in possession
24 of, and this way, if you're going to give some of that property
25 back, you know how much and what type of property you're

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1 returning?

2 A. Correct.

3 MR. GENTILE: Thank you, Judge.

4 MR. AGNIFILO: Your Honor, I have two questions, just
5 following up.

6 RECROSS EXAMINATION

7 BY MR. AGNIFILO:

8 Q. Chief, do you still have Defense Exhibit A in front of you?
9 It's general order 1.2, already in evidence.

10 A. Which general order?

11 Q. It's 1.2, Chief.

12 THE COURT: It has a big A on it.

13 Q. Yes. It has a big A on the first page at the bottom.

14 A. Got it.

15 Q. Do me a favor and go to page 8. And I'm going to direct
16 your attention to the last two lines on page 8.

17 Do you see that there?

18 A. I do.

19 Q. I'm going to read it to you. "If during an inventory
20 search, evidence of a crime is discovered, the officer shall
21 stop the inventory search and secure a search warrant prior to
22 continuing."

23 Is that what it says?

24 A. That is what it says.

25 Q. Thank you.

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1 MR. GENTILE: Your Honor, I just want to -- one
2 question.

3 REDIRECT EXAMINATION

4 BY MR. GENTILE:

5 Q. That section that you just read for Mr. Agnifilo, that's
6 under "impound inventory search;" is that right?

7 A. That's right.

8 Q. Does that pertain to vehicles?

9 A. That is correct.

10 Q. Thank you.

11 RECROSS EXAMINATION

12 BY MR. AGNIFILO:

13 Q. Is there anything in any general order that says that the
14 rules are different for vehicles as opposed to other property?

15 A. I would have to look through our general orders.

16 Q. Thank you.

17 A. I don't want to give you false information.

18 Q. Okay. Thank you.

19 MR. GENTILE: Nothing further from the government.

20 Thank you.

21 THE COURT: All right. You are excused, sir. Thank
22 you very much.

23 Mr. Gentile, anything else from the government while
24 we're all here together?

25 MR. GENTILE: No, your Honor.

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1 THE COURT: Mr. Agnifilo?

2 MR. AGNIFILO: I don't believe so. Thank you, your
3 Honor.

4 THE COURT: Thank you all very much. I've found this
5 very helpful. I'll see you in a week.

6 (Adjourned)

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